

PLANET FITNESS®
FRANCHISE AGREEMENT
(MEXICO)

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**PLANET FITNESS®
FRANCHISE AGREEMENT
(MEXICO)**

THIS FRANCHISE AGREEMENT (the “Agreement”) is made and entered into as of the Effective Date (as defined herein) by and between Planet Fitness Mexico, S. de R.L. de C.V., a limited liability company of variable capital formed under the laws of Mexico, with a mailing address at Av. Insurgentes Sur 1787, 4th Floor, Guadalupe Inn, Alvaro Obregón, Mexico City, Z.C. 01020 (referred to in this Agreement as “Franchisor”, “we,” “us” or “our”), and the Franchisee listed on the signature page hereto (referred to in this Agreement as “Franchisee”, “you,” or “your”).

1. PREAMBLES, ACKNOWLEDGMENTS AND REPRESENTATION.

1.1 PREAMBLES. We and our Affiliates, as the result of the expenditure of time, skill, effort, and money, have developed, and continue to develop, a distinctive System relating to the development and operation of **PLANET FITNESS** fitness facilities (“**PLANET FITNESS** Businesses”) identified by the Marks. We have a license from our affiliate, PFIP International (“Trademark Owner”) to use the Marks (as defined below) and to sublicense the Marks to franchisees. We grant franchises to persons who meet our qualifications and are willing to undertake the investment and effort required to own and operate a **PLANET FITNESS** Business offering the products and services we authorize and approve and utilizing our System and the Marks. You have indicated to us by your actions and statements that you desire a franchise to own and operate a **PLANET FITNESS** Business in a designated location within the country of Mexico (the “Country”). This Agreement governs your ownership and operation of one (1) **PLANET FITNESS** Business.

1.2 ACKNOWLEDGMENTS. You acknowledge that you have read this Agreement and our Franchise Disclosure Document for the Country (“FDD”), which contained the information required by Article 245 of the Mexican Federal Law for the Protection of the Industrial Property (*Ley Federal de Protección a la Propiedad Industrial*) and the applicable articles of its regulations, at least thirty (30) Business Days before the execution of this Agreement and any difference between the information contained in this Agreement and the information contained in such Franchise Disclosure Document derives from the negotiations between you and us in connection with the execution of this Agreement and has been inserted in this Agreement for your benefit. You also acknowledge that you understand and accept the terms, conditions and covenants contained in this Agreement as being necessary to maintain our high standards of quality and service and the uniformity of those standards at each **PLANET FITNESS** Business and thereby to protect and preserve the goodwill of the Marks. You acknowledge that you have conducted an independent investigation of the business venture contemplated by this Agreement and recognize that, like any other business, the nature of the business conducted by a **PLANET FITNESS** Business may evolve and change over time, that an investment in a **PLANET FITNESS** Business involves business risks and that your business abilities and efforts are vital to the success of the venture. Any information you acquire from other **PLANET FITNESS** franchisees or third party vendors relating to the sales, profits or cash flows of other **PLANET FITNESS** Businesses does not constitute information obtained from us, nor do we make any representation as to the accuracy of any such information. You acknowledge that, in all of their dealings with you, our officers, directors, employees and agents act only in a representative, and not in an individual, capacity. All business dealings between you and such persons as a result of this Agreement are solely between you and us.

1.3 REPRESENTATION. You represent to us, as an inducement to our entry into this Agreement, that all statements you have made and all materials you have submitted to us in connection with your purchase of the franchise are accurate and complete and that you have made no misrepresentations or omissions in obtaining the franchise. You represent to us that your entry into this Agreement does not breach any agreement or other legal obligation of you or any of your Owners. We have approved of your purchase of a franchise in reliance upon all of your representations. We reserve the right to terminate this Agreement, as provided in Article 15, if you made any representation to us that was false or there were any omissions in information provided to

us in inducing us to enter into this Agreement with you. You agree to indemnify and hold us harmless for a breach of any representation in this Article 1.3, as provided in Article 18.4.

1.4 CERTAIN DEFINITIONS. The terms listed below have the meanings which follow them and include the plural as well as the singular. Other terms are defined elsewhere in this Agreement in the context in which they arise.

“Accounting Period” - Each time period during the term of this Agreement, as established by our Operations Manual, for reporting of Revenue and other monies due hereunder.

“ADA” - Defined in Article 2.4.

“Ad Fee” - Defined in Article 10.1.

“Ad Funds” - Defined in Article 10.1.

“Affiliate” - Any person that directly or indirectly owns or controls the referenced party, which is directly or indirectly owned or controlled by the referenced party, or which is under common control with the referenced party. The term “control” means the possession, directly or indirectly, of the power to direct or cause the direction, of the management and policies of an Entity, whether through ownership of voting securities, by contract or otherwise.

“Annual Marketing Plan” - Defined in Article 10.2.

“Approved Operator” - Defined in Article 2.3.

“Approved Supplier” - Any supplier, including us, an Affiliate of ours or an independent third party, whom we authorize to act as a supplier of services or goods to **PLANET FITNESS** Businesses.

“Bank Account” - Defined in Article 5.8.

“Billing Day” - Each day that we designate in our Operations Manual that we or our authorized designee are authorized by you to withdraw via EFT from your Designated Account, or by such other means as we may designate or approve, all Continuing Fees and other amounts then due to us under the terms of this Agreement.

“Black Card” - Our then-current black card membership in effect from time to time as described in the Operations Manual.

“Build-Out Material” - Any construction, build-out or remodel material, fixture or finish for the BUSINESS that does not contain any Marks registered in the Country. For the avoidance of doubt, fitness and amenity equipment are not Build-Out Materials.

“BUSINESS” - The **PLANET FITNESS** Business operated by you at the Location under the terms of this Agreement.

“Business Commencement Date” - The date on which the Location is first open to members for business, excluding pre-sale marketing and other similar pre-opening activities.

“Business Data” - Defined in Article 11.6.

“Business Day” - A day on which the banks are open for business, excluding Saturdays, Sundays and public holidays, in Mexico City, Mexico.

“Business Services Fee” - The nonrefundable, Continuing Fees you must pay us in consideration of the training, assistance and services which we (or one of Affiliates on our behalf) will provide you during the Term.

“Competitive Business” - Any business or other venture offering fitness, exercise, or athletic services, including, but not limited to, a health club, gym, physical fitness club, personal training studio, weight loss, weight training or resistance training studio, or aerobics center or any business or other venture offering digital fitness classes, content or advice (other than a **PLANET FITNESS** Business).

“Confidential Information” - Defined in Article 8.1.

“Construction Development Plan” - Defined in Article 4.4.

“Continuing Fees” - Defined in Article 5.2.

“Controlling Interest” - (a) a direct or indirect ownership interest of fifty percent (50%) or more in you or (b) the power to, directly or indirectly, direct your affairs by reason of ownership of voting securities, by contract, or otherwise.

“Country” - Defined in Article 1.1.

“Data Event” - Defined in Article 9.14.

“Data Rules” - Defined in Article 9.14.

“Designated Account” - Defined in Article 5.3.

“Designated Franchise Portal” - Our online portal or portals that provide information, resources, and support to **PLANET FITNESS** franchisees and their **PLANET FITNESS** Businesses.

“Digital Pre-Sale” - Defined in Article 4.7.

“Diligence Request” - Defined in Article 13.8.

“Effective Date” - The date that we enter into this Agreement as noted on the signature page.

“EFT” - The electronic transfer of funds (including without limitation from a credit card, debit card, or bank account) and payment by check or any other means (including without limitation any other current or future form of pre-authorized payment).

“Enhancements” - Defined in Article 6.7.

“Entity” - An investment promotion corporation of variable capital, corporation of variable capital or limited liability company of variable capital or any other type of entity.

“Event of Default” - Defined in Article 15.2.

“Family Member” - A person’s spouse, children, parents, siblings, and/or first- or second-cousins.

“FCPA” - Defined in Article 19.20.

“FDD” - Franchise Disclosure Document, as defined in Article 1.2.

“Franchise” - Defined in Article 3.1.

“Franchisee Collected Data” - Defined in Article 11.4.

“Franchisee Collected Data Transfers” - Defined in Article 11.5.

“Franchisor Collected Data” - Defined in Article 11.4.

“Franchisee Executive” - Each officer, director or executive-level employee of you or your Affiliates with access to Confidential Information and a role in the management or operation of the BUSINESS.

“Franchisee Privacy Notice” - Defined in Article 11.5.

“Government Official” - (a) An official of any government, government agency, or political party in the Country or elsewhere, whether by election, appointment, employment, or otherwise; (b) a candidate to become such an official; (c) a Family Member of any of the foregoing persons; and (d) Qualifying Personnel of a company that is owned by a government.

“Grand Opening Marketing Plan” - Defined in Article 10.2.

“ICDR” - Defined in Article 19.12(1)(b).

“Immediate Family” - Spouse, parents (including step parents), siblings (including half siblings), and children (including step children), whether natural or adopted.

“Indemnified Party” - Defined in Article 18.4.

“Initial Franchise Fee” - Defined in Article 5.1.

“Initial Training” - Defined in Article 6.1.

“Internet” - All communications between computers and between computers and television, telephone, facsimile and similar communications devices, including the World Wide Web, proprietary online services, e-mail, news groups and electronic bulletin boards, including but not limited to all forms of social media.

“Internet Account” - A domain name, social media account or other account on the Internet, mobile application, social media or social networking site, profile, hashtag or username used or established in connection with the BUSINESS or that contains any of the Marks, regardless of whether such account was registered or set-up in compliance with this Agreement.

“Internet Membership Administration Fee” - Defined in Article 5.7.

“Internet Platform” - Defined in Article 16.4.

“LAF” - Local Advertising Funds, as defined in Article 10.2.

“LAF Percentage” - Defined in Article 10.2.

“Lease” - Lease, sublease, lease renewal, purchase contract, or modification to any of the foregoing for the Location.

“LFPDPPP” - Mexican Federal Law on the Protection of Personal Data Held by Private Parties (*Ley Federal de Protección de Datos Personales en Posesión de los Particulares*).

“Lists” - Defined in Article 19.19.

“Location” - Av del Peñón 355, Moctezuma 2da Secc, Venustiano Carranza 15530 CDMX, Federal District, Mexico. If no site is approved at the time this Agreement is signed, this Agreement will be updated and amended when a location has been designated by you and approved by us in writing (which may include e-mail or other electronic means). If the address for the Location changes due to the designation of a new address for or renumbering of the premises, without any change to the physical location of the premises, you may update the address of the Location by providing written notice to us. Such notice may be delivered by electronic transmission, without subsequent physical delivery, provided that we confirm receipt.

“Marks” - The current and future tradenames, trademarks, service marks and trade dress used to identify the services and/or products offered by **PLANET FITNESS** Businesses, including the mark “PLANET FITNESS” and the distinctive building design and color scheme of **PLANET FITNESS** Businesses, whether or not they are registered in the Country or elsewhere.

“Marketing Plan Items” - Your proposed marketing tactical mix, and associated tactic quantities (including timing, gross rating points, impressions and number of pieces), targeting, promotional calendar, marketing budget, general campaign descriptions, samples of creative concepts, slogans/taglines to be used, and such other information as we may require from time to time.

“Mediation Rules” - Defined in Article 19.12(1)(b).

“Member Dues Draft” - The account into which membership dues or related fees for the BUSINESS are deposited by or on behalf of your members.

“Methods of Operation” - Mandatory and suggested specifications, standards, operating procedures and rules that we prescribe from time to time for the operation of a **PLANET FITNESS** Business and any other information we provide to you during the Term of the Agreement relating to your operation of the BUSINESS or to any other of your obligations under this Agreement and related agreements.

“Mexican Data Protection Legislation” - the LFPDPPP, its Regulations and any related legislation.

“NAF” - Our National Advertising Fund, as defined in Article 10.1.

“NAF Contribution” - Defined in Article 5.10(2).

“Notice of Default” - Defined in Article 15.3.

“Notification Date” - Defined in Article 16.13.

“Operations Manual” - The compilation of the confidential **PLANET FITNESS** Methods of Operation, which may include, without limitation, any information, documents and materials that describe our mandatory and suggested standards, specifications, marketing strategies and policies, and operating procedures relating to the development and operation of **PLANET FITNESS** Businesses and your obligations under this Agreement and related agreements, as well as all other written materials, documents or information that we designate as a Method of Operation or specifically as part of the Operations Manual. The term “Operations Manual” also includes alternative or supplemental means of communicating such information by other media which specifically reference that they are to be considered part of the Operations Manual, including, but not limited to, bulletins, newsletters, emails, audio and video files, and other similar items posted on the Designated Franchise Portal. The Operations Manual (and each component thereof) constitutes a confidential trade secret and will remain our property and will be provided to you in comodatum (*free loan*). You agree to keep the Operations Manual at your own risk and maintain and keep it in good condition.

“Owner” - Each person that has any direct or indirect legal or beneficial ownership interest in you, if you are an Entity. Each franchisee must have at least one Owner. Your Owner(s) is/are identified on Appendix D to this Agreement. If we approve a change in the persons who are your Owners (as required under Article 13.2 hereof), you consent to our amendment of either or both of Appendix D and G to reflect such change.

“P&S Agreement” - Defined in Article 13.8.

“Payment Network” - Any credit card, debit card or other payment network and their duly authorized administrators (including NACHA), agents, or Affiliates.

“Payment Processors” - All credit card, debit card, ACH or other payment processors whose services we may require you to utilize, as well as payment gateway service providers.

“Payment Rules” - The rules and regulations of Payment Processors and any applicable Payment Network, as in effect from time to time.

“Permanent Disability” - A mental or physical disability, impairment or condition that is expected to prevent or actually does prevent you, your Responsible Owner, or an Owner of a Controlling Interest in you from managing and operating the BUSINESS for a period of at least three (3) months from the onset of such disability, impairment or condition.

“Person” or “person” - Any natural person, Entity, unincorporated association, trust, cooperative or other functional entity.

“Personal Data” - The personal information of customers or prospective customers of the BUSINESS.

“Personnel” - All persons employed or otherwise retained by you, directly or indirectly, in connection with the development, management or operation of your BUSINESS, including persons in general and district management positions for your BUSINESS, crew trainers, unit general and assistant managers, shift supervisors, hourly employees and all other persons who work in or for your BUSINESS.

“Physical Pre-Sale” - Defined in Article 4.7.

“**PLANET FITNESS Business**” - Defined in Article 1.1.

“POS” - Point of Sale, as defined in Article 4.5.

“Pre-Sale” - Defined in Article 4.7.

“Pre-Sale Marketing Plan” - Defined in Article 10.2.

“Pre-Sale/Grand Opening Marketing Expense” - Defined in Article 10.2.

“Pre-Sale/Grand Opening Marketing Period” - Defined in Article 10.2.

“Pre-Sale/Grand Opening Marketing Plan” - Defined in Article 10.2.

“Qualifying Personnel” - Shareholders, members, partners, quota holders, officers, directors, managers, legal representatives, executives, and employees, as well as any of their Family Members.

“RAF” - Our Regional Advertising Fund, as defined in Article 10.1.

“Regulations” - The LFPDPPP Regulations.

“Relocation” - The moving of the Location for the BUSINESS and development of a new **PLANET FITNESS** Business in close proximity at a new location, approved by us in writing, and transfer of substantially all members from the BUSINESS to the new **PLANET FITNESS** Business. A Relocation may include a consolidation of two **PLANET FITNESS** Businesses operated by you for business reasons if approved by us in our sole discretion.

“Relocation Marketing Plan” - Defined in Article 10.2(3).

“Relocation Period” - Defined in Article 10.2(3).

“Remedy Notice” - Defined in Article 15.5(4).

“Reserved Area” - Defined in Article 4.3.

“Responsible Owner” - Defined in Article 2.3.

“Revenue” - All revenue generated from the sale or provision of all products and services at, from, or in connection with the operation of the **PLANET FITNESS** business, including without limitation (i) the total receipts from all membership related fees that are received by you (not reduced by transaction fees, interchange costs, or the cost of acceptance and processing of such fees or any other expenses), including, but not limited to, pre-paid membership fees, monthly and annual membership fees, enrollment fees, customer late fees, third-party collections on member accounts, customer service fees, and other ancillary customer fees, whether collected daily, monthly, paid-in-full, or otherwise and specifically including any payments by or on behalf of members by any third party (including health plan or employer reimbursement programs and similar reimbursement programs), and (ii) all non-membership revenue generated from the sale or provision of all products and services at, from, or in connection with the operation of the **PLANET FITNESS** business, exclusive of Revenue Adjustments and any federal, state or municipal tax deductions or offsets, and whether cash, credit or electronic payment, including, without limitation, the sale of merchandise, refreshments, tanning, and training services. Revenue excludes: (a) Revenue Adjustments, (b) membership dues or other fees that are not collected (whether or not billed to the member), (c) any federal, state or municipal taxes applicable to membership related fees (including value added taxes), and (d) any federal, state or municipal tax deductions or offsets.

“Revenue Adjustments” - Retail returns, membership refunds, chargebacks and disputed transactions, any other reductions to revenue that we designate in our Operations Manual.

“ROFR Notice” - Defined in Article 13.8.

“ROFR Period” - Defined in Article 13.8.

“Sale Materials” - Defined in Article 13.8.

“System” - The business methods, designs and arrangements for developing and operating **PLANET FITNESS** Businesses, which include the Marks, Methods of Operation, trade dress, image, design elements and layouts, equipment counts and mix, training, and certain operating and business standards and policies, including any copyright in any of the foregoing, all of which we may improve, further develop or otherwise modify from time to time. The System shall include any adaptations we approve in writing for use in the Country.

“Telephone Companies” - Defined in Article 16.4.

“Telephone Numbers” - Defined in Article 16.4.

“Term” - Defined in Article 3.1.

“Third-Party Transfer” - A proposed Transfer to any party that is not one of your Owners or an Entity solely owned by one or more of your Owners. A Transfer to an Immediate Family member of one of your Owners of a non-Controlling Interest in you, which is not one of a series of proposed Transfers which, in the aggregate, would constitute or result in the transfer of a Controlling Interest in you, is not a Third-Party Transfer.

“Trademark License Fee” - The nonrefundable Continuing Fees you must pay us in consideration of your use of our Marks during the Term.

“Trademark Owner” - Defined in Article 1.1.

“Transfer” - The voluntary, involuntary, direct or indirect sale, assignment, transfer, license, sublicense, sublease, collateral assignment, grant of a security, collateral or conditional interest, encumbrance, inter-vivos transfer, testamentary disposition or other disposition of this Agreement, any interest in or right under this Agreement, or any form of ownership interest in you or the assets, revenues or income of your BUSINESS (excluding sales of products and services and payments made in the ordinary course of business) including, but not limited to: (1) any transfer, redemption or issuance of a legal or beneficial ownership interest in the capital stock of, or a partnership or membership interest in, you or of any interest convertible to or exchangeable for capital stock of, or a partnership or membership interest in, you; (2) any merger or consolidation between you and another Entity, whether or not you are the surviving Entity; (3) any transfer in, or as a result of, a divorce, insolvency, corporate or partnership dissolution proceeding or otherwise by operation of law; (4) any transfer upon your death or the death of any of your Owners by will, declaration of or transfer in trust or under the laws of intestate succession; or (5) any foreclosure upon your BUSINESS or the transfer, surrender or loss by you of possession, control or management of your BUSINESS.

“Vendor Revenue” - Defined in Article 5.10(1).

“White Card”- Our then-current white card membership in effect from time to time as described in the Operations Manual.

2. **YOUR ORGANIZATION AND MANAGEMENT.**

2.1 **ORGANIZATIONAL DOCUMENTS.** If you are, or at any time become, an Entity, you and each of your Owners represent and warrant that:

- (1) you have the authority to execute and deliver this Agreement (including without limitation, the ownership information contained in Appendix D hereto) and to perform your obligations hereunder, as well as the necessary consents, approvals, licenses and/or permits to do so, if applicable;
- (2) your activities are restricted to those necessary solely for the development, ownership and operation of a **PLANET FITNESS** Business in accordance with this Agreement and in accordance with any other agreements entered into with us or any of our Affiliates;
- (3) you shall, within five (5) Business Days of our request, provide us with copies and translations thereof of the organizational documents, other governing documents, current by-laws, and, if so required, resolutions or consents of the governing board authorizing entry into and performance of this Agreement; such documents recite that the issuance, transfer or pledge of any direct or indirect legal or beneficial ownership interest is restricted by the terms of this Agreement;
- (4) each of your Owners, your Approved Operator and each Franchisee Executive has executed an agreement with you, of which we are a third-party beneficiary and may independently enforce, providing that, for so long as each such person is an Owner, Approved Operator

or Franchisee Executive and for at least two (2) years after the Transfer of each such Owner's ownership interests or the termination of such person's role with you (as applicable and with such time period to be tolled by any violation thereof), such person will not, either directly or indirectly, compete with you and your Affiliates; and

- (5) if applicable, all certificates representing direct or indirect legal or beneficial ownership interests in you now or hereafter issued bear a legend in conformity with applicable law reciting or referring to the applicable restrictions on your activities, the competitive activities of your Owners, and the issuance, transfer or pledge of ownership interests in you.

2.2 DISCLOSURE OF OWNERSHIP INTERESTS; GUARANTY. You represent and warrant that the attached Appendix D is current, complete and accurate and in accordance with your internal governing documents (if you are an Entity) and any agreements among you and/or your Owners. We do not have any responsibility to review such documents or agreements. You shall indemnify and hold us harmless from any claims arising from any internal dispute with respect to your ownership or the right of any person to have an interest in you. You agree that, subject to Article 13 requirements regarding proposed Transfers, any proposed updates to Appendix D will be furnished promptly to us, so that Appendix D (as so amended) is at all times current, complete and accurate. Your Affiliate that we have approved has signed Appendix C to this Agreement (Assumption of Joint Obligation Agreement), undertaking to guaranty the obligations contained in this Agreement. Each person who is or becomes an Owner must execute an agreement in the form we prescribe, undertaking to be bound by the confidentiality and non-competition covenants contained in this Agreement, the current form of which is attached hereto as Appendix B. Each Owner signing such Appendices must be an individual acting in such Owner's individual capacity.

2.3 RESPONSIBLE OWNER/MANAGEMENT OF BUSINESS. If you are, or at any time become, an Entity, you must designate in Appendix D as the "Responsible Owner" an individual approved by us in writing. Your Responsible Owner must own, directly or indirectly, at least a five percent (5%) ownership interest in you. Your Responsible Owner must have the authority and faculties to, as evidenced in a public deed or power of attorney, and must, in fact, actively direct your business affairs related to the BUSINESS. Your Responsible Owner must have the authority and faculties, as evidenced in a public deed or power of attorney, to accept all official notices from us and, when signing on your behalf, to legally bind you with respect to all contracts and commercial agreements and arrangements related to the BUSINESS. Your Responsible Owner must have completed our training program to our satisfaction. You (or your Responsible Owner) may request our approval of an operator that has completed our training program to our satisfaction (an "Approved Operator") to whom you may delegate your obligations to develop and operate your BUSINESS. Such a request must be made in writing, and you must cooperate with us to provide all information we request to approve or reject the proposed individual. Such approval shall be given in our sole discretion. If we approve an Approved Operator, you consent to the amendment of Appendix D to include that individual, and you shall cause the Approved Operator to sign Appendix B (Personal Covenants and Agreement Regarding Confidentiality and Non-Competition). We shall have no responsibility, liability or obligation to any party to any arrangement or agreement (including, but not limited to, employment arrangements) between you, any of your Owners and/or your Approved Operator with respect to the management of the BUSINESS or your internal governance, and you agree to indemnify and hold us harmless with respect thereto. You must notify us of any proposed change of the Responsible Owner or Approved Operator and receive our written approval prior to such change, which shall be given or withheld in our sole discretion. You and your Approved Operator (or if there is no Approved Operator, the Responsible Owner) shall exert your and their full-time best efforts to the development and operation of your BUSINESS and, if applicable, other **PLANET FITNESS** Businesses you own; and may not, without our prior written approval, engage in any other business or activity, directly or indirectly, which requires you or such individual to have substantial management responsibility or substantial time commitments or otherwise may conflict with your obligations hereunder. Your BUSINESS at all times must be managed by you (or your Responsible

Owner or Approved Operator) or by an on-site general or assistant manager or a shift supervisor who has completed the appropriate training programs.

2.4 OWNERSHIP GROUP. If you or one of your Affiliates have entered into an Area Development Agreement (“ADA”) with us and are entering into this Agreement pursuant thereto, you represent and warrant that, unless we have otherwise approved in writing, your ownership complies with the Ownership Group requirements of the ADA.

2.5 FACILITY ORGANIZATION. Your BUSINESS must be staffed by at least one (1) trained general manager and appropriate numbers of assistant managers, shift supervisors, and personnel so that all shifts are staffed by at least one assistant manager or shift supervisor.

3. GRANT OF RIGHTS.

3.1 GRANT OF FRANCHISE. Subject to the terms of and upon the conditions contained in this Agreement, we hereby grant you a franchise (the “Franchise”) to operate a **PLANET FITNESS** Business solely at the Location, and a license to use the Marks and the System in the operation thereof, for a term commencing on the Effective Date and expiring on the tenth (10th) anniversary of the Business Commencement Date (the “Term”) unless sooner terminated in accordance with Article 15 hereof. Upon your written request to us received no later than three (3) months after the Business Commencement Date and in substance acceptable to us on the form made available to you, we will, in our sole discretion, agree to grant you in writing an extension of the Term of up to nine (9) months, or a reduction of the Term of up to four (4) years, to match the expiration of your lease term. This Agreement grants to you a “site only” franchise for a single **PLANET FITNESS** Business, which means that you receive no protected, territorial or other rights beyond the physical premises of the Location. We and our Affiliates have the unlimited right to compete with you and license others to compete with you. You may not operate the BUSINESS from any site other than the Location without our prior written consent. In the event of an approved Relocation, the Term shall remain unaffected. You shall operate your BUSINESS throughout the Term, except as otherwise specifically provided for herein. Notwithstanding the foregoing, if you sign an ADA with us, you will receive limited protection from competition in a specified geographic area, as outlined in the ADA.

3.2 OUR RESERVATION OF RIGHTS. Except as otherwise provided in an ADA pursuant to which this Agreement has been executed, we and our Affiliates (and our and their respective licensees, successors and assigns, by purchase, merger, consolidation or otherwise) retain all of our rights with respect to the Marks, the System and **PLANET FITNESS** Businesses anywhere in the world, and the right to engage in any business whatsoever, including the right to:

- (1) operate, and grant to others the right to operate, **PLANET FITNESS** Businesses at such locations and on such terms and conditions as we deem appropriate;
- (2) offer to sell, or sell and distribute, any products or services under any tradenames, trademarks, service marks or trade dress, including the Marks, through any distribution channels or methods, which may include, without limitation, retail stores, wholesale, and the Internet (or any other existing or future form of electronic commerce);
- (3) operate, and grant to others the right to operate, fitness facilities, gyms, health related establishments, and any other business(es) whatsoever identified by tradenames, trademarks, service marks or trade dress, other than the Marks, pursuant to such terms and conditions as we deem appropriate which may include locations in close proximity to the Location;

- (4) develop or become associated with other concepts (including dual branding or other franchise systems), whether or not using the **PLANET FITNESS** System, brand or Marks, and award franchises under these other concepts for locations anywhere;
- (5) acquire, be acquired by, merge, affiliate with or engage in any transaction with other businesses (whether competitive or not), with units located anywhere or business conducted anywhere. These transactions may include arrangements involving competing businesses or outlets and dual branding or brand conversions. You must participate at your expense in any conversion as instructed by us; and
- (6) enter into agreements or arrangements with other local, regional, national or international companies or organizations by which we offer memberships or other products and services to the personnel, customers or members of such companies or organizations. The terms of such agreements or arrangements may include fees, pricing structures, and reimbursement arrangements (including, but not limited to, an administrative fee collected by us) that may be different from our then-current membership offerings. You must participate in and honor the terms of such partnerships upon being notified thereof.

4. LOCATION SELECTION, LEASE OR PURCHASE OF LOCATION AND LOCATION DEVELOPMENT.

4.1 LOCATION SELECTION AND APPROVAL. You acknowledge that it is your responsibility (with or without our assistance) to find and submit to us for our approval a site for your BUSINESS, if no Location has been approved at the time this Agreement is signed. You acknowledge and agree that our recommendation or approval of the Location, and any information regarding the Location communicated to you regarding our standard site selection criteria for **PLANET FITNESS** Businesses, do not constitute an endorsement or representation or warranty of any kind, express or implied, as to the suitability of the Location for a **PLANET FITNESS** Business or for any other purpose. Our recommendation or approval of the Location indicates only that we believe that the Location falls within the acceptable criteria for locations that we have established as of the time of our recommendation or approval of the Location. You acknowledge and agree that your selection of the Location is based on your own independent investigation of the suitability of the Location. We do not endorse any predictive analysis as to the potential viability, success or financial performance of the Location nor do we make any representation or warranty as to the accuracy of any such predictive analysis or the accuracy of any underlying information on which such predictive analysis may be based. We have the right to grant or withhold approval of any proposed location in our sole discretion.

4.2 PURCHASE OR LEASE OF THE LOCATION. If this Agreement is being executed pursuant to an ADA with us, you must lease, sublease or purchase the Location within three (3) months after signing this Agreement. Otherwise, you must lease, sublease or purchase the Location within six (6) months after signing this Agreement. Your failure to lease, sublease or purchase the Location within the applicable timeframe constitutes an Event of Default under Article 15.2 hereof and may result in the loss of your non-refundable Initial Franchise Fee. We have the right, but not the obligation, to review the terms of any Lease, and you agree to deliver a copy of any Lease to us for our review before you sign it. You agree that any Lease must, in form and substance, be satisfactory to us, and must include an addendum with all of the provisions set forth on Appendix E (Addendum to Lease) attached hereto. You may not execute a Lease without our written approval. Our approval of the Lease does not constitute a warranty or representation of any kind, express or implied, as to its fairness or suitability or as to your ability to comply with its terms. We do not, by virtue of approving the Lease, assume any liability or responsibility to you or to any third parties. Such approval indicates only that we believe that the Location and certain terms of the Lease fall within the acceptable criteria we have established as of the time of our approval. You further acknowledge that we have advised you to seek legal counsel to review and evaluate the Lease. You must deliver a

copy of the fully signed Lease within five (5) days after its execution. For the avoidance of doubt, the requirements of this Article 4.2 apply to you even if the Location is owned by your Affiliate.

4.3 RESERVED AREA OF THE LOCATION. You acknowledge and agree that, at any time during the Term of the Agreement and upon our written request, you must lease or sublease to us, our Affiliate, or our designee, at the then-current fair market rate in your geographic area for like-leased real estate space, a portion of the total square footage of the Location that shall not exceed ten (10%) percent of the total square footage of the Location (the “Reserved Area”), subject to the consent of the lessor or sublessor (if any) of the Location. You must use best efforts to procure the consent of any lessor or sublessor of the Location. You acknowledge and agree that we, our Affiliate, or our designee may use the Reserved Area in any manner we deem to be appropriate, provided however, that our, our Affiliate’s, or our designee’s use of the Reserved Area shall not substantially alter your fundamental rights under this Agreement. Further, you acknowledge and agree that we or our Affiliate have the unrestricted right to sublease the Reserved Area to a third party designee. You acknowledge and agree that any lease or sublease for the Location must reference, in form and substance satisfactory to us, our right to sublease the Reserved Area. Notwithstanding anything contained herein to the contrary: (a) we will pay you the pro rata portion of the actual rental amount paid by you to the landlord under the master lease (or the pro rata portion of the mortgage payment paid by you, as applicable) for the space that we actually occupy; and (b) in no event will the Reserved Area be used to offer, sell or provide personal training services. If we ever exercise our rights pursuant to this Article 4.3, you and we agree to (a) use your and our commercial efforts to agree on a location that will fulfill both our business interests in exercising our rights under this Article 4.3, and your interests as owners and operators of the Location; (b) negotiate and reach an arrangement to share in the revenues generated from our use, or our designee’s use, of the Reserved Area; and (c) indemnify you from any losses or damages arising directly from our use, or our designee’s use, of the Reserved Area to the extent that such loss or damage is caused by such use. Except as set forth in this Article 4.3, you may not use, or allow any other party to use, any part of the BUSINESS for any purpose other than your operation of a **PLANET FITNESS** Business in compliance with this Agreement.

4.4 LOCATION DEVELOPMENT.

(1) *Design.* You are solely responsible for developing the BUSINESS, for all expenses associated with it, for any financing you may require in connection with such development, and for compliance with the requirements of any applicable federal, state, or municipal laws, codes or regulations, including those governing public accommodations for persons with disabilities. We will furnish you with mandatory specifications and layouts for a **PLANET FITNESS** Business, including, but not limited to, requirements for dimensions, design, image, interior layout, decor, fixtures, equipment, signs, furnishings and color scheme. The mandatory specifications and layouts we provide will not contain the requirements of any federal, state, or municipal laws, codes or regulations and you shall inform us immediately if the mandatory specifications and layouts for a **PLANET FITNESS** business do not comply with such requirements. You are obligated to have prepared, at your expense, all required construction plans and specifications to suit the shape and dimensions of the Location and to ensure that such plans and specifications comply with all applicable federal, state, or municipal laws, codes, regulations, ordinances, building codes and permit requirements, including all applicable Mexican Official Standards (*Normas Oficiales Mexicanas* - NOMs), and with lease requirements and restrictions. You acknowledge that design quality is important to us. You must use an architect approved in writing by us to prepare all architectural plans and drawings (together with project management plans, “Construction Development Plans”) for the BUSINESS. We reserve the right to require that you use an approved or designated third party project management company to prepare all project management plans for the BUSINESS. You must submit all Construction Development Plans, including design specifications, to us and receive our prior, written approval before starting to develop the Location. At our request, you must submit all revised or “as built” plans and specifications. Our review and

approval of your Construction Development Plans is not designed to assess compliance with federal, state, or municipal laws regulations or other applicable norms, as compliance with such legislation is your sole responsibility. All development and any signage must be in accordance with the Construction Development Plans and specifications we have approved and must comply with all applicable federal, state, or municipal laws, ordinances, rules, regulations or other applicable norms. We will furnish such guidance to you in developing the Location as we deem appropriate. We do not, by approving your Construction Development Plans or specifications or inspecting the Location, assume any liability or responsibility to you or to any third parties. Such approvals and inspections shall be solely for the purpose of assuring compliance with our standards and Methods of Operation and shall not be construed as any express or implied representation or warranty that your BUSINESS complies with any applicable laws, codes or regulations (including any federal, state, or municipal law or ordinance regulating standards for the access to, use of, or modifications of buildings for use by persons whose disabilities are protected by law) or that the construction thereof is sound or free from defects. All prototype and modified Construction Development Plans and specifications for your BUSINESS remain our sole and exclusive property, and you may claim no interest therein and you irrevocably assign to us all of your right, title, and interest, if any, in and to all such Construction Development Plans, together with all related intellectual property rights.

- (2) *Construction.* You must start construction of your BUSINESS within one hundred eighty (180) days after you have leased, subleased or acquired the Location, unless a longer period of time is approved by us. You must engage a general contractor acceptable to us. You must procure all applicable construction insurance in amounts and coverages acceptable to us. You must complete construction of your BUSINESS within one hundred sixty (160) days after the start of construction, provided, however, that if you demonstrate to us that you are working in good faith and earnestly toward this end, we may grant you an extension beyond the applicable timeframe described above. You must provide us with weekly progress reports during construction in a format acceptable to us. We have the right to visit and inspect the site during the construction phase. Such visits shall be at our expense, except for site evaluation visits made upon your request, which shall be at your expense, in which case, you shall reimburse us for our expenses for each visit we make at your request, including the costs of travel, lodging and food incurred in connection with the site evaluation. The requirement to complete construction of your BUSINESS includes obtaining all required construction and occupancy licenses, authorizations, certificates and permits, developing the Location (including all outdoor features and landscaping of the Location, if applicable), installing all required fixtures, furnishings, equipment and signs, and doing all other things as may be required pursuant to this Agreement or by practical necessity to have your Location ready to open for business.
- (3) *Payments.* You shall pay or cause the payment of all undisputed amounts owing to contractors, subcontractors and other suppliers in connection with the construction of your BUSINESS.

- 4.5 **FIXTURES, FURNISHINGS, EQUIPMENT AND SIGNS.** You agree to use in developing and operating the BUSINESS only those fixtures, furnishings, equipment (including cash registers and/or point of sale (“POS”) systems, and/or billing systems, telecopiers and computer hardware and software) and signs that we have approved for **PLANET FITNESS** Businesses as meeting our specifications and standards for quality, design, appearance, function and performance. You agree to place or display at the Location (interior and exterior) only such signs, emblems, lettering, logos and display materials that we have approved. You will submit all proposed exterior signage and any proposed alterations to the exterior of the BUSINESS for our pre-approval. It will be your responsibility to assess their compliance with federal, state, or municipal laws, regulations or other applicable norms and to obtain any authorizations, certificates, permits and licenses required to place or display them. You agree to purchase or lease approved brands, types or models of fixtures, furnishings, equipment and signs only from suppliers we have designated or approved (which may

include or be limited to us and/or our Affiliates). You will pay the then-current price in effect for all such purchases you make from us and/or our Affiliates. You agree, at your own expense and subject to Article 9.3, to upgrade all equipment, furnishings, fixtures, signs, cash registers and/or POS systems, billing systems, computer hardware and software, as necessary, in order to bring the BUSINESS into compliance with our Methods of Operation.

4.6 START-UP INVENTORY, FURNITURE, FIXTURES, SOFTWARE, EQUIPMENT AND SUPPLIES. Prior to your commencement of operations hereunder, we will give you lists of the start-up inventory, furniture, fixtures, software, equipment and supplies we require you to obtain prior to commencing operations hereunder. You shall purchase all such required items only from suppliers we have designated or approved (which may include, or be limited to, us and/or our Affiliates), unless otherwise provided in the Operations Manual. You will pay the then-current price in effect for all such purchases you make from us and/or our Affiliates. Our list of Approved Suppliers and specifications for goods and services will be set forth in the Operations Manual or in other materials we give you from time to time.

4.7 MEMBERSHIP PRE-SALE. In conjunction with your pre-sale and grand opening marketing described in Article 10.2(1), you agree to begin selling memberships at a physical location ("Physical Pre-Sale"), unless we otherwise approve, at least forty-five (45) days immediately preceding the date that you intend to commence BUSINESS operations. You must begin selling memberships online ("Digital Pre-Sale" and together, with Physical Pre-Sale, "Pre-Sale"), unless we otherwise approve, on the earlier of (a) at least (15) days prior to the Physical Pre-Sale or (b) the start of a national sale which begins within ninety (90) days of your intended Business Commencement Date. You may not begin Pre-Sale until (1) we have approved your Pre-Sale Marketing Plan and (2) you have complied with your obligations under this Agreement and under our Methods of Operation that are required to be completed prior to Pre-Sale, including, but not limited to, training requirements and development of the BUSINESS in accordance with our specifications and standards. You must install complete, approved exterior and pylon signage for the BUSINESS prior to beginning Physical Pre-Sale, unless we otherwise approve. Your Pre-Sale shall be conducted in accordance with the Pre-Sale requirements in our Operations Manual.

4.8 BUSINESS COMMENCEMENT. You agree not to commence operation of the BUSINESS until:

- (1) we approve the BUSINESS as developed in accordance with our specifications and standards;
- (2) preopening training has been completed by you, your Responsible Owner, your Approved Operator, and/or your employees to our satisfaction as provided in Article 6.1;
- (3) you have given us a copy of your Lease, which includes the provisions set forth on Appendix E and has been approved in writing by us;
- (4) the Initial Franchise Fee and all other amounts then due to us have been paid;
- (5) you have conducted Pre-Sale for the minimum time period set forth in Article 4.7 hereof, unless we otherwise approve, and have complied with your approved Pre-Sale Marketing Plan and the Pre-Sale requirements in our Operations Manual;
- (6) we have approved your Grand Opening Marketing Plan;
- (7) we have been furnished with copies of all insurance policies required by this Agreement, or such other evidence of insurance coverage and payment of premiums as we request or accept; and

- (8) you have obtained all required permits, authorizations, licenses and certifications for operating the BUSINESS, and the Location is in compliance with all applicable laws, rules regulations and norms.

4.9 BUSINESS COMMENCEMENT DEADLINE. You agree to commence BUSINESS operations within three hundred and thirty (330) days after the execution of this Agreement, or, in the case of a ground-up build, four hundred and fifty (450) days after the execution of this Agreement, and, in either case, within five (5) days after we notify you that the conditions set forth in this Article have been satisfied. If you lease, sublease, or purchase the Location and are working in good faith toward commencing BUSINESS operations, we may, in our sole discretion, grant you additional time to commence BUSINESS operations.

4.10 OPENING ASSISTANCE. If you (or any of your Affiliates) have not previously owned or operated a **PLANET FITNESS** Business, we may provide you with such opening operational assistance as we deem appropriate to assist you in starting your operations, including on-site opening assistance for not more than five (5) days, as scheduled by us. We also may offer additional opening assistance for a fee.

4.11 RELOCATIONS. You must comply with all requirements of this Article 4 with respect to the acquisition and development of an approved Relocation site, provided, however, that (a) the time periods for acquiring the site, commencing and completing construction and commencing BUSINESS operations will not apply, and (b) you will not be required to conduct a Pre-Sale or develop or execute a Pre-Sale Marketing Plan or a Grand Opening Marketing Plan. You may use the Marks and the System at an approved Relocation site in compliance with this Agreement to the extent necessary to develop the Relocation site and advertise the Relocation. You must advertise the Relocation as set forth in Article 10.2(3) hereof. You must comply with all applicable closure requirements set forth in Article 16.2 hereof with respect to the existing Location, including, but not limited to the de-branding of the existing Location and any furnishings, fixtures, equipment, signs inventory or other items not being relocated to the Relocation site. You may not commence BUSINESS operations at the new Location without our written approval to do so, which we may withhold if you have not complied with all applicable requirements, and until this Agreement has been amended to reflect the new Location of the BUSINESS.

4.12 NOTICE OF DEFICIENCIES. If you believe we have failed to adequately provide any services required to be provided to you in regard to the training, support or any other matter affecting the establishment of the BUSINESS, you shall so notify us in writing within ninety (90) days following opening of the BUSINESS. Absent the timely provision of such notice to us, you shall be deemed to conclusively acknowledge that all pre-opening and opening services required to be performed by us were sufficient and satisfactory in your judgment.

5. FEES.

5.1 INITIAL FRANCHISE FEE. You agree to pay us a nonrecurring and nonrefundable initial franchise fee in the amount of Twenty Thousand Dollars 00/100 Legal Currency of the United States of America (US\$20,000.00), that shall be due when you execute the Agreement (the "Initial Franchise Fee"). The Initial Franchise Fee shall be deemed fully earned by us at the time it is due.

5.2 CONTINUING FEES. You agree to pay us nonrefundable Business Services Fees and Trademark License Fees (collectively, "Continuing Fees") via EFT. The Continuing Fees shall be equal to the following percentage of Revenue for the BUSINESS:

Business Services Fee: 1.5%

Trademark License Fee: 1.5%

We will collect the Continuing Fees each Billing Day, pursuant to our Operations Manual, via EFT initiated by us or by a third party authorized by us from the Member Dues Draft, Designated Account, or by such other means as we may authorize and approve. Notwithstanding anything to the contrary, (i) upon our request, you will remit payment of the Business Services Fee to one of our subsidiaries or Affiliates based in the United States of America, which we have the right to designate, provided such subsidiary or Affiliate is the same legal entity which will provide the business services related to the Business Services Fee; and (ii) we will only collect Continuing Fees as provided in this Section on received Revenues as further described in Section 1.

- 5.3 DESIGNATED ACCOUNT AND AUTHORIZED EFT.** Prior to the opening of the BUSINESS, and as a condition thereof, you shall establish a designated bank account (“Designated Account”) from which we or our authorized designee shall be authorized to withdraw in any manner which we prescribe, which may include wire transfer, any amounts due to us as described in Article 5.6 hereof, including, without limitation, Continuing Fees, LAF fees, Ad Fees, training fees, consultation fees, or any other fees or monies payable by you and related to the BUSINESS or this Agreement (but may not include any Brand Launch Spend required by an ADA). We have the right to review your sales numbers on a daily basis. Each Billing Day, we or our authorized designee shall calculate the Continuing Fees due for the most recent Accounting Period and withdraw such amount, along with any other amounts then due and owing under this Agreement, including, without limitation, LAF fees, Ad Fees, training fees, consultation fees, or any other fees or monies, directly from the Member Dues Draft or the Designated Account. Alternatively, we may invoice you for such amounts, with such invoices to be paid within fourteen (14) days of receipt (which may include receipt via electronic means). All costs and expenses of establishing and maintaining such Designated Account, including transaction fees and wire transfer fees, shall be paid by you. You agree to maintain at all times sufficient funds in the Designated Account for such withdrawals. We reserve the right to designate another method of payment or time frame for payment upon written notice to you or in our Operations Manual.
- 5.4 INTEREST ON LATE PAYMENTS.** All amounts which you owe us and do not pay us when due will bear interest after their due date at eight percent (8%) per annum, which shall be immediately due and payable. You acknowledge that this Article does not constitute our agreement to accept any payments after they are due or our commitment to extend credit to, or otherwise finance your operation of, the BUSINESS.
- 5.5 APPLICATION OF PAYMENTS.** Notwithstanding any designation you might make, we have the right to apply any of your payments to any of your past due indebtedness to us. You acknowledge and agree that we have the right to, and you hereby give us approval to, set off any amounts you owe us against any amounts we might owe you.
- 5.6 COLLECTION OF PAST DUE AMOUNTS.** We may, at our option, collect from you certain undisputed past due amounts you owe to us. If you are more than sixty (60) days past due on any undisputed payment to us, we may send you written notice of such failure to pay. If you do not either pay the overdue amount or send us written notice disputing the amount overdue within ten (10) days of your receipt of our written notice, then you hereby authorize us to collect such amount from you as described in Article 5.11 hereof. Our optional collection rights set forth in this Article 5.6 are in addition to any other rights and remedies we may have hereunder for your failure to make payments when due.
- 5.7 INTERNET MEMBERSHIP AND BALANCE PAYMENT ADMINISTRATION FEE.** You agree to pay us an Internet membership and balance payment administration fee (the “Internet Membership Administration Fee”) for each customer online membership application (including, but not limited to, via mobile, Internet and other digital applications, but excluding applications made inside your Location via technology hardware provided by you) and for each balance payment for declined transactions that we process on your behalf that identifies your Location as the principle location for the customer membership. The Internet Membership Administration Fee shall be in an amount we shall specify to you under our Methods of Operation, which shall not exceed the then-

current Internet Membership Administration Fee in the United States. We may amend the Internet Membership Administration Fee from time to time during the Term of the Agreement in a manner generally consistent with amendments to the Internet Membership Administration Fee in the United States. The Internet Membership Administration Fee shall be payable in the same manner as the Continuing Fees due hereunder.

5.8 EFT ALTERNATIVE. For any payments to us that cannot be made using EFT as described in Articles 5.2 and 5.3 above, and for any other payments required to Franchisor or its affiliates hereunder, such payments must be wire-transferred to a bank account designated by us in writing (our “Bank Account”), which, at our election, may be located in the United States.

5.9 CURRENCY. All payments to us or our affiliates hereunder shall be made in Pesos, unless we notify you in writing that such payments must be made in United States dollars. Calculation of amounts payable to us or our affiliates under this Agreement shall be converted from Pesos to United States dollars or from United States dollars to Pesos at the electronic transfer selling rate for such currency quoted by Citibank N.A. or by another internationally recognized bank designated by us, which is of equivalent size and reputation, on the date payment is made. You will bear the cost of conversion to U.S. dollars and remittance of payments to our Bank Account. You shall, at your own cost, make application for, and obtain, any necessary permissions, approvals, or other authorization needed in order to make timely payment to our Bank Account in accordance with the provisions of this Agreement. In the event that any governmental authority having jurisdiction in the Country imposes restrictions on the transfer of funds or currency to places outside of the Country, we, in our business judgment, will have the option to require that you deposit all payments required under this Agreement to a Designated Account in the Country, and that payment of such accumulated amounts be made to us, pursuant to the terms of this Article 5, as soon as possible after any such currency restriction is no longer in effect or no longer applies to such payment.

5.10 CONSIDERATION FROM VENDORS.

(1) We and our Affiliates may, from time to time, (i) receive commissions or other consideration from certain System suppliers in connection with your purchases of goods, products, services and equipment, and (ii) receive or derive commission, revenue, or other similar payments or consideration, directly or indirectly, in connection with your purchase or use of goods, products, services, and equipment (collectively, “Vendor Revenue”). Notwithstanding anything else to the contrary, we hereby agree that we and our Affiliates will only derive Vendor Revenue with respect to:

- (i) the sale and placement of fitness equipment, whether sold or placed by us or by a third party;
- (ii) goods, products and services sold directly to you by a vendor in which we have a substantial ownership interest (whether by acquisition, joint venture or otherwise), provided such goods, products and services are sold to you for no greater than fair market value (which shall mean the total landed price, *i.e.*, include shipping costs, customs, taxes, etc.) and the margin on the goods, products, and services sold to you is in accordance with industry standards, if any; or
- (iii) goods, products and services we can require or permit you to purchase in connection with your **PLANET FITNESS** Business which are directly revenue-generating to your **PLANET FITNESS** Business (*i.e.*, not giveaway goods, products or services for which no incremental revenue may be earned by you).

(2) Notwithstanding this limitation on our ability to earn Vendor Revenue, we reserve the right to earn Vendor Revenue (in addition to the Vendor Revenue earned pursuant to (i), (ii), or (iii))

above) on certain goods, products and services we may identify in the future if, and to the extent, one hundred percent (100%) of such Vendor Revenue (excluding Vendor Revenue earned pursuant to (i), (ii), or (iii) above) is contributed directly to the NAF ("NAF Contribution"), provided (i) the NAF Contribution is not derived from otherwise available price reductions on such goods, products or services (e.g., vendor offers marketing funds to us but is unable or unwilling to further reduce price), or (ii) we determine, in our sole discretion, that the price reductions on such goods, products or services on a per **PLANET FITNESS** Business basis are *de minimis*. If no NAF is in place, we will contribute to you your share of such Vendor Revenue on a pro rata basis with other **PLANET FITNESS** Businesses which are not subject to an NAF in Mexico.

- 5.11 EFT AUTHORIZATION.** You hereby authorize us to withdraw via EFT or any other manner we prescribe the amounts owed described in Articles 5.2, 5.3, 5.6, 5.7, 9.3, 10.1, 10.2, and 15.5(2) hereof from (1) the Member Dues Draft, as received, collected and settled by your payment processor or by such other means as we may specify and/or (2) your Designated Account, as described by such identifying information that you provide in response to our request. You shall execute such documents as we require from time to time for such purpose.

6. TRAINING, ASSISTANCE, AND OPERATIONS MANUAL.

- 6.1 TRAINING.** Before the BUSINESS begins operating, we will furnish in the English language initial training on the operation of a **PLANET FITNESS** Business ("Initial Training") to you (or, if you are an Entity, your Responsible Owner and Approved Operator), and up to two (2) additional Owners or managers you elect to enroll in the training program, that we approve at no additional charge to you. Initial Training consists of a minimum of two (2) working days of training for you (or your Responsible Owner and Approved Operator), and your Owners or managers to be furnished at our training location or at an operating **PLANET FITNESS** Business. You (or your Responsible Owner and Approved Operator), and your Owners or managers are required to complete Initial Training to our satisfaction. If you are an existing franchisee and you have previously completed Initial Training, you will not be required to attend Initial Training again, however, we may require that certain of your management-level employees and that any new general manager complete Initial Training; provided that upon your request we may approve you as a certified trainer for such purposes if you meet our certified trainer requirements. You also must participate in all other activities required to operate the BUSINESS. You will be responsible for all travel and living expenses and compensation which you (or your Responsible Owner and Approved Operator) and your Owners and managers incur in connection with Initial Training. Your failure (or the failure of your Responsible Owner and Approved Operator) to complete Initial Training to our satisfaction constitutes an Event of Default under Article 15.2 hereof. At our option, we may have vendors or other designees provide certain training to you. We will, at our cost, provide access to our core training materials translated into Spanish.

- 6.2 REFRESHER TRAINING.** We may require you (or your Responsible Owner and Approved Operator) and/or previously trained and experienced management-level employees to attend periodic refresher training courses in the English language in the United States at such times and locations that we designate, and we may charge fees for such courses. We also may require you to pay us fees for training additional employees or new employees hired after your BUSINESS commences operations.

- 6.3 GENERAL GUIDANCE.** We may advise you from time to time regarding operating issues concerning the BUSINESS. Such guidance may be furnished in our Operations Manual, bulletins, newsletters, emails or other written materials and/or during telephone consultations and/or consultations at our office or the BUSINESS. In addition, we may furnish guidance to you with respect to:

- (1) standards, specifications and operating procedures and methods utilized by the BUSINESS;

- (2) purchasing required fixtures, furnishings, equipment, signs, products, materials and supplies;
- (3) advertising and marketing programs;
- (4) administrative, bookkeeping and accounting procedures; and
- (5) use of authorized and approved computer systems.

6.4 ON-SITE CONSULTATION AND ADDITIONAL GUIDANCE. During the Term of this Agreement, additional guidance may be provided in any of the following ways:

- (1) Internet and telephone consultation during such times as are outlined in the Operations Manual;
- (2) wholesaling services whereby we may ourselves act as an approved or designated source for products, merchandise, accessories, fixtures, furnishings, equipment, signs, etc.;
- (3) manufacturing services whereby we may manufacture, package and ship products, merchandise, accessories, fixtures, furnishings, equipment, signs, etc. to you;
- (4) ongoing marketing programs to fulfill our obligations in Article 10 of this Agreement;
- (5) meetings, seminars or conventions whereby we may get together with you and other **PLANET FITNESS** franchisees for business or social purposes;
- (6) research and development regarding our Methods of Operation; and/or
- (7) at your request, we may furnish additional guidance and assistance and, in such a case, may charge the *per diem* fees and charges we establish from time to time. If you request, or if we require, additional or special training, all of the expenses that we incur in connection with such training, including *per diem* charges and travel and living expenses for our personnel, will be your responsibility.

6.5 OPERATIONS MANUAL.

- (1) During the Term of this Agreement, at our cost we will provide to you access to our Operations Manual in English and in Spanish in comodatum (*free loan*), consisting of such materials that we furnish to franchisees from time to time for use in operating a **PLANET FITNESS** Business. The Operations Manual contains our Methods of Operation.
- (2) You may, at any time, propose to us changes in the Operations Manual to adapt the Operations Manual to the laws, customs, and market characteristics of the Country.
- (3) The Operations Manual may be modified in our sole discretion and from time to time to reflect changes in the law, marketplace or the System. You agree to keep apprised of updates we may make to the Operations Manual. In the event of a dispute relating to its contents, the English master copy of the Operations Manual we maintain at our principal office will be controlling. You may not at any time copy, duplicate, download, record or otherwise reproduce any part of the Operations Manual without our prior consent.
- (4) The Operations Manual communicated to you shall be deemed to be a part of this Agreement. You acknowledge and agree that the Operations Manual and other System communications may only be available on the Internet, the Designated Franchise Portal, our intranet system or in other electronic form. The Operations Manual (and each

translation and component thereof) constitutes an industrial secret (*secrets industriales*) under Article 82 and other applicable provisions of the Industrial Property Law of Mexico. You agree that these requirements are necessary to preserve the identity, reputation, value and goodwill of the System.

- (5) If any instruction provided in the Operations Manual violates any rule, law, or regulation, you agree to immediately (in any event, no later than within fifteen (15) days) inform us of such rule, law, or regulation. Notwithstanding anything to the contrary in this Agreement, you are not required to comply with any such instruction to the extent prohibited by applicable law.

6.6 DELEGATION. We have the right to delegate the performance of any portion or all of our obligations under this Agreement to our Affiliates, agents or independent contractors.

6.7 ENHANCEMENTS. You agree that all intellectual property right in any all ideas, trade names, trade and service marks, and other commercial symbols, concepts, procedures, techniques, processes, documents, manuals, marketing materials or marketing plans concerning the BUSINESS, whether or not protectable intellectual property, whether or not reviewed or approved by us, and whether created by or for you or your Owners or employees, as well as any adaptations and translations of the Operations Manual, (“Enhancements”), must be promptly disclosed to us and will automatically vest in us by way of present and future assignment by you and be, part of the System. If such Enhancements are or may be protected by Mexican copyright laws, they shall be considered as “*works-made-for-hire*” for us by you within the meaning of any applicable copyright law, including without limitation according to article 84 of the Mexican Federal Copyright Law (*Ley Federal del Derecho de Autor*). To the extent that any of such Enhancements are found by a court of competent jurisdiction not to be a “*work-made-for-hire*” within the meaning of article 84 of the Mexican Federal Copyright Law (*Ley Federal del Derecho de Autor*), then you hereby further agree to do all such acts, including executing any documents to vest such copyright in us, without any payment being made to you. If such Enhancements are or may be protected by Mexican industrial property laws, you hereby further agree to do all such acts, including executing any documents, to vest such industrial property rights in us, without any payment being made to you. Any goodwill associated with or arising from the use of such Enhancement and any intellectual property rights to such Enhancement, will inure to our exclusive benefit.

7. MARKS.

7.1 OWNERSHIP AND GOODWILL OF MARKS. Your right to use the Marks is derived solely from this Agreement and limited to your operation of the BUSINESS pursuant to and in compliance with this Agreement and the Methods of Operation. Your unauthorized use of the Marks is a breach of this Agreement and an infringement of our rights in and to the Marks. You acknowledge and agree that your usage of the Marks and any goodwill established by such use will be exclusively for our and our Affiliates’ benefit and that this Agreement does not confer any goodwill or other interests in the Marks upon you (other than the right to operate the BUSINESS in compliance with this Agreement). All provisions of this Agreement applicable to the Marks apply to any additional proprietary trademarks and service marks and commercial symbols we authorize you to use. You will not represent in any manner that you have any ownership in the Marks or the right to use the Marks except as provided in the Agreement and in the Operations Manual. You understand and acknowledge that the Trademark Owner has applied in the Country for registration of the Marks listed in Appendix A hereto and has taken and will take all steps necessary to preserve and protect the ownership of the Marks. You further acknowledge that, unless otherwise indicated in Appendix A, the Marks listed in Appendix A are not yet registered in the Country and that neither we nor the Trademark Owner shall be liable to you for any failure to obtain such registration.

7.2 LIMITATIONS ON YOUR USE OF MARKS. You agree to use the Marks as the sole identification of the BUSINESS, except that you agree to identify yourself as the independent owner and operator thereof in the manner we prescribe. You must properly attribute ownership of the

Marks to us and/or our Affiliate, as appropriate, and use the notices of trademark and service mark registrations that we specify. You may not use any Marks as part of any corporate or legal business name or as part of an Internet domain name, mobile application, Internet e-mail address, Internet website, or social media account or with any prefix, suffix or other modifying words, terms, designs or symbols (other than logos licensed to you hereunder), or in any modified form, nor may you use any Marks in connection with the performance or sale of any unauthorized services or products or in any other manner we have not expressly authorized in writing. You may not separately register any domain name, develop or operate any Internet websites, or develop or use any Internet Accounts without our prior written approval. You and your Affiliates will not apply, in any country, or cause any third party to apply, or assist, directly or indirectly, any third party to apply, in any country, for registration of any trademark which is the same as, or confusingly similar to, any of the Marks. Any such application to register any of the Marks or any other trademark used in connection with the BUSINESS shall be considered our property and you agree to transfer, assign, or otherwise convey such applications or registrations immediately upon our request and sign any documents we deem necessary in connection thereof. No Marks may be used in any advertising concerning the transfer, sale or other disposition of the BUSINESS or an ownership interest in you. You agree to display the Marks in the manner we prescribe at the BUSINESS, on supplies or materials we designate and in connection with forms and advertising and marketing materials. You agree to give such notices of trademark and service mark registrations; i.e., “®”, “™”, as we specify and to obtain any fictitious or assumed name registrations required under applicable law. Immediately upon termination or expiration, without your acquisition of a successor franchise, of this Franchise Agreement, you agree to take such action and sign whatever documents as may be required to cancel (a) all fictitious or assumed names or equivalent registrations relating to your use of any Marks, and (b) the recording of the Summary of Franchise Agreement referred to in Article 7.5 hereof. You may not authorize any vendor, commercial partner or other third party to use the Marks in any manner whatsoever, as you do not have sufficient rights in the Marks to do so. You may not imply, suggest, portray, or otherwise hold yourself out as having such rights to sublicense the Marks to any third party. Any such purported authorization by you shall be void and of no effect and constitutes a breach of this Agreement. You agree that, in addition to all of our other rights and remedies available hereunder, you will indemnify us for our costs (including, but not limited to, outside legal fees) in causing the cessation, takedown and removal of such unauthorized usage of the Marks.

- 7.3 TRADEMARK ACTIONS AND CLAIMS.** You agree to notify us immediately of any apparent infringement or challenge to your use of any Marks, or of any claim by any person of any rights in any Marks, and agree not to communicate with any person other than us, our attorneys and your attorneys in connection with any such infringement, challenge or claim. We have the right to take such action as we deem appropriate and the right to control exclusively any litigation, any proceeding in any Country trademark office or any other administrative proceeding arising out of any such infringement, challenge or claim or otherwise relating to any Marks. We and our Affiliates have the right, but not the obligation, to take action against uses by others that may constitute infringement of the Marks. You agree to sign any and all instruments and documents, render such assistance and do such acts and things as, in the opinion of our attorneys, may be necessary or advisable to protect and maintain our interests in any litigation, proceeding in any Country trademark office, or other proceeding or otherwise to protect and maintain our interests in the Marks, including, but not limited to, becoming a nominal party to any legal action.
- 7.4 DISCONTINUANCE OF USE OF MARKS.** If it becomes advisable at any time for us and/or you to modify or discontinue the use of any Marks and/or use one or more additional or substitute trademarks or service marks, you agree to comply with our directions promptly after receiving notice thereof. We will not be obligated to reimburse you for any expenses or loss of revenue attributable to any modified or discontinued Marks or for any expenditures you make to promote a modified or substitute trademark or service mark.
- 7.5 SUMMARY OF FRANCHISE AGREEMENT.** You agree to execute the Summary of Franchise Agreement attached to this Agreement as Appendix F in both Spanish and English concurrently with the signing of this Agreement for the purpose of registering you as an authorized user of the

Marks with the Mexican Institute of Industrial Property (*Instituto Mexicano de la Propiedad Industrial*) (“IMPI”) or other successor governmental authority and evidencing compliance with articles 245 and 246 of the Mexican Federal Law for the Protection of the Industrial Property (*Ley Federal de Protección a la Propiedad Industrial*). In the event of any inconsistency, the terms of this Agreement shall control in all respects over the terms of the Summary of Franchise Agreement, which shall be ancillary to this Agreement. You also agree to cooperate with us to register you as an authorized user of the Marks with IMPI or such other successor governmental authority and to cancel such registration upon demand by us or upon termination or expiration of this Agreement. You hereby authorize us to take any other action necessary or convenient in connection with the registration and cancellation of the Summary of Franchise Agreement before IMPI, in accordance with Articles 239, 245 and all other applicable provisions of the Mexican Federal Law for the Protection of the Industrial Property (*Ley Federal de Protección a la Propiedad Industrial*), Article 10 and other applicable Articles of the Regulations to such law. You agree to execute an irrevocable special power of attorney substantially in the form attached to the Summary of Franchise Agreement, authorizing us and/or our designees to register the Summary of Franchise Agreement and to cancel said registration with the IMPI upon termination for any reason or expiration of this Agreement or upon demand by us.

- 7.6** **INDEMNIFICATION OF FRANCHISEE.** We agree to indemnify you against, and to reimburse you for, all damages for which you are held liable in any proceeding arising out of your authorized use of any Mark pursuant to and in compliance with this Agreement and, except as provided herein, for all necessary and appropriate costs you incur in defending any such claim brought against you, provided that (i) you have timely notified us of such claim and (ii) you and your Affiliates are in compliance with this Agreement and all other agreements entered into with us or any of our Affiliates. We are entitled to prosecute, defend and/or settle any proceeding arising out of your use of any Mark pursuant to this Agreement and, if we undertake to prosecute, defend and/or settle any such matter, we have no obligation to indemnify or reimburse you for any fees or disbursements of any legal counsel retained by you.

8. CONFIDENTIAL INFORMATION.

- 8.1** **CONFIDENTIAL INFORMATION.** We possess (and will continue to develop and acquire), and may disclose to you, certain confidential information, trade secrets, and industrial secrets (the “Confidential Information”) relating to the development and operation of **PLANET FITNESS** Businesses, which may include (without limitation):

- (1) location selection criteria, location analytics, and plans and specifications for the development of **PLANET FITNESS** Businesses;
- (2) methods, formats, specifications, standards, systems, procedures, the System, Methods of Operation, the Operations Manual, any other proprietary materials, the sales and marketing techniques used, and knowledge of and experience in developing and operating **PLANET FITNESS** Businesses;
- (3) sales, marketing and advertising programs and techniques for **PLANET FITNESS** Businesses;
- (4) specifications and pricing for and suppliers of certain fixtures, furnishings, equipment, products, materials and supplies;
- (5) operating results and financial performance of **PLANET FITNESS** Businesses;
- (6) data and analytics we (or a third-party we authorize) may share with you related to **PLANET FITNESS** Businesses;

- (7) information concerning the specific selection and development of potential future **PLANET FITNESS** Business locations by third parties;
- (8) methods of training and management relating to **PLANET FITNESS** Businesses;
- (9) computer systems, software programs and other technology used or useful in **PLANET FITNESS** Businesses; and
- (10) any and all other information related to the BUSINESS or **PLANET FITNESS** Businesses generally that is labeled proprietary or confidential. This includes, without limitation, all customer and membership lists and information for the BUSINESS and **PLANET FITNESS** Businesses generally.

Confidential Information does not include information or material which (i) is or becomes generally known to the public other than through a breach of this Agreement; (ii) at the time it was first disclosed to a party, was already in that party's lawful possession; (iii) is developed independently by a party without using the Confidential Information; or (iv) is disclosed to a party by a third party entitled to disclose it without any further obligations of confidentiality.

- 8.2 FOR BUSINESS USE ONLY.** We will disclose our Confidential Information to you solely for your use in the operation of your BUSINESS. The Confidential Information is proprietary and includes our trade secrets and industrial secrets (*secretos industriales*), in accordance with the terms of Article 163 and other applicable provisions of the Mexican Federal Law for the Protection of the Industrial Property (*Ley Federal de Protección a la Propiedad Industrial*). During the Term, during any successor term, and for five (5) years thereafter: (a) you and your Owners may not use the Confidential Information in any other business or capacity (you and your Owners acknowledge such use is an unfair method of competition); (b) you and your Owners must strictly maintain the confidentiality of the Confidential Information and shall not disclose or permit the Confidential Information to be disclosed to third-parties; (c) you and your Owners may not make unauthorized copies of any portion of the Confidential Information disclosed in written, electronic or other form; (d) you and your Owners must implement all procedures we prescribe from time to time to prevent unauthorized use or disclosure of the Confidential Information; such procedures include, but are not limited to, (i) the use of nondisclosure agreements with your Owners, officers, directors, agents, legal representatives, employees, managers, assistant managers shift supervisors, and other Personnel to which you disclose Confidential Information, copies of which you and your Owners must deliver to us upon our request; and (ii) the de-activation of access by your Personnel to the Designated Franchise Portal and any other software, computer systems and electronic mailing lists, containing Confidential Information upon the termination of their employment or engagement with you; and (e) you may disclose the Confidential Information to your officers, directors, agents, legal representatives, employees and other Personnel, only to the extent necessary fulfill your obligations under this Agreement. At the end of the Term, without your acquisition of a successor franchise, upon our request or in accordance with the procedures we may specify in the Operations Manual, you and your Owners must destroy or deliver to us all or certain Confidential Information in your possession. You acknowledge and agree that you will not acquire any interest in Confidential Information, other than the right to utilize Confidential Information disclosed to you in operating the BUSINESS during the Term of this Agreement, and that the use or duplication of any Confidential Information in any other business will constitute an unfair method of competition and a violation of this Agreement. You acknowledge you are aware that (i) the Confidential Information may relate to publicly traded securities, and (ii) the restrictions imposed by applicable securities laws restrict trading in securities while in possession of material non-public information and on communication of such information when it is foreseeable that the recipient is likely to trade such securities, in reliance on such information. You and your Owners agree not to trade, either directly or through other persons, based on Confidential Information in a manner that would violate the securities law of any applicable jurisdiction including, without limitation, the United States securities laws. If you become legally compelled by a judicial or legislative order of a governmental authority or court of competent jurisdiction to disclose any of the Confidential Information, you

shall provide us with prompt written notice of such requirement before you disclose any Confidential Information so that we may seek a protective order or other appropriate remedy and/or waive compliance with the terms of this Article 8.2. Upon our request, you shall assist us in contesting such request for disclosure. If a protective order or other remedy is not obtained, or we waive compliance with this Article 8.2, you agree to furnish only that portion of the Confidential Information you are advised by counsel is legally required to be disclosed and to seek assurance that confidential treatment will be afforded to such Confidential Information.

9. OPERATIONS.

9.1 COMPLIANCE WITH METHODS OF OPERATION. You acknowledge that each and every aspect of the interior and exterior appearance, layout, decor, services and operation of your BUSINESS is important to protect our reputation and goodwill and to maintain uniform operating standards under the Marks. Any required standards exist to protect our interest in the System and the Marks for other franchisees and to create a consistent positive member experience and not to control the day-to-day operation of the BUSINESS or reserve or establish any control, or the right or duty to take control, over those matters that are clearly reserved to you, which include employment matters. You agree to comply with all mandatory Methods of Operation (whether contained in the Operations Manual or any other communication), including, but not limited to:

- (1) design, layout, decor, appearance and lighting; periodic maintenance, cleaning, pest control and sanitation; periodic remodeling; replacement of obsolete or worn out leasehold improvements, fixtures, furnishings, equipment and signs; periodic painting; equipment repair (including requirements to use only original equipment manufacturer parts); and use of interior and exterior signs, emblems, lettering and logos and the illumination thereof;
- (2) types, models and brands of required fixtures, furnishings, equipment, signs, materials and supplies;
- (3) required or authorized products, product categories and membership types;
- (4) requirements and guidelines for membership agreements, membership policies, member billing practices and member rules;
- (5) designated suppliers or Approved Suppliers (which may be limited to or include us or our Affiliates) of fixtures, furnishings, equipment, signs, products, materials, supplies, and services (including, but not limited to, content licensing, technology and marketing services) and disapproved suppliers (including, but not limited to, disapproved suppliers of business brokerage and real estate brokerage services);
- (6) terms and conditions of the sale and delivery of, and terms and methods of payment for products, materials, supplies and services including direct labor, that you obtain from us, our Affiliates or others;
- (7) sales, marketing, advertising and promotional programs and materials and media used in such programs, including mandatory sales and promotions and in-club advertising;
- (8) use and display of the Marks;
- (9) compliance with **PLANET FITNESS** philosophy and mission including, without limitation, compliance with the Judgement Free Zone™ philosophy and unlimited free group and other fitness instruction;

- (10) minimum staffing levels for the BUSINESS and matters relating to managing the BUSINESS; operational training, dress and appearance for both management and hourly employees; and sale procedures and customer service;
- (11) days and hours of operation of the BUSINESS;
- (12) participation in market research and testing and product and service development programs;
- (13) acceptance of credit cards, other payment systems and check verification services;
- (14) bookkeeping, accounting, data processing and record keeping systems and forms; methods, formats, content and frequency of reports to us of sales, revenue, financial performance and condition; and furnishing tax returns and other operating and financial information to us;
- (15) procedures, policies and required formats for submitting information to us and requesting documents from us;
- (16) types, amounts, terms and conditions of insurance coverage required to be carried for the BUSINESS and standards for underwriters of policies providing required insurance coverage; our and our Affiliates' protection and rights under such policies as an additional named insured; required or impermissible insurance contract provisions; assignment of policy rights to us; periodic verification of insurance coverage that must be furnished to us; our right to obtain insurance coverage for the BUSINESS at your expense if you fail to obtain required coverage; our right to defend claims; and similar matters relating to insured and uninsured claims;
- (17) complying with applicable laws; obtaining required authorization, certifications, licenses and permits; adhering to good business practices; observing high standards of honesty, integrity, fair dealing and ethical business conduct in all dealings with customers, suppliers and us; and notifying us if any action, suit or proceeding is commenced against you or the BUSINESS; and
- (18) regulation of such other aspects of the operation and maintenance of the BUSINESS including, but not limited to, maximum and minimum prices charged for products and services offered through the BUSINESS, that we determine from time to time to be useful to preserve or enhance the efficient operation, image or goodwill of the Marks and **PLANET FITNESS** Businesses.

For the avoidance of doubt, mandatory Methods of Operation do not include the scheduling or terms and conditions of employment for your employees. They also do not include personnel policies or procedures, which **PLANET FITNESS** may make available as examples for franchisees' reference. You alone will determine to what extent, if any, these example policies and procedures might apply to your BUSINESS and comply with applicable law. You agree that the Methods of Operation prescribed from time to time in the Operations Manual, or otherwise communicated to you in writing or other tangible form, constitute provisions of this Agreement as if fully set forth herein

9.2 MODIFICATION OF METHODS OF OPERATION. We may modify the Methods of Operations from time to time to reflect changes in the law, marketplace or the System or to accommodate regional or local variations. Any such modifications may obligate you to invest additional capital in the BUSINESS and/or incur higher operating costs; provided, however, that such modifications will not alter your fundamental status and rights under this Agreement. If you request a modification to the Operations Manual to accommodate regional or local variations, we will consider such request. Because complete and detailed uniformity under many varying

conditions may not be possible or practical, we specifically reserve the right and privilege, in our sole discretion and as we may deem in the best interests of all concerned in any specific instance, to vary standards for any franchisee based upon the peculiarities of a particular site or circumstance, density of population, business potential, population of trade area, existing business practices, or any other condition we deem to be of importance to the successful operation of such franchisee's business. You acknowledge that our practices and application of standards may vary and that you are not entitled to require us to grant to you a like or similar variation as granted to another franchisee.

9.3 CONDITION OF YOUR BUSINESS.

- (1) *General Condition.* You must maintain your BUSINESS's condition and appearance so that it is attractive, clean and efficiently operated in accordance with our Methods of Operation. You agree to make such modifications and additions to your BUSINESS's layout, decor, operations, and general theme as we require from time to time, including replacement of worn-out or obsolete fixtures, equipment, furniture, and signs, repair of the interior and exterior and appurtenant parking areas, and periodic cleaning and redecorating. You may not make any modification to the BUSINESS premises, including but not limited to, expansions or reductions in size, or replacements, relocations or alterations of fixtures, equipment, furniture or signs without our prior written consent. If you do so, we may, in addition to our other rights and remedies hereunder, require you, at your expense, to restore the BUSINESS to its prior condition. If at any time the general state of repair, appearance or cleanliness of your BUSINESS, or its fixtures, equipment, furniture, or signs, do not meet our standards, we may notify you and specify the action you must take to correct such deficiency. If, within ten (10) days after receiving such notice, you fail or refuse to initiate and thereafter continue in good faith and with due diligence a *bona fide* program to complete such required maintenance, we have the right (in addition to our other rights and remedies hereunder), but not the obligation, to enter the Location and do (or contract with a third party to do) such maintenance on your behalf and at your expense. Following completion of such maintenance, we may collect from you an amount equal to the actual cost of the maintenance plus any administrative costs we actually incur as provided in Article 5.11 hereof.
- (2) *Re-equipment.* We reserve the right to require you to replace and update at your BUSINESS: (a) all cardio equipment not more often than every five (5) years, as we determine, in our discretion, based on usage and brand standards, and (b) all other fitness and amenity equipment not more often than every seven (7) years, as we determine, in our discretion, based on usage and brand standards, and as further specified in the Operations Manual or otherwise in writing from time to time. We will advise you at least six (6) months prior to requiring replacement of your fitness or other equipment. You shall comply with the procedures specified in the Operations Manual for the placement and extraction of equipment, which may require a temporary closure of the BUSINESS.
- (3) *Remodeling.* You must periodically upgrade and/or remodel your BUSINESS premises pursuant to our plans and specifications (which may include the placement of additional fitness and amenity equipment), provided, however, that with the exception of signage, we will not require substantial remodeling more often than every five (5) years. We will advise you at least six (6) months prior to requiring any substantial remodeling of the BUSINESS. For clarity, replacement or takedown of construction or other items that were in violation of our specifications and brand standards when installed, or remediating an unapproved modification to the BUSINESS premises, is not considered a remodel.
- (4) *Late-Term Requirements.* If we notify you of requirements to remodel or replace your equipment in the last two (2) years of the Term of the Agreement and you do not wish to acquire a successor franchise, you may be excused from such requirements provided that: (a) you have remodeled the BUSINESS and upgraded your fitness and amenity equipment

as required during the Term of this Agreement and (b) you enter into an agreement, in form and substance acceptable to us, in which, among other things, (i) you and we agree to mutually terminate the Franchise effective as of the expiration of the Term, (ii) you agree to comply with our closure and de-branding requirements, (iii) you and your Owners ratify your post-termination covenants to us and confirm the survival of provisions intended to survive the termination this Agreement, and (iv) you and your Owners release all claims arising from the BUSINESS against us and our Affiliates.

- (5) *De-branding.* You must comply with our then-current de-branding requirements in connection with the replacement or removal of equipment, signage or other items that contain any of the Marks. If you wish to sell or donate used equipment that contains the Marks, you must either (a) de-brand the equipment and remove all Marks (including, but not limited to, the purple and yellow color scheme) prior to selling or donating such equipment and provide us with written certification that such de-branding has been completed or (b) donate the equipment through charitable donation programs that we have designated in our Operation Manual or approved in writing. You must use the suppliers we designate to re-sell used equipment. For the avoidance of doubt, your failure to comply with any of the requirements of this Article 9.3(5) is a breach of this Agreement, and, you agree, in addition to all of our other rights and remedies available hereunder, you will indemnify us for our costs in attempting to de-brand the equipment including, but not limited to, our costs to purchase from third parties equipment you failed to properly de-brand. You agree to cooperate with all such efforts.
- (6) *Casualty.* If your BUSINESS is damaged or destroyed by fire or other casualty, you must initiate within thirty (30) days of such damage or destruction (and continue until completion) all repairs or reconstruction to restore your BUSINESS to its original condition. If, in our judgment, the damage or destruction is of such a nature that it is feasible, without incurring substantial additional costs, to repair or reconstruct your BUSINESS in accordance with the then-standard **PLANET FITNESS** layout and decor specifications, we may require you to repair or reconstruct your BUSINESS in accordance with those specifications.

9.4 PRODUCTS AND SERVICES.

- (1) *Required Products and Services.* Your BUSINESS will offer for sale such services and products related to the **PLANET FITNESS** concept that we determine from time to time to be appropriate for your BUSINESS. You further agree that your BUSINESS will not, without our written approval, offer any services or products (including, but not limited to, promotional items, pilots or programs) not then authorized in an ADA with you or your affiliate or otherwise by us. Your BUSINESS may not be used for any purpose other than the operation of a **PLANET FITNESS** Business in compliance with this Agreement. You agree that your BUSINESS will offer courteous and efficient service and a pleasant ambiance, consistent with your acknowledgements in Article 1.2 hereof. You may offer personal training only if permitted by our then-current personal training policies or as we otherwise approve in writing.
- (2) *Sources of Supply.* Your BUSINESS will use and/or offer for sale only such services, products, uniforms, forms, labels and other supplies that conform to our specifications and quality standards and/or are purchased from suppliers approved by us (which in either instance may include or be limited to us and/or our Affiliates). We may impose limits on the number of approved suppliers, and may designate us or an Affiliate as the sole supplier for fitness equipment or other products or services. We may require you to enter into and update agreements with designated suppliers (which may include our Affiliates or us). Updates to these agreements may be automatically effective upon thirty (30) days' written notice to you or such shorter period of time as you and the designated supplier may agree. We may modify the list of approved brands and/or suppliers from time to time. After notice

of such modification, you may not reorder any brand or reorder from any supplier which is no longer approved. It is our expectation that you will share feedback on suppliers directly with us and coordinate with us for the purpose of addressing any systemic challenges that may arise with a particular supplier. You agree to purchase products and services for the BUSINESS in the manner set forth in the Operations Manual, which may include, among other requirements, the obligation to place all such orders via our Designated Franchise Portal or another system. You hereby acknowledge that designated suppliers may regularly share your account information with us.

- (3) *Proposed Suppliers.* You may propose to use a supplier in the Country that is not then approved by us. In evaluating the proposed supplier, we may consider a variety of factors, including, but not limited to, the prospective supplier's: (a) ability to meet our standards and specifications, (b) standards of service, (c) capacity to provide adequate and timely supply, (d) commercial reputation, (e) pricing and shipping costs, (f) data security and privacy policies and practices and (g) relationships, if any, with any Competitive Business. We may consider your request in the context of the System as a whole and may evaluate its potential impact on our existing commercial commitments to and relationships with other vendors. Our evaluation and approval or denial of your request will be made in our sole discretion. We will notify you of our decision. We have the right to require you to reimburse our reasonable out-of-pocket expenses in reviewing your request. We may impose various requirements on the proposed supplier including, but not limited to, following our then-current new supplier application process, complying with our then-current supplier conflict of interest policy and, if approved, entering into an agreement with us. If approved, we may allow other franchisees to use such supplier and require such supplier to offer products and services on the same terms to all franchisees.
- (4) *Build-Out Materials.* Notwithstanding any other provision in this Agreement to the contrary, the following provisions will apply to Build-Out Materials:
- (a) You may request our approval to source Build-Out Materials from any supplier in Mexico. You understand that we require adequate time to evaluate the request. We will not unreasonably delay, deny or condition our approval of the request if the proposed Build-Out materials meet (as determined in our discretion) our trade dress standards, and substantively meet our functional performance requirements (e.g., resistance and durability wear and tear, etc.).
 - (b) In addition, you may source unbranded materials and finishes locally that substantively meet our performance and trade dress standards without following our formal approval process if you provide us with adequate advance notice of the items involved and we mutually agree on the criteria required to evaluate the ongoing use of these materials and finishes. For example, if you wish to use floor tile that meets our durability standards but is mass produced in a color slightly off from our standard, we would follow this less formal process.
 - (c) At your request, we (including periodically one person from our senior management team) will meet with you on a regular basis (but not more frequently than once per month) to discuss the process regarding sourcing and approval of Build-Out Materials. At the meeting, we will review factors for consideration in the approval process, such as for example (i) communication strategies, (ii) ways to streamline the process, and (iii) availability and costs of materials, including situations where the alternative source for such materials would have a substantially higher cost differential.
- (5) *Inventory and Testing.* You must maintain at all times an inventory of approved merchandise related to the **PLANET FITNESS** concept sufficient in quantity, quality and variety to realize your BUSINESS's full potential. We may conduct market research to

determine consumer trends and salability of new services and products. You agree to cooperate by participating in our market research programs; by test marketing new services and merchandise in your BUSINESS and providing us timely reports and other relevant information regarding such market research. You must purchase a quantity of such test products and make all effort to sell them.

- (6) *Disclaimer of Warranty.* WE AND OUR AFFILIATES MAKE NO WARRANTY AND EXPRESSLY DISCLAIM ALL WARRANTIES, INCLUDING WARRANTIES OF TITLE, NON-INFRINGEMENT, MERCHANTABILITY AND FITNESS FOR ANY PARTICULAR PURPOSE, WITH RESPECT TO FIXTURES, FURNITURE, EQUIPMENT, TECHNOLOGY SYSTEMS (INCLUDING WITHOUT LIMITATION POS SYSTEMS, BILLING SYSTEMS, OUR INTERNET WEBSITE AND REQUIRED OR APPROVED SOFTWARE), SUPPLIES, OR OTHER APPROVED OR REQUIRED ITEMS. WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, WE MAKE NO WARRANTY THAT ANY TECHNOLOGY SYSTEMS WILL OPERATE UNINTERRUPTED OR ERROR FREE.

- 9.5 **COMPLIANCE WITH LAWS.** You must maintain in force in your name all required authorization, licenses, permits and certificates relating to the operation of your BUSINESS. You must operate your BUSINESS in full compliance with all applicable Mexican Official Standards (*Normas Oficiales Mexicanas* - “NOMs”), including those applicable to safety, employment, hygiene, and health, as well as any other applicable laws, ordinances and regulations. Without limiting the generality of the foregoing, you must comply with (i) Federal Consumer Protection Law of Mexico (*Ley Federal de Protección al Consumidor*), its regulations and any NOMs derived therefrom, and (ii) the Mexican Data Protection Legislation. You agree to refrain from any business or advertising practice which may be injurious to our business, to the business of other **PLANET FITNESS** Businesses or to the goodwill associated with the Marks.

- 9.6 **GENERAL CONDUCT.** In all dealings with us, as well as your customers, suppliers, lessors and the public, you must adhere to the highest standards of honesty, integrity, fair dealing and ethical conduct. You agree to cooperate in good faith with other **PLANET FITNESS** franchisees in the Country and elsewhere. You and your Owners must conduct the BUSINESS in a manner consistent with all applicable laws and the ethical standards for **PLANET FITNESS** franchisees included in our Operations Manual. You will not, and will not allow your Owners or your employees to, engage in conduct that, in our determination, may result in or tends to (a) degrade, offend, shock or insult the community, (b) ridicule public morals or decency, (c) prejudice us, our Affiliates, the Marks or the System generally, or (d) harass, bully or demean our personnel, the personnel of your vendors, or any **PLANET FITNESS** members. Notwithstanding the foregoing, the above requirement is not intended to prohibit or restrict any activity which prohibition or restriction violates your employees’ right to engage in protected concerted activity under applicable laws.

- 9.7 **PERSONNEL.** We neither dictate nor control labor or employment matters for franchisees and/or their employees, including in connection with your operation of the BUSINESS. We do not retain any reserved authority to control the terms and conditions of employment for franchisees and/or their employees. You are responsible for taking such measures as are needed to ensure that your employees understand and acknowledge that they are not our employees, including without limitation, requiring your employees to sign a written acknowledgement that you are an independently owned and operated franchisee and their employer in a form we specify in the Operations Manual or otherwise in writing from time to time. You are solely responsible for all employment decisions with respect to your personnel, including hiring, firing, scheduling, compensation, training, supervision and discipline, regardless of whether you receive advice from us on any of these subjects. Should you receive any such advice from us, you alone will determine to what extent, if any, you will implement our suggestions.

- 9.8 **INSURANCE.** You must procure and maintain in force from an insurance company with an “A-” or better rating by AM Best and a Financial Rating of “VIII” or better primary insurance coverage

as follows: commercial general liability insurance (including coverage for any consolidated claims against us and our Affiliates); Special Form property insurance, including fire and extended coverage, vandalism and malicious mischief insurance for one hundred percent (100%) of the replacement value of your BUSINESS and its contents; and such other insurance policies, such as business interruption insurance, abuse and molestation insurance, tanning insurance, employment practices liability insurance, automobile insurance, unemployment insurance, cyber liability insurance, and excess umbrella insurance as we specify from time to time and as required by law. For any interruption in the operation of the BUSINESS, whether or not you have sufficient insurance coverage, you shall continue to pay us, during such period of interruption, Continuing Fees based on the average monthly Continuing Fees paid by you during the twelve (12) months immediately preceding the period of interruption. Your insurance must also cover identity theft and theft of personal information, including the costs of notifying members whose information has been compromised. All insurance policies must be issued by carriers approved by us (as set forth in the Operations Manual or otherwise in writing); contain such types and minimum amounts of coverage, exclusions and maximum deductibles as we prescribe in our current Operations Manual or otherwise in writing from time to time; name us and our Affiliates, through a blanket additional insured endorsement, as additional insureds; provide for thirty (30) days prior written notice for any reduction in insurance limits, downgraded insurance paper or, cancellation or expiration of such policy; and include such other provisions as we may require from time to time. All insurance policies must contain a waiver of all subrogation rights against us, our Affiliates and our and their successors and assigns. You must furnish us with original or duplicate copies of all insurance policies, certificates of insurance or other proof of insurance acceptable to us on an annual basis, within thirty (30) days of issuance thereof. We reserve the right to request schedules of insurance and/or insurance policy copies to review for compliance. You will have a period of time, and in no event less than thirty (30) days, within which to comply with any changes in our insurance coverage requirements. If you fail or refuse to maintain any required insurance coverage, or to furnish satisfactory evidence thereof, we, at our option and in addition to our other rights and remedies hereunder, may obtain such insurance coverage at your expense. If we do so, you must fully cooperate with us in our effort to obtain such insurance policies and reimburse us any costs and premiums we incur within five (5) Business Days as of the applicable request. Your obligation to maintain insurance coverage is not diminished in any manner by reason of any separate insurance we may choose to maintain, nor does it relieve you of your indemnification obligations under this Agreement.

- 9.9 QUALITY CONTROL.** We have the right to establish “quality control” programs, such as a “secret shopper” program, a customer satisfaction measurement program, and/or a “customer intercept” program, to ensure the highest quality of service and products in all **PLANET FITNESS** Businesses. You shall participate in any such quality control programs, and bear your pro-rata share, as determined by us, of the costs of any such program.
- 9.10 PRICING POLICIES.** We reserve the right to establish prices for the products and services you sell, both minimum and maximum, subject to applicable law.
- 9.11 MEMBER DUES POLICIES.** All rates, discounts, and promotions are subject to our prior written approval.
- 9.12 RECIPROCAL MEMBERSHIP.** You must participate fully in any reciprocal access program (currently the Black Card program and Pre-Sale access program, as we may modify from time to time) and/or customer loyalty program(s) we may establish, in accordance with the policies and procedures set forth in the Operations Manual, through communications from us and as modified from time to time. You agree and acknowledge that for any reciprocal usage by **PLANET FITNESS** members of other franchisees, us or our Affiliates or when a person redeems any membership benefits or other customer loyalty program benefits at your BUSINESS, you are not entitled to reimbursement for membership fees or the cost of goods or services provided to the member as a reciprocal access member or under any customer loyalty program and that your BUSINESS benefits from this arrangement. Currently, (a) reciprocal access members of other

PLANET FITNESS Businesses each have access to your BUSINESS up to ten (10) times per month and your reciprocal access members will each have access to other **PLANET FITNESS** Businesses up to ten (10) times per month and (b) all members of other nearby **PLANET FITNESS** Businesses in Pre-Sale will have full access to your BUSINESS during Pre-Sale and your members will have full access to other nearby **PLANET FITNESS** Businesses during your Pre-Sale. Subject to applicable law, we reserve the right to require you to charge a maximum or minimum day fee to reciprocal access members of other **PLANET FITNESS** Businesses visiting a club outside of the country in which such member's home is located.

- 9.13** **MEMBER TRANSFER POLICY AND MEMBER ACQUISITION.** You agree to comply with the member transfer policy as we establish from time to time. You acknowledge and agree that upon a transfer, the member's ongoing monthly dues and annual fees shall be transferred to the new location. If a membership is prepaid and is permitted to transfer pursuant to the member transfer policy, you agree to service the remaining prepaid term. Any acquisition of membership lists or members from a Competitive Business is subject to our prior written approval, in our sole discretion. If approved, such acquisition must be executed in accordance with the policies and procedures for the acquisitions of Competitive Businesses set forth in the Operations Manual.

9.14 **DATA SECURITY AND DATA PRIVACY.**

- (1) *Data Events.* You shall use your best efforts to protect your customers and the System against a cyber-event including, without limitation, a data breach or other identity theft or theft, misuse, unauthorized access, or improper handling of personal or healthcare information (collectively, a "Data Event"). You shall establish safeguards against the loss, theft, mishandling, or improper alteration or disclosure of data and unauthorized access to your systems that are at least as rigorous as current industry best practices, including, but not limited to, encryption and redaction practices, and comply with the Mexican Data Protection Legislation. If a Data Event occurs, regardless of whether such event affects only the BUSINESS, in addition to any obligations you may have under applicable law, you shall notify us as soon as possible and, in any event, no later than within twenty-four (24) hours following the Data Event. We reserve the right to perform and/or control all aspects of the response to such event including, without limitation, the investigation, containment and resolution of the event and all communications with the System, vendors and suppliers, members, law enforcement agencies, regulatory authorities, and the general public. Our control of the response may potentially affect or interrupt operations of the BUSINESS but does not create any additional rights for you, entitle you to damages or relieve you of your indemnification obligations pursuant to Article 18.4. You shall pay us an amount equal to our out of pocket costs and expenses incurred in responding to and remedying any Data Event arising from the BUSINESS, from your actions or inactions or from the actions or inactions of your Personnel. Notwithstanding our right to perform and/or control all aspects of the response to a Data Event, we agree to coordinate such response with you and your insurance carrier(s) and to cooperate with your insurance carrier(s) regarding insurance coverage of such Data Event to the extent practicable under the circumstances.
- (2) *Data Security and Privacy Standards.* You shall at all times comply with (a) the Payment Card Industry Data Security Standards, (b) the Mexican Data Protection Legislation, (c) the Payment Rules, (d) regional, national, state and municipal laws, regulations and norms relating to data and/or personal information, privacy, data security and security breaches, and, if applicable to you, laws implementing the European General Data Protection Regulation and the California Consumer Privacy Act, (d) the NACHA ACH Security Framework, and (f) our security policies and guidelines, all as may be amended from time to time ((a)-(f) collectively, "Data Rules"). You shall fully cooperate with us and our Affiliates in meeting our compliance obligations under applicable Data Rules and refrain from any action that may cause us or any of our Affiliates to violate any applicable Data Rule. You shall notify us immediately (in any event, no later than within five (5) days) in

the event you discover any potential issues regarding your or our non-compliance under the Data Rules. We may designate certain third-party consultant(s) to administer our data security program and evaluate your compliance with the aforementioned standards. You must meet promptly the requirements of any such consultant(s) and maintain those certifications of compliance that we deem appropriate in our discretion. You are expected to obtain advice from appropriate legal and security consultants to ensure that you operate your Business at all times in full compliance with the Data Rules. You shall not publish, disseminate, implement, revise, or rescind a data privacy policy/notice without our prior consent, except as follows: if there is a conflict between our standards and policies/notices pertaining to the Data Rules and actual applicable law, you shall: (a) comply with the requirements of applicable law; (b) immediately give us written notice of said conflict; and (c) promptly and fully cooperate with us and our counsel in determining the most effective way, if any, to meet our standards and policies pertaining to the Data Rules within the bounds of applicable law.

9.15 TECHNOLOGY.

- (1) *Technology Infrastructure.* You must have Internet access and an e-mail address. You will use an e-mail address to send and receive e-mail and attachments on the Internet. In addition to the requirements in Articles 4.5 and 4.6, you agree to purchase or lease, at your expense, such computer hardware, software, POS systems, billing systems, related accessories, network accessories, peripheral equipment, and services as we may specify for the purpose of, among other functions, recording financial and customer data, communicating with us, and operating the BUSINESS. You agree, at your expense, to establish the information technology infrastructure and processes that we require regarding, without limitation, your computer systems, payment systems, customer systems, internal and external networks, back-up systems, mobile devices, and any other network access points. You agree, at your expense, to purchase such installation and support services as we may require, to keep all equipment, systems, and devices in good maintenance and repair, and to promptly update or install such additions, changes, modifications, substitutions or replacements as we direct. You agree that you will comply strictly with our standards and specifications for all equipment and processes associated with your computer systems and technology. You shall ensure that no software is used or downloaded in connection with the BUSINESS that is not approved in the Operations Manual. If you fail to do so, in addition to our other rights and remedies hereunder, you agree to indemnify us for any costs, damages or losses we incur that are caused by the unauthorized software.
- (2) *New Initiatives and Standards.* You acknowledge and agree that changes to technology are dynamic and not predictable within the Term of this Agreement. In order to provide for inevitable but unpredictable changes to technological needs and opportunities, and to protect against new and emerging technological risks, you and we agree that we shall have the right to establish, through our Operations Manual, new standards and initiatives for the implementation of technology in the System; and you agree that you shall abide by those new standards established by us, at your expense. You may be required to invest in and implement new technology initiatives at your own expense including, but not limited to, membership offerings, acceptance of new forms of payment, monitors, music, Internet TV broadcast, software management applications, surveillance systems, e-learning, content delivery, data collection and software applications designed to better manage business functions and control costs. We may designate the supplier you use for any goods and services associated with these and other initiatives. You further acknowledge and agree that such new standards and initiatives may require an investment in, without limitation, new hardware, software, training, procedures, vendors, and/or services.

9.16 DESIGNATED FRANCHISE PORTAL. You agree to actively use and monitor our then current Designated Franchise Portal in connection with the development and operation of your BUSINESS.

You shall be deemed to be “actively using and monitoring” the Designated Franchise Portal if you, or any of your Owners, Responsible Owners, Approved Operators, and/or managers log in to the Designated Franchise Portal at least once per week.

10. MARKETING.

10.1 NATIONAL ADVERTISING.

- (1) *Establishment of Ad Funds*; Recognizing the value of advertising and marketing to the goodwill and public image of **PLANET FITNESS** Businesses and the **PLANET FITNESS** brand, we reserve the right to establish a National Advertising Fund (“NAF”) and a Regional Advertising Fund (“RAF” and together with the “NAF, the “Ad Funds”) for the creation and development of marketing, advertising and related programs and materials, including electronic, print and Internet media as well as the planning and purchasing of national and/or regional network advertising to promote and enhance the **PLANET FITNESS** brand in such manner and media as we determine. The RAF will support marketing in the Country, together with other primarily Spanish-speaking countries in North America and/or South America. All **PLANET FITNESS** Businesses in such other countries supported by the RAF will be required to contribute the same percentage of Revenue as you. We will only establish a RAF if we believe it presents opportunities for more efficient or effective regional marketing. You agree to contribute to the Ad Funds such amounts that we prescribe from time to time (the “Ad Fee”), payable monthly via EFT in the same manner as the Continuing Fees due hereunder. As a percentage of your Revenue, the Ad Fee for the Ad Funds in aggregate shall not exceed the Ad Fees charged for new franchises in the United States. As an example, if the Ad Fees are two percent (2%) on a new U.S. franchisee’s monthly and annual member fees, the Ad Fees for your **PLANET FITNESS** Businesses’ contributions to any NAF and RAF, when combined, may not exceed two percent (2%) of their Revenue, notwithstanding that the measure of revenue for calculating Ad Fees in the United States may be different than the definition of Revenue in this Agreement. The Ad Fee plus the LAF requirement set forth in Article 10.2 below shall be equal to nine percent (9%) of the Revenue of the BUSINESS. We reserve the right to reallocate your marketing spend requirements between the Ad Fee and the LAF requirement on thirty (30) days’ written notice to you, provided the Ad Fee does not exceed the Ad Fee charged for new franchises in the United States. If this Agreement is executed pursuant to an ADA with us, your requirement to pay the Ad Fee shall be satisfied by your compliance with the Brand Launch Spend requirements of such ADA if such ADA so provides or as otherwise specified in such ADA.
- (2) *Governance*. We will direct all programs financed by the Ad Funds and retain the right to determine the creative concepts, materials and endorsements used therein and the geographic market and media placement and allocation thereof. We have sole decision making authority over all aspects of such programs, including national or regional media, creative, concepts, materials, endorsements, agencies and suppliers. We will seek the advice of owners of **PLANET FITNESS** Businesses by formal or informal means with respect to the creative concepts and media used for programs financed by the Ad Funds.
- (3) *Qualifying Expenses*. You agree that the Ad Funds may be used to pay any of the following expenses: (i) production of video, audio and written advertising materials; (ii) website design, development and updating; (iii) electronic advertising efforts, including but not limited to search engine optimization and social media networks and related platforms; (iv) administration of regional and multiregional advertising programs including, but not limited to, purchasing direct mail and other media advertising; (v) market research; (vi) administrative and other costs associated with NAF activities; and (vii) engagement and use of advertising, promotion and marketing agencies to assist with Ad Fund activities.

- (4) *NAF Materials.* All marketing or other materials created using Ad Fund funds shall be owned by us. The Ad Funds will furnish you with samples of advertising, marketing formats, promotional formats and other materials at no additional cost to you when we deem appropriate. Multiple copies of such materials will be furnished to you at our direct cost of producing them plus any related shipping, handling and storage charges. You shall have no right to use or adapt marketing materials produced by the National Advertising Fund of another jurisdiction, except as we may authorize.
- (5) *Accounting.* The Ad Funds will be maintained in a separate bank account for marketing and advertising fees contributed by franchisees and will not be used to defray any of our general operating expenses, except for the costs of administering and auditing the Ad Funds. Commissions, rebates or other similar payments from suppliers of marketing or other materials or products may only be received by the Ad Funds in accordance with Article 5.10. While we intend to spend the entirety of the Ad Funds each fiscal year, we may spend, on behalf of an Ad Fund, in any fiscal year, an amount that is greater or less than the aggregate contribution of all **PLANET FITNESS** Businesses to such Ad Fund in that year and the Ad Fund may borrow from us or others to cover deficits or invest any surplus for future use. All interest earned on monies contributed to the Ad Funds will be used to pay advertising costs before other assets of the Ad Funds are expended. We will prepare an annual statement of monies collected and costs incurred by the Ad Funds within one hundred twenty (120) days following the close of the fiscal year and furnish the statement for the prior fiscal year to you upon written request. We have the right to cause the Ad Funds to be incorporated or operated through separate Entities at such time as we deem appropriate and such successor Entities will have all of the rights and duties specified herein.
- (6) *No Proportionality or Fiduciary Obligation.* Although we will endeavor to utilize the Ad Funds to develop advertising and marketing materials and programs and to place advertising that will benefit all **PLANET FITNESS** Businesses, we undertake no obligation to ensure that expenditures by the Ad Funds in or effecting any geographic area are proportionate or equivalent to the contributions to the Ad Funds by **PLANET FITNESS** Businesses operating in that geographic area. Nor are we under any obligation to ensure that any **PLANET FITNESS** Business will benefit directly or in proportion to its Ad Fund contributions paid to the Ad Fund from the development of advertising and marketing materials or the placement of advertising. Except as expressly provided in this Article 10.1, we assume no direct or indirect liability or obligation to you with respect to collecting amounts due to, or maintaining, directing or administering any Ad Fund. We do not act as trustee or in any other fiduciary capacity with respect to any Ad Fund.
- (7) *Deferral, Reduction, and Termination.* We reserve the right to defer or reduce contributions of a **PLANET FITNESS** Business and, upon thirty (30) days' prior written notice to you, to reduce or suspend your payment of contributions to any Ad Fund and suspend operations of the Ad Fund for one (1) or more periods of any length and to terminate (and if terminated, to reinstate) such Ad Fund. If an Ad Fund is terminated, all unspent monies on the date of termination will be distributed to our then-current franchisees in proportion to their respective contributions to such Ad Fund during the preceding three (3) month period, and amounts required to be paid pursuant to Article 10.1 above shall be added to amounts required to be expended pursuant to Article 10.2 below.

10.2 **LOCAL ADVERTISING.**

- (1) *Pre-Sale and Grand Opening Marketing.* You will conduct pre-sale and grand opening marketing for the BUSINESS.
 - (a) You will collaborate with us to develop a plan for your pre-sale marketing (the "Pre-Sale Marketing Plan") and for your grand opening marketing (the "Grand

Opening Marketing Plan” and together with the Pre-Sale Marketing Plan, the “Pre-Sale/Grand Opening Marketing Plans”). The Pre-Sale/Grand Opening Marketing Plans shall each contain the Marketing Plan Items. You shall submit to us for approval a draft of the (a) Pre-Sale Marketing Plan no less than forty-five (45) days before you commence your Pre-Sale, and (b) Grand Opening Marketing Plan no less than forty-five (45) days before your intended Business Commencement Date. Our approval of the Pre-Sale/Grand Opening Marketing Plans shall be based on their compliance with brand standards and our Methods of Operation. We will either approve or disapprove the Pre-Sale/Grand Opening Marketing Plans within fourteen (14) days of submission of such plan to us, and, in the case of our disapproval, we will provide feedback on the plan submitted. If there is a delay in the commencement of BUSINESS operations, the Pre-Sale/Grand Opening Marketing Plans must, upon our request, be resubmitted for our re-approval.

- (b) The pre-sale/grand opening marketing period begins no less than sixty (60) days immediately preceding the date that you intend to commence BUSINESS operations, and it may last as long as twelve months (12) months after commencing BUSINESS operations (the “Pre-Sale/Grand Opening Marketing Period”). You must spend an amount set by us, which must be no less than Four Hundred Thousand (400,000) Pesos per every thirty (30) days and may be up to Six Hundred Thousand (600,000) Pesos per every thirty (30) days, until six (6) months after commencing BUSINESS operations, and up to Four Hundred Thousand (400,000) Pesos per every thirty (30) days for the remainder of the Pre-Sale/Grand Opening Marketing Period on your pre-sale/grand opening marketing obligations (the “Pre-Sale/Grand Opening Marketing Expense”). We will determine, after consultation with you, the amount of the Pre-Sale/Grand Opening Marketing Expense and the length and start date of the Pre-Sale/Grand Opening Marketing Period based upon the location of the BUSINESS, demographics and other factors. Such pre-sale/grand opening marketing may utilize only marketing and public relations programs and media and advertising materials we have approved. Upon written request from you, we may, in our sole discretion, reduce the length of the Pre-Sale/Grand Opening Marketing Period and the monetary amount of the Pre-Sale/Grand Opening Marketing Expense actually required to be committed during the Pre-Sale/Grand Opening Marketing Period, based on, among other things, market saturation and the existence of any Cooperative (if one exists in your region) in which you participate. If this Agreement is executed pursuant to an ADA with us, the Pre-Sale/Grand Opening Marketing Expense is in addition to any Brand Launch Spend requirements of such ADA.

- (c) If you fail to faithfully execute your approved Pre-Sale Marketing Plan or Grand Opening Marketing Plan, we may, after providing you with written notice and a fourteen (14) day opportunity to commence or continue the execution of such plan, execute such plan on your behalf and at your expense, which may include the administrative costs we actually incur, based on an allocation of personnel salaries for the time spent by our employees to administer the plan on your behalf. You agree that the expense we incur on your behalf shall be owed to us, shall be promptly paid to us by you and, if not paid to us within fourteen (14) days of our invoice, shall be collectible by us as described in Article 5.11.

- (2) *Ongoing Local Marketing.* You agree to conduct ongoing local marketing for the BUSINESS.

- (a) In addition to the contributions you pay to the Ad Funds and the Pre-Sale/Grand Opening Marketing Expense, you agree to spend at least the following amounts on local advertising and promotion (“Local Advertising Funds” or “LAF”):

- (i) During each quarter, the greater of (i) the LAF Percentage (defined below) multiplied by the total Revenue of the BUSINESS for such quarter and (ii) the minimum quarterly amounts set forth below; and

LAF Percentage	Minimum Quarterly Amount (in Pesos)
1%-3%	100,000
4%-6%	200,000
7%-9%	300,000

- (ii) During each month, the greater of (i) one-half of the LAF Percentage multiplied by the Revenue of the BUSINESS for such month and (ii) the minimum monthly amounts set forth below.

LAF Percentage	Minimum Monthly Amount (in Pesos)
1%-3%	30,000
4%-6%	60,000
7%-9%	100,000

The LAF Percentage shall be equal to nine percent (9%) minus the percentage of the Revenue of the BUSINESS you are required to contribute to the Ad Funds.

- (b) If you and/or your Affiliates own and operate multiple BUSINESSES in the same market area, as defined by us, and the LAF spending for those BUSINESSES are not separated, so long as the BUSINESSES spend an amount that would satisfy the LAF obligations for all of the BUSINESSES in the aggregate, you shall be deemed in compliance with Article 10.2(2), except, if we otherwise require, during a BUSINESS'S first year of operation, or if, in our discretion, hyper marketing for the BUSINESS is necessary due to market conditions (for example, competition).
- (c) Your LAF expenditures must prioritize the delivery of consumer-facing marketing content (so-called "working media") that is consistent with our then-current national sales and brand campaigns. Local sponsorships may only count towards your required LAF expenditures if we determine, in our sole discretion, that you are adequately marketing national sales and brand campaigns.
- (d) If you do not comply with the requirements of this Article 10.2(2), we may, in addition to any other rights and remedies provided herein, after providing you with written notice and an opportunity to cure, (i) collect your LAF contributions from you plus an amount equal to the administrative costs we actually incur, based on an allocation of personnel salaries, benefits, and overhead for the time spent by our employees to administer the LAF on your behalf as provided in Article 5.11 hereof and administer the LAF on your behalf or (ii) collect the amount by which your LAF expenditures fell short of the required LAF spend (the "LAF Shortfall") from you, as provided in Article 5.11 hereof, and contribute such amount to the NAF or RAF. In order to cure a failure to spend the amount required in Article 10.2(2), you must spend, within thirty (30) days after you are notified of such failure, the LAF Shortfall toward local advertising in compliance with this Article 10.2(2). Such cure shall not be credited towards your LAF requirement for any subsequent period. If you fail to comply with the requirements of this Article 10.2(2) more than once, we may collect the LAF Shortfall from you as provided in Article 5.11 hereof and contribute such amount to the NAF or RAF, without prior notice or opportunity to cure.

- (e) We may collect the LAF from you and other franchisees if, in our discretion, we determine such conduct is appropriate. We shall provide you with not less than thirty (30) days' notice of any determination by us which changes the amount of the LAF you must spend or the method of its expenditure. LAF contributions will be payable on the first Business Day following the immediately preceding Accounting Period together with the Continuing Fees due hereunder. Said funds may be collected from you as provided in Article 5.11. The LAF monies will be used to pay for the cost of implementing local marketing plans developed by you and approved by us or, if we collect LAF contributions from you, to reimburse you (up to an amount not to exceed the LAF contributions so collected) for the costs incurred by you in implementing local marketing plans developed by you and approved by us.
- (3) *Relocation Marketing.* In the event of a Relocation of the BUSINESS, you agree to collaborate with us to develop a marketing plan for your relocation (the "Relocation Marketing Plan"). The Relocation Marketing Plan shall cover the period beginning two (2) months prior to the Relocation and ending two (2) months following the Relocation (the "Relocation Period") and shall contain the Marketing Plan Items. You shall submit to us for approval a draft of the Relocation Marketing Plan at least one hundred twenty (120) days before the intended Relocation date. Our approval of the Relocation Marketing Plan shall be based on its compliance with brand standards and our Methods of Operation. We will either approve or disapprove the Relocation Marketing Plan within fourteen (14) days of submission of such plan to us, and, in the case of our disapproval, we will provide feedback on the plan submitted. You must spend an amount set by us, which shall be no less than Four Hundred Thousand (400,000) Pesos per every thirty (30) days and may be up to Six Hundred Thousand (600,000) Pesos per every thirty (30) days, during the Relocation Period in accordance with your Relocation Marketing Plan. Such expenditures, if made in compliance with this Article 10.2, shall count towards your LAF spending requirements.
- (4) *Qualifying Expenditures.* Qualifying marketing expenditures under this Article 10.2 may include: (x) amounts spent by you for advertising media such as television, radio, Internet, newspaper, billboards, posters, direct mail, collateral and promotional items, advertising on public vehicles (transit and aerial) and, if not provided by us, costs of producing approved materials necessary to participate in these media; and (y) only with respect to ongoing local marketing expenditures under Article 10.2(2), personnel salaries or administrative costs, provided such salaries and costs have been pre-approved by us in our discretion as counting towards your LAF expenditures; and amounts contributed to advertising cooperatives. Amounts spent for items that we deem inappropriate for meeting your minimum advertising requirements under this Article 10.2 will not count towards such requirements. Such non-qualifying expenditures include, but are not limited to, interior or exterior signage, promotional club expenses for items to be distributed onsite (such as T-shirts, pens, stickers, pizza, pan dulce, and member identification), lighting, preparing the physical location of the Pre-Sale, the start-up inventory, furniture, fixtures, software, equipment or supplies we require you to obtain prior to commencing operation of the BUSINESS, labor, personnel salaries or administrative costs not pre-approved by us as counting towards your LAF expenditures, consulting fees, transportation vehicles (even though such vehicles may display the Marks), Yellow Pages advertising, discounts, free offers and employee incentive programs. We reserve the right to modify the list of such qualifying and non-qualifying advertising expenditures in the Operations Manual from time to time. If this Agreement is executed pursuant to an ADA with us, your requirement to make LAF expenditures shall be satisfied by your compliance with the Brand Launch Spend requirements of such ADA if such ADA so provides.

- (5) *Standards and Vendors.* You may not use any advertising or promotional materials or programs that are inconsistent with our marketing guidelines and policies. You may only work with pre-approved marketing suppliers and you must work with an advertising or media agency that is an Approved Supplier to administer your LAF spending. You must facilitate communication between such agency and us related to the marketing of the BUSINESS. In addition to all other rights and remedies provided herein, (a) any funds spent on advertising or promotional materials or programs that do not comply with this Article 10.2 or using marketing suppliers not approved by us shall not count towards your marketing expenditure requirements hereunder, and (b) you shall indemnify us for our costs (including, but not limited to, outside legal fees) in unwinding unapproved partnerships and programs.
- (6) *Annual Marketing Plan.* On or before December 1 of each year, you must submit to us a local marketing plan developed for the BUSINESS or for all of the PLANET FITNESS Businesses owned by you or your Affiliates, for the upcoming year, which is subject to our approval (the “Annual Marketing Plan”). Such plan may, at your option, aggregate the required information among all **PLANET FITNESS** Businesses owned by you or your Affiliates within a designated market area. We may request quarterly updates to the Annual Marketing Plan, which you agree to provide us within thirty (30) days of our request. You shall provide us with access to the marketing plans and marketing materials related to the BUSINESS. If marketing plans and/or other materials are prepared for you by a supplier, you must authorize and require such supplier to share them with us. If you or your Affiliates have previously not complied with any of the marketing requirements set forth in this Agreement or another agreement with us or our Affiliates, or if we determine that you are marketing the BUSINESS in a manner that is inconsistent with conventional industry practices and not previously approved by us in writing or violates applicable law, we may require that, upon written notice to you, any advertising and promotional materials not prepared or previously approved by us be pre-approved by us and such materials be submitted to us for our review at least thirty (30) days prior to production.
- (7) *Reporting.* You shall provide us in a timely manner with such reporting and documentation regarding your marketing of the BUSINESS as we may request, which may include, for example, projected and actual spending data, tactical allocation, copies of invoices and other relevant documentation, translated into English. You shall provide such reports and documentation in the format and at the times we may specify in the Operations Manual.
- (8) *Compliance.* At our request, you shall certify your compliance with this Article 10.2. We may, pursuant to Article 12.1 hereof, inspect and audit, or cause to be inspected and audited, your BUSINESS records to confirm your compliance with this Article 10.2. If such inspection or audit discloses non-compliance with this Article 10.2, you shall reimburse us as described in Article 12.3. The foregoing remedies are in addition to our other remedies and rights under this Agreement and applicable law.
- (9) *Inflation Adjustments.* All marketing spending requirements denominated in pesos may be adjusted by us upon notice to you in proportion to fifty percent (50%) of the increase in the Consumer Price National Index (Indice Nacional de Precios al Consumidor or INPC) published by the National Institute of Statistics and Geography (Instituto Nacional de Estadística y Geografía or INEGI) from the Effective Date of this Agreement.

10.3 ADVERTISING COOPERATIVES. We have the right to establish, reconfigure, or approve local and/or regional advertising cooperatives for **PLANET FITNESS** Businesses in your local or regional areas, covering such geographical areas as we may designate from time to time. You must

participate in any such cooperative and its programs and abide by its by-laws. If your BUSINESS is within the territory of an existing Cooperative as of the Business Commencement Date, you agree to immediately become a member of the Cooperative. If a Cooperative applicable to your BUSINESS is established during the Term of this Agreement, you agree to become a member no later than thirty (30) days after the date approved by us for the Cooperative to commence operation. The following provisions shall apply to each Cooperative:

- (1) Each Cooperative shall utilize a voting system approved by us.
- (2) Each Cooperative shall be organized and governed in a form and manner, and shall commence continuous operations on a date approved in advance by us in writing. No changes in the by-laws or other governing documents of a Cooperative shall be made without our prior written consent. We may attend Cooperative meetings.
- (3) Each Cooperative shall be organized for the exclusive purpose of administering advertising programs and developing, subject to our approval, promotional materials for use by the members in the Cooperative on a continuous, year-round basis.
- (4) No advertising or promotional plans or materials may be used by a Cooperative or furnished to its members without prior approval by us pursuant to Article 10.3(6) below.
- (5) You and each other member of the Cooperative shall contribute to the Cooperative, using a collection structure selected and established by us, the amount determined in accordance with the Cooperative's by-laws. Contributions to such local and/or regional advertising cooperatives are credited towards the advertising expenditures required by Article 10.2(2); however, if we provide you and your Cooperative ninety (90) days' notice of a special promotion, including any regional promotions, you must participate in such promotion and pay to us any special promotion advertising fees assessed in connection therewith, beginning on the effective date of such notice and continuing until such special promotion is concluded. Any such special promotion advertising fees shall be in addition to, and not credited towards, the other advertising expenditures and commitments required of you by this Article 10. We reserve the right to require the Cooperative to spend a minimum amount on local advertising, provided, however, that in no event will your required contribution to such amount exceed your required LAF payments under Article 10.2 hereof.
- (6) All advertising and promotion by you and the Cooperatives shall be in such media and of such type and format as we may approve, shall be conducted in a dignified manner, and shall conform to such standards and requirements as we may specify and to applicable law. Upon our request, you or the Cooperative shall submit written samples of all proposed advertising and promotional plans and materials to us for our approval (except with respect to prices to be charged) at least thirty (30) days before the intended use of such plans and the production of such materials, unless such plans and materials were prepared by us or have been approved by us to be used in your marketing area (as defined by us) within the previous twelve (12) months. We may also require the Cooperative to submit annual or other periodic marketing plans to us for our prior approval. We may require that such plans be submitted within forty-five (45) days of our request, or, on an annual basis, at least ninety (90) days prior to the proposed execution thereof, and that such plans contain the Marketing Plan Items. We may require the Cooperative to work with an advertising or media agency that we designate or have approved to administer its advertising.
- (7) At our request, you shall furnish us with copies of such information and documentation evidencing your Cooperative contributions as we may require in order to evidence your compliance with this Article 10.3.

10.4 SPECIAL MARKETING PROGRAMS AND CAMPAIGNS. You must participate in and contribute funds to special marketing programs and national marketing campaigns that we develop and administer from time to time.

- (1) We may require you to pay a special marketing program fee, not to exceed the then-current required LAF expenditures. Such payment shall be credited towards your required LAF expenditures.
- (2) We may require you to spend local marketing funds in alignment with national campaigns not to exceed the then-current required quarterly LAF expenditures. Such funds shall be credited towards your required LAF expenditures, provided that they are otherwise spent in compliance with Article 10.2 hereof.
- (3) Credits for the payments and expenditures described in Article 10.4(1) and Article 10.4(2) may be applied to your required LAF expenditures during a time period that we shall determine, in our sole discretion. Such time period will be (a) at least one (1) month in duration, (b) within six (6) months from the start of the special marketing program or national campaign and (c) communicated to you when we notify you of the special marketing program fee or national campaign.

10.5 PARTICIPATION IN INTERNET WEBSITES OR OTHER ON-LINE COMMUNICATIONS. You must at your expense, participate in designated **PLANET FITNESS** websites on the Internet or other on-line communications, including without limitation any intranet system we may develop in the future and third-party websites that we designate, unless otherwise approve in writing. We determine the content and use of the Internet websites and have the sole right to establish the rules under which franchisees may or must participate in the Internet websites or separately use the Internet or other on-line communications. We retain all rights relating to the **PLANET FITNESS** Internet websites and may alter or terminate such websites. Your general conduct on the Internet websites or other authorized on-line communications, and specifically your use of the Marks or any advertising on the Internet websites or other authorized on-line communications (including the domain name and any other Marks we may develop as a result of participation in the Internet websites or other on-line communications), is subject to the provisions of this Agreement and the related standards and restrictions we specify from time to time in the Operations Manual. Without our prior written consent, you may not use, reference or otherwise promote the Marks or System in connection with any current or future form of social media networks or platforms, including, without limitation, Facebook, Instagram, Twitter, and LinkedIn, except in accordance with the related standards and restrictions we specify from time to time in the Operations Manual. For any of your social media accounts (whether authorized or not) that utilize or promote the Marks or System, you shall, upon our request, either remove all references to the Marks and/or System or provide us with access to such social media accounts.

You acknowledge that certain information obtained through your participation in the **PLANET FITNESS** Internet websites may be considered Confidential Information, including access codes and identification codes. Your right to participate in the **PLANET FITNESS** Internet websites, intranet system or other **PLANET FITNESS** computer systems or otherwise use the Marks or System on the Internet terminates when this Agreement terminates or expires, without your acquisition of a successor franchise.

10.6 STANDARDS FOR ADVERTISING, MARKETING AND PROMOTION. You agree that any advertising, promotion and marketing you conduct will be (a) clear and factually accurate, (b) not misleading, and (c) in compliance with the highest standards of ethical marketing, the marketing policies we prescribe from time to time and applicable law. We make no representation that the advertising materials provided by us or the Ad Funds comply with the law of your jurisdiction. You shall comply with our then-current media policies. You may not post any signage or fund any advertising promoting social, political or religious messages, candidates or organizations, except for positive social messages and charitable organizations that we have pre-approved as aligned with the

mission of the **PLANET FITNESS** brand. You may not use any advertising or promotional materials that we have disapproved. If, in our discretion, we determine that any promotional or marketing plan, campaign or materials you are using are objectionable or inconsistent with our brand standards, you must, upon receipt of our request, promptly discontinue use of the promotional or marketing plans, campaigns and/or materials.

- 10.7 NATIONAL OFFERS AND CAMPAIGNS.** Subject to applicable law, you must participate in all required national promotional offers we designate from time to time. You may be required to participate in a promotional offer that requires your donation to a charity, provided that your required donations are limited to not more than ten percent (10%) of the fees you collect while such offer is in effect. During national promotional offers or national campaigns with paid search support, you may not purchase competing search terms.

11. RECORDS, REPORTS AND FINANCIAL STATEMENTS.

- 11.1 RECORDS.** You agree to establish and maintain at your own expense a bookkeeping, accounting and record keeping system conforming to the requirements and formats we prescribe from time to time. You agree to prepare and to maintain during the Term of this Agreement and for three (3) years thereafter complete and accurate books, records (including invoices and records relating to your advertising expenditures) and accounts (using our then-current standard chart of accounts) for your BUSINESS, copies of all tax returns and records related to your BUSINESS. During the Term, all such books and records shall be kept at your principal address, unless we otherwise approve. You must record all sales on the POS systems and/or billing systems we designate. You must provide such assistance as may be required to connect your computer system and technology with our network. We have the right, without prior notice to you, to retrieve such data and information from your computer system as we deem necessary or desirable, including the right to obtain such information from vendors, and you agree to fully cooperate with such efforts.

- 11.2 PERIODIC REPORTS.** You must, upon receipt of written notice from us, furnish us:

- (1) within thirty (30) days after the end of each fiscal quarter, a quarterly balance sheet, income statement and statement of cash flow of your BUSINESS for such quarter, prepared in accordance with generally accepted accounting standards in the Country, reflecting any adjustments and accruals;
- (2) within ninety (90) days after the end of each fiscal year, a year-end balance sheet, income statement and statement of cash flow of your BUSINESS for such year, prepared in accordance with generally accepted accounting standards in the Country, reflecting all year-end adjustments and accruals; and
- (3) within thirty (30) days of our request, such other information as we may request from time to time, including sales and cost data and sales and income tax statements and non-financial information. All financial reports shall be provided in English and use our then-current standard chart of accounts.

- 11.3 VERIFICATION.** You agree to verify and sign each report and financial statement in the manner we prescribe. We reserve the right to require that your annual financial statements be audited, at your expense, by an independent accountant approved by us, in accordance with generally accepted accounting standards in the Country. We reserve the right to publish or disclose information that we obtain under this Article as provided in Article 19.23 hereof.

11.4 PERSONAL DATA.

- (1) Personal Data may be collected from members or prospects through the following procedures:

- (a) We may collect Personal Data directly from members or prospects (the “Franchisor Collected Data”) via the Internet (including our Internet website), a mobile application or other digital application, a social media platform, a point of sale terminal or by other electronic or telephonic means controlled and operated by or for us.
 - (b) You may collect Personal Data directly from members or prospects (the “Franchisee Collected Data”).
- (2) You are the controller (*responsable*), as such term is defined in the LFPDPPP, of all the Franchisee Collected Data you collect and process. You must comply with all your obligations under such law and related legislation as controller of such Franchisee Collected Data, including but not limited to your obligation to provide a privacy notice to all data subjects, indicating, among other things, the type of Personal Data to be collected and processed by you (even if you are a transferee of such data) and, as applicable, the Franchisee Collected Data that will be transferred to us, in the understanding that you will obtain any consent required by law in connection thereof. You agree to limit the collection of Personal Data to what is necessary to operate the BUSINESS in accordance with this Agreement and will not retain, use, process or disclose Personal Data for any other purpose. You will not sell, rent or license Personal Data and may not disclose or authorize access to Personal Data to third parties (including, but not limited to, suppliers and service providers) without our prior written approval. You shall comply with Article 9.14 hereof with respect to all Personal Data.
- (3) You shall promptly and securely transfer the Franchisee Collected Data to us per the terms of Article 11.5.
- (4) We may also transfer certain Franchisor Collected Data to you. You will comply with all applicable legal requirements related to such transfers and therefore agree to sign immediately (in any event, within no later than five (5) days) any data transfer agreements or other legal instruments we propose in connection with such transfers. You acknowledge that Franchisor Collected Data is considered Confidential Information. You may not retain, use, sell, or otherwise disclose any Franchisor Collected Data for any purpose than the operation of the BUSINESS in accordance with this Agreement and our privacy notice, which we will share with you in accordance with applicable law. You shall comply with any and all other restrictions or limitations that we may impose in writing from time to time with respect to Franchisor Collected Data.
- (5) Notwithstanding anything contained herein to the contrary, all Franchisee Collected Data we or you have access to or use per the terms of this Agreement shall be subject to the terms of Article 11.6.

11.5 FRANCHISEE COLLECTED DATA TRANSFER. You will transfer the Franchisee Collected Data specified in the Operations Manual to us, for the purposes described therein (collectively, the “Franchisee Collected Data Transfers”).

As required by the Mexican Data Protection Legislation, particularly articles 14 and 36 of the LFPDPPP and article 73 of the Regulations, you shall provide us with the privacy notice that you make available to your members and prospects (the “Franchisee Privacy Notice”) before making any Franchisee Collected Data Transfer. You shall ensure that your members and prospects properly consent to the Franchisee Privacy Notice in accordance with applicable law.

You shall ensure that Franchisee Privacy Notice: (i) details all the conditions, terms and purposes of the Franchisee Collected Data Transfers in the text thereof, (ii) lists us as the recipient of Franchisee Collected Data Transfers for the purposes therein established; (iii) complies with the Mexican Data Protection Legislation requirements; and (iv) establishes the conditions and purposes

to which members and prospects consented for the processing of Personal Data. You must inform us in writing of any limitations or conditions applicable to the processing of the Personal Data of a specific member or prospect, before making the corresponding Franchisee Collected Data Transfer.

In order to facilitate compliance with the Mexican Data Protection Legislation, you must make available to your members and prospects the privacy notice that will govern our processing of the Franchisee Collected Data, in accordance with the processes, guidelines and requirements established in the Operations Manual and the privacy notice provided by us to you for such purpose.

You will:

- (1) Comply with the provisions of the Mexican Data Protection Legislation applicable to the processing of the Franchisee Collected Data and its transfer to us, including but not limited to making available to members and prospects the Franchisee Privacy Notice before making the corresponding transfer.
- (2) Obtain the consent of members and prospects to make the Franchisee Collected Data Transfers in accordance with the terms of and the purposes established in this Agreement and the Operations Manual, if so required by law.
- (3) Respond immediately (in any event, within no later than five (5) days) to the queries made by us in relation to the Franchisee Collected Data Transfers and the Franchisee Collected Data.
- (4) Effect the Franchisee Collected Data Transfers per the frequency, process and means established in the Operations Manual.
- (5) Ensure that the Franchisee Collected Data Transfers comply with the security measures required by the Mexican Data Protection Legislation, this Agreement and the Operations Manual.

We accept and agree that, once we receive the Franchisee Collected Data, we will become the Controller thereof, in accordance with the terms of the Mexican Data Protection Legislation and will comply with all its obligations as such.

11.6 OTHER DATA. Except as provided in Article 11.4, you may use all data pertaining to your BUSINESS, and all data you create or collect in connection with the System, or in connection with your operation of the BUSINESS or otherwise provided by you (including, without limitation, data collected by, uploaded to, or downloaded from your computer or POS systems or billing system) (collectively, “Business Data”) solely in connection with the BUSINESS and subject to the terms of this Agreement and any other limitations that we may impose in writing from time to time. We will have the right to access and use the Business Data in any manner we deem appropriate without compensation to you. You agree to make all such data accessible to us upon our request. Notwithstanding the foregoing, you may, after the Term of this Agreement, keep and retain any and all Business Data and records related to the same to the extent required for tax, accounting, and legal purposes. We may, at our option, provide you with financial and other information derived from the System, including information contained in or resulting from information, data, materials, statements and reports related, directly or indirectly, to the BUSINESS (“System Data”). You acknowledge that any sharing of data between us is not for monetary or other consideration (and therefore shall not constitute a sale of such information) and is solely to facilitate our respective provision of services and the operation of the BUSINESS as contemplated herein. Business Data and System Data shall be considered Confidential Information, subject to the restrictions of Article 8 hereof and any additional restrictions or limitations that we may impose in writing from time to time.

12. INSPECTIONS AND AUDITS.

12.1 **OUR RIGHT TO INSPECT THE BUSINESS.** To determine whether you and the BUSINESS are complying with this Agreement and the Methods of Operation, we and our designated agents have the right at any time during your operating hours, and without prior notice to you, to:

- (6) inspect the BUSINESS;
- (7) observe, photograph, videotape and make other electronic records of the operations of the BUSINESS for such consecutive or intermittent periods as we deem necessary;
- (8) remove samples of any products, materials or supplies for testing and analysis;
- (9) interview personnel and customers of the BUSINESS;
- (10) inspect and copy any books, records (whether electronic or hard copy) and documents relating to your operation of the BUSINESS, including member and membership information; and
- (11) retrieve such data and information from your computer system or computer systems which are licensed by you, such as the dues processing platform or accounting platform, including obtaining such information from third parties or vendors.

12.2 **COOPERATION.** You agree to cooperate with us fully in connection with any such inspections, observations, photographing, videotaping, creation of other electronic records, product removal and interviews. We shall have the right to take photographs, videos and other electronic records of the BUSINESS and associated signage and premises and to use the foregoing for any purpose including in any advertising or promotional material, in any form or medium now existing or later developed. We may use the foregoing without providing notice to you or receiving your consent, and we shall not be obligated to make attribution or to compensate you for use of the foregoing. Upon our request, you shall cooperate with us in taking and arranging for such photographs, videos and other electronic records and for obtaining the necessary consents of or assignments from individuals depicted in or involved in the foregoing. You irrevocably assign to us all of your right, title and interest, if any, in and to all such photographs, videos and other electronic records, together with all related intellectual property rights. You agree to present to your customers such evaluation forms that we periodically prescribe and to participate and/or request your customers to participate in any surveys performed by us or on our behalf.

12.3 **OUR RIGHT TO AUDIT.** We have the right at any time during your operating hours, and without prior notice to you, to inspect and audit, or cause to be inspected and audited, your (if you are an Entity) and the BUSINESS's business, bookkeeping and accounting records, sales and income tax records and returns, marketing documentation and other records, but excluding employment records. You agree to cooperate fully with our representatives and independent accountants we hire to conduct any such inspection or audit. In the event such inspection or audit (a) is made necessary by your failure to furnish reports, supporting records or other information as herein required, or to furnish such items on a timely basis or (b) discloses or confirms your noncompliance with this Agreement, you agree to reimburse us for our costs. Such costs may include, but are not limited to, the travel expenses, room and board and compensation of our employees, attorneys' fees and the fees of independent accountants, auditors or other third-party service providers, and the cost of additional follow-up inspections or assessments. In the event an inspection or audit reveals that any payments have been understated in any report to us, then you shall immediately pay to us the amount understated upon demand, in addition to interest from the date such amount was due until paid, as provided in Article 5.4 hereof. The foregoing remedies are in addition to our other remedies and rights under this Agreement and applicable law.

13. TRANSFER.

13.1 BY US. We have the right to assign or transfer our interest in this Agreement, or any of our rights, obligations, or assets under this Agreement, by operation of law or otherwise, to any person without the Franchisee's consent provided that any such person assumes all of the Franchisor's obligations to enable the Franchisee to operate the BUSINESS after such assignment or transfer. We will notify you in writing of such assignment after the fact. Any of the Franchisor's Affiliates may transfer, sell, dispose of, or otherwise convey, their ownership rights in the Franchisor or any other of its Affiliates, by operation of applicable laws or otherwise, including by public offering, to any person without the Franchisee's consent. If we assign or transfer this Agreement to a third party who expressly assumes its obligations as provided in this Article 13.1, we will no longer have any performance or other obligations to the Franchisee under this Agreement and the Franchisee will be bound to accept performance from such third party without the need to enter into any further document.

13.2 BY YOU. You understand and acknowledge that the rights and duties created by this Agreement are personal to you (or, if you are an Entity, to your Owners) and that we have granted the Franchise to you in reliance upon our perceptions of your (or your Owners') individual or collective character, skill, aptitude, attitude, business ability, acumen and financial capacity. Accordingly, you shall ensure that no Transfer shall occur without our prior written approval. Any Transfer without such approval constitutes a breach of this Agreement and is void and of no effect. A Transfer of ownership, possession or control of the BUSINESS may be made only in conjunction with a Transfer of this Agreement.

13.3 CONDITIONS FOR APPROVAL OF TRANSFER. All of the conditions set forth below must be met prior to or concurrently with the effective date of the proposed Transfer. We may withhold our consent to the Transfer upon your failure to meet any of such conditions.

- (1) *Compliance.* You are in compliance with this Agreement; you and your Affiliates have paid all amounts owed to us and our Affiliates related to this Agreement or any other agreement entered into between you or your Affiliates and us or our Affiliates. If you have failed to spend the amounts required by Article 10.2(2) during the Term of this Agreement, we may require you to contribute the cumulative LAF Shortfall to the NAF prior to the closing of the Transfer in order to satisfy this condition.
- (2) *Transferee.* The proposed transferee and its direct and indirect owners must be individuals of good moral character and otherwise meet our then applicable standards for **PLANET FITNESS** franchisees in the Country. You have disclosed to us all ownership information. Neither the proposed transferee, nor any of its owners, may be a trust, unless we, in our sole discretion, provide our written consent.
- (3) *Transfer Terms.* We approve of the terms of such Transfer as not adversely impacting the transferee's operation of the BUSINESS. You and the proposed transferee must certify that the final terms of the Transfer are consistent with those disclosed in the P&S Agreement (defined below). Within five (5) Business Days after the closing of the Transfer, you must provide us with the final purchase price and the final signed principal transaction documents of the Transfer.
- (4) *Agreements.* You (and your transferring Owners) have executed (a) a general release, in form satisfactory to us, of any and all claims against us and our shareholders partners, quota holders, officers, directors, employees and agents and (b) a written affirmation confirming that (i) you and/or any transferring Owner(s) remain bound by the restrictions and obligations contained in Articles 16.5, 16.6, 16.7, 18.4 and Appendix B hereof as if this Agreement had terminated and (ii) the provisions of Article 19.12 survive the partial or full Transfer of an Owner's interest in you (although such provisions will continue to apply regardless of whether you and/or

any transferring Owner(s) actually execute such written reaffirmation). Your transferring Owners have executed an agreement with you, of which we are a third-party beneficiary and may independently enforce, providing that for at least two (2) years from the date of the Transfer, with such time period to be tolled by any violation thereof, they will not, either directly or indirectly, compete with you and your Affiliates. Except as otherwise provided in Article 13.3(6)(c), this Agreement has been amended to reflect the post-Transfer ownership and your new Owners have signed Appendix B hereof.

- (5) *Costs.* You have reimbursed us for any external (i.e., not in-house) legal and administrative costs we incurred in connection with the Transfer.
- (6) *Third-party Transfers.* If the proposed Transfer is a Third-Party Transfer, the following additional conditions must be met prior to or concurrently with the effective date of the proposed Transfer:
 - (a) *Transferee.* We have approved the proposed transferee, based on our assessment of the proposed transferee, its direct and indirect owners, any existing or acquired business and management team and, if applicable, any remaining Owners. In connection with our assessment, we may consider:
 - (1) the proposed transferee's moral character, aptitude, attitude, experience, references, acumen, reputation (including allegations or suspicions of immoral or illegal conduct) and financial capacity to operate the BUSINESS;
 - (2) the proposed transferee's business plan for the BUSINESS;
 - (3) the infrastructure in place or to be created to develop and operate the BUSINESS (together with any other **PLANET FITNESS** Businesses the proposed transferee may own);
 - (4) other investments of the proposed transferee (including, but not limited to competing investments, quantity of other investments, or incompatibility of other investments with our values or brand image); and
 - (5) if the proposed transferee is an existing **PLANET FITNESS** franchisee, its and its Affiliates' (a) record of acquisition, development and operations (including size of current operations and existing development obligations) and (b) compliance with existing agreements with us and our Affiliates.

Our assessment may also consider whether the proposed transferee will, together with any acquired management or infrastructure, (a) have substantial existing operations and commercial relationships in the Country, (b) directly or indirectly license and operate multiple units for at least one other multi-national or United States brand, (c) have adequate operational capacity and infrastructure to operate a sophisticated multi-unit franchise in the Country and, if applicable, in multiple countries, (d) demonstrate, to our satisfaction, that its management team has an adequate understanding of our industry and our brand, and (e) have a history and reputation consistent with our anti-corruption requirements. Unless otherwise approved in writing by us, the transferee may not be an entity, or be affiliated with an entity, the shares in which are listed for sale on a public exchange, such as the Bolsa Mexicana de Valores.

- (b) *Training.* The transferee (or its Responsible Owner) and its managers, shift supervisors and personnel must have completed Initial Training or must be

currently certified by us to operate and/or manage a **PLANET FITNESS** Business to our satisfaction prior to the closing of the Transfer.

- (c) *Agreements.* If the Transfer is of a non-Controlling Interest in you, which is not one of a series of proposed Transfers which, in the aggregate, would constitute or result in the transfer of a Controlling Interest in you, the transferee has agreed to be bound by all of the terms and conditions of this Agreement for the remainder of the Term. Otherwise, the transferee shall execute our then-current standard form of franchise agreement for the Country and any ancillary agreements being offered to new franchisees in the Country (which may provide for different Continuing Fees, advertising contributions and expenditures, and other rights and obligations than those provided for in this Agreement), provided however, that any such higher Continuing Fees shall not exceed the then-current royalty rate for new franchises in the United States and any such greater national marketing contributions or local advertising expenditures may not, in the aggregate, exceed the then-current requirements for new franchises in the United States. The new franchise agreement will, unless otherwise provided below, have a term equal to the remaining Term of this Agreement. If the remaining Term of this Agreement would be, as of the date of the proposed Transfer, three (3) years or less, then, at the transferee's option, the new franchise agreement will have a term equal to the remaining Term of this Agreement plus ten (10) additional years. In such case, the new franchise agreement may provide that, upon the date when the Term of this Agreement would have expired, the Continuing Fees will adjust to our then-current Continuing Fees in the Country as of such date, but which may not exceed the then-current royalty rate for new franchises in the United States.
- (d) *Transfer Fees.* You have paid us (i) a transfer fee equal to Fifteen Thousand Dollars 00/100 Legal Currency of the United States of America (US\$15,000.00) in connection with the Transfer, unless the proposed Transfer is a transfer of a five percent (5%) or less ownership interest in you (and is not one of a series of Transfers which, in the aggregate with other Transfers to the same or an affiliated transferee, would constitute or result in the transfer of greater than a five percent (5%) interest in you) or we, in our sole discretion, determine that such transfer is de minimis such that a lesser or no transfer fee may apply.
- (e) *Right to Operate.* You have purchased, leased or subleased the Location and have provided us with proof of the transferee's right to operate a **PLANET FITNESS** Business at the Location, whether by an assignment of lease, new lease, acquisition or otherwise, and we approve of the terms of such assignment or acquisition.
- (f) *Business Updates.* The Transferee agrees to repair, remodel or otherwise update the BUSINESS to bring the BUSINESS into compliance with our current System standards, including any such upgrades to technology and equipment as we may require, within a time period that we specify after the closing of the Transfer.
- (g) *Capital Structure.* If you or your Owners finance any part of the sale price of the transferred interest, you and/or your Owners have agreed that all of the transferee's obligations pursuant to any promissory notes, agreements or security interests that you or your Owners have reserved in the BUSINESS are subordinate to the transferee's obligation to pay Continuing Fees, Ad Fees and other amounts due to us and otherwise to comply with this Agreement.
- (h) *Holding Period.* If this Agreement is entered into pursuant to an ADA, you or your Affiliate have satisfied the minimum holding period of the ADA (set forth in Article 19.1.6.5 thereof).

The conditions set forth in Article 13.3 are intended to be representative and not exhaustive.

- 13.4 TRANSFER TO A WHOLLY OWNED ENTITY.** Notwithstanding Article 13.3, if you are in full compliance with this Agreement, you may Transfer this Agreement to an Entity, which conducts no business other than the BUSINESS and, if applicable, other **PLANET FITNESS** Businesses, in which you maintain management control and of which you own and control one hundred percent (100%) of the equity and voting power of all issued and outstanding ownership interests, and further provided that all assets of the BUSINESS are owned, and the entire business of the BUSINESS is conducted, by a single Entity. Transfers of ownership interests in such Entity will be subject to the provisions of Article 13.3. Notwithstanding anything to the contrary herein, you agree to remain personally liable under this Agreement as if the Transfer to such Entity had not occurred, and agree to execute Appendix C to this Agreement (Assumption of Join Obligation Agreement).
- 13.5 TRANSFER UPON YOUR DEATH OR DISABILITY.** Upon your death or Permanent Disability or, if you are an Entity, the death or Permanent Disability of an Owner of a Controlling Interest in you, your or such Owner's executor, administrator, conservator, guardian or other personal representative must Transfer your interest in this Agreement or such Owner's interest in you to a third party. Such disposition of this Agreement or the interest in you (including, without limitation, Transfer by bequest or inheritance) must be completed promptly, not to exceed six (6) months from the date of death (or if later, such date that such Transfer may be legally completed) or Permanent Disability, and will be subject to all of the terms and conditions applicable to Transfers contained in this Article. A failure to Transfer your interest in this Agreement or the ownership interest in you within this period of time constitutes a breach of this Agreement.
- 13.6 OPERATION UPON YOUR DEATH OR DISABILITY.** If, upon your death or Permanent Disability or the death or Permanent Disability of your Responsible Owner, the BUSINESS is not being managed by a Responsible Owner or Approved Operator, you or your or such Owner's executor, administrator, conservator, guardian or other personal representative must promptly, not to exceed fifteen (15) days from the date of death or Permanent Disability, appoint an Approved Operator to operate the BUSINESS. Such individual will be required to successfully complete Initial Training at your expense within sixty (60) days of being appointed to operate the BUSINESS. Pending the appointment of an Approved Operator as provided above or if, in our judgment, the BUSINESS is not being managed properly any time after your death or Permanent Disability or after the death or Permanent Disability of your Responsible Owner, we have the right, but not the obligation, to appoint a manager for the BUSINESS. All funds from the operation of the BUSINESS during the management by our appointed manager will be kept in a separate account, and all expenses of the BUSINESS, including compensation, other costs and travel and living expenses of our manager, will be charged to this account. You shall be responsible for any expenses in excess of revenues during such period. We also have the right to charge a management fee (in addition to the Continuing Fees and Ad Fees payable under this Agreement) during the period that our appointed manager manages the BUSINESS. Operation of the BUSINESS during any such period will be on your behalf, provided that we only have a duty to utilize reasonable efforts in doing so and will not be liable to you or your Owners for any debts, losses or obligations incurred by the BUSINESS or to any of your creditors for any products, materials, supplies or services the BUSINESS purchases during any period it is managed by our appointed manager.
- 13.7 BONA FIDE OFFERS.** If you (or any of your Owners) at any time determine to Transfer for consideration an interest in this Agreement and the BUSINESS or an ownership interest in you, you (or such Owner) shall:
- (1) disclose to us any broker that you retain for the purpose of marketing the BUSINESS for sale;
 - (2) provide us with such additional information that we may request from time to time, including, but not limited to, a draft of the offering materials you intend to circulate and a list of offerors or prospective purchasers; and

- (3) if there is an offer you are willing to accept, obtain a fully executed and binding purchase and sale agreement for the proposed Transfer (a “P&S Agreement”) and a complete franchise application from a fully disclosed proposed purchaser including lists of the owners of record, beneficial owners, and/or all general and limited partners of any Entity. The purchase price in the P&S Agreement must be denominated in a US dollar or Mexican peso amount. The P&S Agreement must apply only to an interest in you or in this Agreement and the BUSINESS or in other **PLANET FITNESS** businesses you own and may not apply to any of your (or your Owners’) other property or rights. If the P&S Agreement applies to other **PLANET FITNESS** Businesses that you own, the P&S Agreement must include a separate proposed purchase price for each **PLANET FITNESS** Business included in the transaction, which reflects a reasonable allocation of the aggregate proposed purchase price across all such **PLANET FITNESS** Businesses. If the purchaser proposes to buy any other property or rights from you (or your Owners) under a separate, contemporaneous offer, such separate, contemporaneous offer must be disclosed to us, and the price and terms of purchase offered to you (or your Owners) for the interest in you or in this Agreement and the BUSINESS must reflect the *bona fide* price offered therefor and not reflect any value for any other property or rights. The P&S Agreement must be sufficiently detailed to allow you to close the Transfer upon the satisfaction of customary closing conditions and the delivery of customary closing documents.
- (4) within no later than five (5) days after obtaining a P&S Agreement, submit to us a true and complete copy of the P&S Agreement, along with such other information about the BUSINESS or the proposed Transfer as we may specify in the Operations Manual, including, for example, copies of the diligence materials provided to the proposed transferee, or responses to a standard diligence request list (the “Sale Materials”). You shall deliver the Sale Materials by such means as we may specify in the Operations Manual. We will acknowledge the complete submission of the Sale Materials within five (5) Business Days after our receipt of such materials.

Once we receive the Sale Materials from you, we may communicate candidly with the proposed transferee about you and the BUSINESS. We may share with the proposed transferee the results of any compliance review of the BUSINESS and any other information we may have about the BUSINESS. You acknowledge that such communication is necessary and appropriate in order for us to review and process the proposed Transfer and, by submitting the Sale Materials to us, you authorize such communication.

13.8 OUR RIGHT OF FIRST REFUSAL. For any proposed Third-Party Transfer of: (a) this Agreement, (b) a Controlling Interest in you (or a series of proposed Third-Party Transfers, which in the aggregate would constitute a Third-Party Transfer of a Controlling Interest in you); or (c) substantially all the assets of the BUSINESS, we have the right, exercisable by written notice (the “ROFR Notice”) delivered to you or your selling Owners within the ROFR Period (defined below) to purchase such interest for the price and on the terms and conditions contained in the P&S Agreement, provided that:

- (1) we may substitute cash for any form of payment (including, but not limited to, equity in the transferee or one of its Affiliates) proposed in the P&S Agreement;
- (2) if the P&S Agreement contemplates the Transfer of less than all of the ownership interests in you or less than all of the assets of the BUSINESS, we may purchase, as applicable, all of the ownership interests in you or all of the assets of the BUSINESS, for a price calculated by imputation of the purchase price set forth in the P&S Agreement across such additional equity or assets;
- (3) our credit will be deemed equal to the credit of any proposed purchaser;

- (4) we are not required to honor or provide compensation for any post-closing employment arrangement included in the P&S Agreement for any person that is not an Owner. For post-closing employment arrangement(s) for any Owner, we are not required to honor such arrangement(s). We will substitute cash for any such arrangement(s) to the extent not honored, provided such arrangements are guaranteed;
- (5) any provision in the P&S Agreement, the effect of which would increase our cost, or otherwise negatively affect the terms imposed on us as a result of our substitution for the prospective purchaser through our exercise of our right of first refusal shall be disregarded;
- (6) we may make any adjustments we or our advisors deem necessary or appropriate to comply with the laws, regulations, accounting standards and financing covenants applicable to our Affiliates and us;
- (7) if we discover inaccuracies or omissions in financial or other information you provided to the proposed transferee, including, but not limited to, financial results or projections based on noncompliance with this Agreement or noncompliance with this Agreement that would require expenditures to remediate, we may withdraw the exercise of our right of first refusal and disclose such inaccuracy or omission to the proposed transferee;
- (8) your submission to us of a P&S Agreement is irrevocable. You may not withdraw or modify the P&S Agreement during the ROFR Period. Your submission of the P&S Agreement to us shall constitute a binding offer to us for the sale of the BUSINESS that we may accept during the ROFR Period on the terms of this Article 13.8;
- (9) we are entitled to receive, and you and your Owners agree to make, all customary representations and warranties given by the seller of the assets of a business or the equity of an incorporated Entity, as applicable, including, without limitation, representations and warranties as to:
 - (a) ownership and condition of and title to equity and/or assets;
 - (b) liens and encumbrances relating to the equity and/or assets; and
 - (c) validity of contracts and the liabilities, contingent or otherwise, of the Entity whose equity or assets is being purchased.
- (10) you shall negotiate in good faith with us to close the transaction on (i) the terms specifically provided in this Article 13.8, (ii) the terms of the P&S Agreement for all terms specified therein and not superseded by this Article 13.8, and (iii) otherwise, on terms that we deem necessary to close the transaction;
- (11) you and we shall exercise all efforts to close the transaction by no later than: (i) ninety (90) days from the date of the ROFR Notice, or (ii) such period as may have been provided in the P&S Agreement. Promptly following your receipt of the ROFR Notice, you shall request consent from any party whose consent is required for the Transfer, including, but not limited to, landlords, POS system vendors and billing vendors. We may also contact any such parties directly;
- (12) you must comply with Article 13.3(1), Article 13.3(4) and Article 13.3(6)(d) of this Agreement in connection with your Transfer to us. If you are not in compliance with Article 13.3(1) by end of the period set forth in Article 13.8(11), we may at our option, (i) close the transaction and set off the costs of remedying any unaddressed noncompliance against the purchase price, (ii) provide you with additional time to comply or (iii) withdraw the exercise of our right of first refusal. In addition, if you fail to exercise all efforts to remedy

such noncompliance in a timely manner, such failure will be a breach of Article 13.8(11) hereof.

- (13) you shall promptly provide us with such information related to the P&S Agreement or the BUSINESS as we may request;
- (14) If the proposed Transfer is part of a contemporaneous transfer involving additional **PLANET FITNESS** Businesses or one or more area development agreements (collectively, the “Transfer Group”), then we will refrain from exercising our right of first refusal to purchase less than the entire Transfer Group.

The value of any form of payment other than cash as described in Article 13.8(1) hereof shall be fair market value. If such fair market value cannot be calculated by imputation of the purchase price set forth in the P&S Agreement, and if we and you are unable to agree on fair market value, fair market value will be determined by an appraiser agreeable to both parties. If we and you are unable to agree on an appraiser, then the fair market value will be determined as follows: we will appoint one appraiser, you will appoint one appraiser and the two (2) party-appointed appraisers will appoint a third independent appraiser, provided, however, that if you fail to timely appoint your appraiser, then the fair market value determined by our appraiser alone shall prevail. You and we agree to select our respective appraisers within fifteen (15) days after the date we determine that we are unable to agree on the fair market value, and the two (2) appraisers so chosen are obligated to appoint the third appraiser within fifteen (15) days after the date on which the last of the two (2) party-appointed appraisers was appointed. You and we will bear the cost of our own appraisers and share equally the fees and expenses of the third appraiser chosen by the two (2) party-appointed appraisers. You and we will take all necessary actions to cause the appraisers to complete their appraisal within thirty (30) days after the third appraiser’s appointment.

We may request additional information from you to assist us in evaluating our right of first refusal (a “Diligence Request”). Prior to the exercise of our right of first refusal, we may make up to two (2) Diligence Requests. We may submit (a) an initial Diligence Request within ten (10) days after we acknowledge receipt of the Sale Materials and (b) a follow-up Diligence Request within fifteen (15) days of the receipt of your complete response to our initial Diligence Request. You must provide a complete response to each such Diligence Request promptly and, in any event, not later than within thirty (30) days of receiving an initial Diligence Request and not later than within fifteen (15) days after receiving a follow-up Diligence Request. All Diligence Requests and responses thereto may be made by e-mail or other electronic means only (e.g., access to a secure electronic storage platform). A follow-up request based on an incomplete response to a Diligence Request shall not be considered a separate Diligence Request. The foregoing shall not limit our rights to request additional information at any time between exercising our right of first refusal (if we choose to do so) and closing the transaction.

We may exercise our right of first refusal under this Article 13.8 during the time period beginning on the date we acknowledge receipt of the Sale Materials and ending on the later of (a) sixty (60) days from such date, (b) if applicable, thirty (30) days after your submission of a complete response to our last Diligence Request or (c) the last date on which we may exercise our right of first refusal for another **PLANET FITNESS** Business included in the P&S Agreement (the “ROFR Period”).

For the avoidance of doubt, we have the unrestricted right to assign our right of first refusal to one or more third parties under this Article 13.8. You acknowledge and agree that we may share the P&S Agreement and other relevant information regarding the BUSINESS on a confidential basis with a prospective assignee.

Any Transfer in violation of our right of first refusal is null and void.

13.9 NON-EXERCISE. If we do not exercise our right of first refusal, you or your Owners may complete the Transfer to such purchaser pursuant to and on terms consistent with the P&S

Agreement, subject to our approval of the Transfer as provided in Articles 13.2 and 13.3. If the Transfer to such purchaser is not completed within the later of (a) one hundred twenty (120) days after delivery of the Sale Materials to us, or (b) sixty (60) days after the expiration of the ROFR Period, or if there is a change in the terms of the Transfer (which you agree to communicate to us promptly and within no later than five (5) days after such change), the proposed Transfer will be treated as a new proposed Transfer subject to our right of first refusal as provided in Article 13.8.

14. **EXPIRATION OF THIS AGREEMENT.**

14.1 ACQUISITION OF A SUCCESSOR FRANCHISE. Subject to the conditions set forth in this Article 14.1, on expiration of the Term of this Agreement, you will have the right to acquire a successor franchise for a term of ten (10) years so long as:

- (1) you provide us notice (which must be in a format acceptable to us, which would include email to our General Counsel) of your desire to acquire a successor franchise not less than six (6) months nor more than twelve (12) months prior to the expiration of this Agreement. We will give you notice, not later than sixty (60) days after receipt of your notice, of our decision, pursuant to Article 14;
- (2) you remodel and/or expand the BUSINESS as we may require, including, adding or replacing improvements, installing new equipment and renovating signs, furnishings, fixtures, and décor, and otherwise modify the BUSINESS as we require to bring it into compliance with specifications and standards then applicable for **PLANET FITNESS** Businesses; provided, however, if you have completed a substantial remodel or substantial replacement of equipment in the final two (2) years of the Term, you will not be required to substantially remodel the areas substantially remodeled in the final two (2) years of the Term and you will not be required to replace equipment that was replaced in the final two (2) years of the Term as a condition to acquire a successor franchise;
- (3) you are not in default of any provision of this Agreement or any other agreement between you and us or our Affiliates and you must have substantially complied with all the terms and conditions of this Agreement during its Term (including timely payment of all monies owed) provided that we previously communicated to you any Events of Default hereunder; (For clarity, your receipt of Notices of Default, even if you subsequently cure the underlying defaults, may affect your eligibility for acquiring a successor franchise);
- (4) you establish to our satisfaction that you can maintain possession of the Location for the length of the successor term, or if you are unable to establish that you can maintain possession of the Location, you secure substitute premises we approve, develop such premises in compliance with specifications and standards then applicable for **PLANET FITNESS** Businesses, and continue to operate the BUSINESS at the Location until operations are transferred to the substitute premises; provided, however, that we reserve the right to require that you relocate the premises of the BUSINESS if, in our discretion, we determine the BUSINESS should be relocated based on our current brand standards, and so long as we provide you with written notice of this determination at least twenty-four (24) months prior to the date by which you are required to relocate the BUSINESS;
- (5) you and your Owners and Affiliates, as applicable, must execute, as it relates to the BUSINESS at the Location, our then-current form of successor franchise agreement and any ancillary agreements which we are then customarily offering for successor franchises, which shall supersede this Agreement in all respects, and the terms of which may differ from the terms of this Agreement, including higher Continuing Fees, different LAF advertising expenditure requirements and required Ad Fees, except that you will not be required to pay an initial franchise fee, and the Continuing Fees may not exceed the then-current royalty rate for new franchises in the United States;

- (6) you and your Owners execute and deliver a mutual general release, in the form we prescribe from time to time, of any and all claims arising out of or related to the BUSINESS that we may have against each other, and our respective parents, Affiliates and subsidiaries, and their respective officers, directors, legal representatives, shareholders, partners, quota holders and employees in both their corporate and individual capacities, including, without limitation, claims under other agreements between you and us which relate to the BUSINESS;
- (7) you comply with our then-current qualification and training requirements;
- (8) you pay us a successor franchise fee equal to the initial franchise fee we are then currently customarily charging for new franchises in the United States; and
- (9) you are current with respect to your obligations to us, our Affiliates, your vendors, and your lessor, unless you have, in good faith, contested such obligations in writing.

14.2 EXTENSIONS. If you fail to meet the conditions set forth in Article 14.1(2) prior to the expiration of the Term, you may request an extension of this Agreement to provide additional time to meet such condition. We may grant such extension in our sole discretion. If we do so, (1) the Continuing Fees during such extension period shall be the then-current Continuing Fees charged for new franchises in the Country at that time, and (2) we may charge our then-current monthly extension fee, which is currently Two Thousand United States Dollars (USD\$2,000) per month, and which is collectible by us as described in Article 5.11 hereof.

15. DEFAULT, CURE, TERMINATION AND OTHER REMEDIES.

15.1 TERMINATION BY YOU. If you and your Owners are in compliance with this Agreement and we fail to comply with this Agreement and do not correct such failure within sixty (60) days after written notice of such failure is delivered to us, you may terminate this Agreement effective thirty (30) days after delivery to us of written notice of termination. Your termination of this Agreement for any other reason or without such notice will be deemed null and void. If you terminate this Agreement, you must comply with all your post-termination obligations, including, but not limited to, those described in Article 16 hereof.

15.2 DEFAULT. You have breached this Agreement if you commit any of the defaults listed below (each, an “Event of Default”):

- (1) Solvency Defaults. All of the defaults in this Article 15.2(1) are by their nature incurable and have no associated cure period.
 - (a) become insolvent by reason of your inability to pay your debts as they mature, or a procedure under Mexico’s Insolvency Law (*Ley de Concursos Mercantiles*) is initiated by or against you and/or any of your principal owners;
 - (b) are adjudicated bankrupt or insolvent;
 - (c) file a bankruptcy, reorganization or similar proceeding under applicable bankruptcy laws or have such a proceeding filed against you which is not discharged within thirty (30) days;
 - (d) have a receiver or other custodian, permanent or temporary, appointed for your business, assets or property;
 - (e) request the appointment of a receiver or make a general assignment for the benefit of creditors;

- (f) have any of your assets, including your bank accounts or accounts receivable attached;
 - (g) have an execution levied against your business or property;
 - (h) have suit filed to foreclose any lien or mortgage against any of your assets and such suit is not dismissed within thirty (30) days; or
 - (i) voluntarily dissolve or liquidate or have a petition filed for dissolution of your company if such petition is not dismissed within thirty (30) days.
- (2) Abandonment and Control Defaults. All of the defaults in this Article 15.2(2) are by their nature incurable and have no associated cure period.
- (a) abandon or fail to actively operate your BUSINESS for three (3) consecutive days, except where such failure to actively operate results solely from causes beyond your control or is due to your completion of a remodel or refurbishment of the BUSINESS that we have approved;
 - (b) surrender or transfer control of the operation of your BUSINESS without our prior written consent;
 - (c) make or attempt to make an unauthorized Transfer of this Agreement or of an ownership interest in you or the BUSINESS;
 - (d) suffer cancellation or termination of the lease or sublease for your BUSINESS or otherwise lose the right to occupy the Location;
 - (e) fail to request approval of a Responsible Owner within fifteen (15) days after the death or Permanent Disability of your Responsible Owner and/or such Responsible Owner fails to complete our Initial Training within sixty (60) days after such request.
- (3) Payment Defaults. All of the defaults in this Article 15.2(3) have the cure periods set forth in the applicable subsection below.
- (a) fail to establish, maintain and/or have sufficient funds available in your Designated Account as required by Article 5.3 of this Agreement or fail to make payment of any amounts due to us or any of our Affiliates, subject to a cure period of ten (10) Business Days;
 - (b) fail to make or cause to be made a timely payment of any amount related to the BUSINESS due to a lender, landlord, supplier or other commercial party unaffiliated with us (other than payments which are subject to bona fide dispute), provided that the due date and third-party's cure period, if any, for making such payment has expired; For clarification, for purposes of this Article 15.2(3)(b), you may be held responsible for the failure of a contractor or subcontractor to make timely payment for amounts related to the construction, maintenance and/or operation of the BUSINESS. Such default is subject to a cure period of thirty (30) days;
 - (c) fail to pay when due any applicable federal, state, or municipal income, goods and services, service, sales, value-added, employment related taxes or other taxes due related to the operations of the BUSINESS, unless you have, in good faith, legally

contested your liability for such taxes and such legal contest is pending or successful, subject to a cure period of thirty (30) days.

- (4) Opening Defaults. All of the defaults in this Article 15.2(4) have the cure periods set forth in the applicable subsection below.
 - (a) fail to lease, sublease or purchase the Location in accordance within the timeframe set forth in Article 4.2, subject to a cure period of thirty (30) days;
 - (b) fail to meet any construction deadline set forth in Article 4 hereof, subject to a cure period of forty-five (45) days;
 - (c) fail to provide us with weekly progress reports during construction as set forth in Article 4.4 hereof, subject to a cure period of ten (10) days;
 - (d) fail to open your BUSINESS and start business, in the time period required under Article 4.9 hereof, subject to a cure period of sixty (60) days.
- (5) Operational Defaults. All of the defaults in this Article 15.2(5) have the cure periods, if any, set forth in the applicable subsection below.
 - (a) operate the BUSINESS in a way that endangers public health or safety, which is an incurable default and shall have no associated cure period;
 - (b) fail to comply with the requirements for the condition of your BUSINESS under Article 9.3 hereof, other than as described in Article 15.2(5)(a) hereof, subject to a cure period of thirty (30) days;
 - (c) fail to comply with our request for reports, copies of invoices and other documentation relating to Article 10.2 spending requirements, subject to a cure period of thirty (30) days;
 - (d) fail to spend the amounts required by Article 10.2, subject to the cure period set forth therein;
 - (e) cease to hold a license, certification, permit and/or authorization that you are required to hold to carry on the BUSINESS or to comply with any applicable law, regulation or norm applicable to you or the BUSINESS, subject to a cure period of fourteen (14) days; and
 - (f) fail to comply with any mandatory Method of Operation, other than as described in Article 15.2(5)(a) hereof, subject to a cure period of thirty (30) days.
- (6) Conduct Defaults. All of the defaults in this Article 15.2(6) have the cure periods, if any, set forth in the applicable subsection below.
 - (a) you or your Owners make or have made any material misrepresentation or omission in connection with your purchase of the Franchise, including any such misrepresentation or omission in the appendices hereto, which is an incurable default and shall have no associated cure period;
 - (b) you or your Owners act fraudulently in connection with the operation of the BUSINESS, which is an incurable default and shall have no associated cure period;

- (c) you or your Owners are convicted of, or plead no contest to, a felony, serious offense or other crime or offense that we believe may adversely affect the System or the goodwill associated with the Marks, which, except as provided in Article 15.4 hereof, is an incurable default and shall have no associated cure period;
 - (d) you or your Owners violate Article 9.6 herein, which has a cure period of seven (7) days if, in our opinion, such default is capable of cure, otherwise it shall have no cure period, except as provided in Article 15.4 hereof;
- (7) Unfair Competition Defaults. All of the defaults in this Article 15.2(7) are by their nature incurable and have no associated cure period other than as described in Article 15.4.
 - (a) make any unauthorized use or disclosure of any Confidential Information or use, duplicate or disclose any portion of the Operations Manual in violation of this Agreement;
 - (b) fail to comply with the non-competition requirements set forth in Article 16.6 hereof;
- (8) Multiple and Cross Defaults. All of the defaults in this Article 15.2(8) are by their nature incurable and have no associated cure period. The failure to comply with the Development Schedule under an ADA with us shall not be a default under this Agreement.
 - (a) receive three (3) or more notices of default from us on separate occasions within any period of twelve (12) consecutive months including, without limitation, default notices for failure to submit when due reports or other data, information or supporting records or to pay when due Continuing Fees, Ad Fees or other payments due us, any of our Affiliates or any unaffiliated suppliers or otherwise fail to comply with this Agreement, whether or not such failures are corrected after notice is delivered to you, and whether or not such failures are related to each other or are of the same or similar type;
 - (b) commit a default at another **PLANET FITNESS** Business under any other franchise agreement, between you (or any of your Owners or Affiliates) and us or our Affiliates which default is comparable to the Events of Default under Articles 15.2(2)(b), 15.2(2)(c), or 15.2(6)(a) of this Agreement, if such default is deemed, in our judgment, to affect the brand as a whole (not simply any one **PLANET FITNESS** Business), and such default was carried out willfully or negligently;
 - (c) you or any of your Affiliates fail to comply with any three (3) other franchise agreements between you (or any of your Owners or Affiliates) and us or our Affiliates such that we have terminated three (3) or more such agreements, on the basis of such noncompliance; unless such failure related to: (i) not acquiring a site within a given time period; or (ii) not constructing or opening a **PLANET FITNESS** Business within a given time period, and, in either case, you or your Affiliate exercised good faith efforts to meet such obligations.
- (9) Other Defaults. All of the defaults in this Article 15.2(9) have the cure periods set forth in the applicable subsections below.
 - (a) fail to cure a default under this Agreement which impairs the goodwill associated with the Marks, subject to a cure period of twenty-four (24) hours;
 - (b) fail to comply with any other provision of this Agreement, subject to a cure period of thirty (30) days, if, in our opinion, such default is capable of cure, otherwise it

shall have no cure period. This period shall not be in addition to any other cure periods provided under this Agreement.

15.3 NOTICE OF DEFAULT. Prior to exercising the remedies set forth in Article 15.5 as a result of any curable Event of Default set forth in Article 15.2, we shall provide you with written notice of such default (a “Notice of Default”). The Notice of Default will state the action you must take to cure the Event of Default, and the period of time in which you must do so. If you fail to remedy the Event of Default within such period of time, we may exercise the remedies set forth in Article 15.5 with immediate effect upon our delivery to you of a Remedy Notice as set forth in Article 15.5(4).

15.4 DEFAULTING OWNERS. If the actions or inactions of one (1) of your individual Owners (a “Defaulting Owner”) result in an Event of Default described in Article 15.2(6)(b), Article 15.2(6)(d), or Article 15.2(7), and neither you, nor any of your other Owners, approved or knowingly assisted with such actions or inactions, the default may be cured by, within thirty (30) days from our delivery to you of a Notice of Default, (i) the Defaulting Owner relinquishing or otherwise disposing of the Defaulting Owner’s interest in you (pursuant to Article 13 of this Agreement) or your exercise of commercially reasonable efforts to cause such relinquishment or disposal (such as exercising available remedies under your internal governing documents and/or offering to purchase such Defaulting Owner’s interest at fair market value) and (ii) the Defaulting Owner ceasing all involvement and association with the BUSINESS, except as a passive investor with no access to Confidential Information other than as permitted by Appendix G hereto, provided that the conditions in subclause (i) in this Article 15.4 have been met. For clarity, in such case, we expressly reserve all rights and remedies we may have directly against such Defaulting Owner. In our sole discretion, we may also refrain from terminating this Agreement in the case of an uncured breach of Article 9.6 hereof, while expressly reserving all other rights and remedies hereunder, if such Defaulting Owner agrees to limit such Defaulting Owner’s communication with our personnel, the personnel of any designated suppliers, and **PLANET FITNESS** members at your and your Affiliates’ **PLANET FITNESS** Businesses in such manner and for such time period as we may designate. If the Defaulting Owner’s breach is ongoing, you must fully cooperate with efforts we undertake to cause the Defaulting Owner to cease any prohibited conduct. Such cooperation may include, but may not be limited to, providing documents and information and, when appropriate to do so (if the breach is also a violation of an obligation the Defaulting Owner owes to you, for example), commencing and/or joining litigation.

15.5 REMEDIES. For any incurable Event of Default and for any curable Event of Default that remains uncured upon the expiration of the applicable cure period, we shall have the remedies set forth below. Such remedies are in addition to, and not lieu of, any other remedies or recourse we may have against you in law or equity, including commencing a legal proceeding to collect damages due to such default.

- (1) Termination. You and we agree and acknowledge that the Events of Default are just causes for termination. We therefore have the right to terminate (rescind) this Agreement, Agreement through written notice delivered from us to you, without any further cure period, and without any responsibility for us, and without the need to obtain arbitral or judicial resolution. We have no obligation whatsoever to refund any portion of the franchise fee upon any termination of this Agreement.
- (2) Alternatives to termination. Without waiving our right to terminate this Agreement (or any other rights), we have the right to take one or more of the following actions, with ongoing effect until the default is cured:
 - (a) restrict your or any of your staff’s attendance at any training, meetings, workshops, or conventions;
 - (b) require you to pay to us or the NAF, via EFT, up to an additional four percent (4%) of the Revenue of the Business;

- (c) replace the Continuing Fees in Article 5.2 of this Agreement with the Continuing Fees offered in our then current franchise agreement;
 - (d) suspend all services provided to you hereunder, including, but not limited to, selling or furnishing to you any advertising or promotional materials, providing ongoing advice about the operation of the BUSINESS, and reviewing your requests to approve a new supplier or the use of any advertising or promotional materials;
 - (e) suspend your access to our technology systems or any software that we or our Affiliates own, maintain or license to you;
 - (f) refuse to permit you (or any of your Affiliates) to enter into a new franchise agreement for a **PLANET FITNESS** Business at any other location;
 - (g) require you, at your own expense, to engage a third-party training company previously approved by us; and
 - (h) remove content and online join functionality regarding your BUSINESS from our Internet websites, intranet systems, mobile applications, and/or any other digital platform.
- (3) **Effect of Alternative Remedies.** The alternatives to termination described in Article 15.5(2) shall only apply until such time as you have cured the applicable Event of Default. You shall hold us harmless with respect to any action we take pursuant to Article 15.5(2); and you agree that we shall not be liable for any loss, expense, or damage you incur because of any action we take pursuant to Article 15.5(2). Nothing in Article 15.5(2) constitutes a waiver of any of our rights or remedies under this Agreement or any other agreement between us and you, including the right to terminate (rescind) this Agreement. You agree that our exercise of our rights pursuant to Article 15.5(2) shall not be deemed an actual or constructive termination of this Agreement or of any other agreement between us and you, and shall not be deemed a breach of any provision of this Agreement. We may, in our discretion, reinstate any services or benefits removed, curtailed, or limited pursuant to Article 15.5(2), and you agree to accept immediately any such reinstatement of services or benefits so removed, curtailed, or limited. If we limit any services or benefits under Article 15.5(2), you shall continue to pay timely all fees and payments required under this Agreement and any other agreement between us and you, including any fees associated with services or benefits limited by us. You shall have no right to a refund of any fees paid in advance for such services or benefits nor shall we have any obligation to “make-up” any services or benefits.
- (4) **Exercise of Remedies.** We may exercise the remedies set forth in this Article 15.5 by written notice to you (a “Remedy Notice”) for an Event of Default listed in Article 15.2. We may deliver the Remedy Notice (i) for an incurable Event of Default, immediately upon such default or at any time thereafter or (ii) for a curable Event of Default, after the expiration of the applicable cure period without cure. The Remedy Notice shall specify the applicable default, your failure to cure it, if applicable, and any remedies we are then exercising.

15.6 OUR RIGHT TO OPERATE THE BUSINESS. If we issue you a Notice of Default and you fail to cure such default within any applicable time period, we have the right, without the obligation, and without waiving our right to terminate (rescind) this Agreement, as a result of such failure, to assume the operation of the BUSINESS for such length of time as we determine in our discretion. You authorize us or our designee to operate the BUSINESS for so long as we deem necessary and practical, and without waiver of any other rights or remedies we may have under this Agreement. You shall be responsible for all expenses of the BUSINESS during such period of operation by us,

including, but not limited to, travel, food, lodging, and salaries of our representatives who operate the BUSINESS and any expenses in excess of revenues during such period. We shall periodically remit to you any revenues of the BUSINESS we may collect, less any expenses of the BUSINESS we may pay on your behalf from such revenues or otherwise, and less a working capital reserve. You shall indemnify us and our representatives from any and all claims arising from the acts and omissions of us and our representatives pursuant to this Article 15.6.

16. OUR AND YOUR RIGHTS AND OBLIGATIONS UPON TERMINATION OR EXPIRATION OF THIS AGREEMENT.

On expiration, without your acquisition of a successor franchise, or termination of this Agreement for any reason whatsoever, you agree to comply with all of the obligations described in this Article 16.

16.1 PAYMENT OF AMOUNTS OWED TO US. You agree to pay us or our Affiliates within fifteen (15) days after the effective date of termination, for any reason, or expiration, without your acquisition of a successor franchise, of this Agreement, or on such later date that the amounts due are determined, such Continuing Fees, Ad Fees, amounts owed for purchases from us or our Affiliates, interest due on any of the foregoing and all other amounts owed to us or our Affiliates which are then unpaid. Further, if we terminate this Agreement under Article 15.5(1) hereof, such amounts will include any attorneys' fees or other costs incurred by us as a result of the default and the termination.

16.2 MARKS AND SYSTEM. Upon the termination, for any reason, or expiration, without your acquisition of a successor franchise, of this Agreement:

- (1) you must immediately (in any event, within no later than five (5) days) cease use of the System and all intellectual property rights in or associated with the System;
- (2) you may not directly or indirectly, at any time or in any manner (except with respect to other **PLANET FITNESS** Businesses you own and operate), identify yourself or any business as a current or former **PLANET FITNESS** Business, or as one of our licensees or franchisees, use any Marks, any colorable imitation thereof or other indicia (including trade dress, image and fit-out) of a **PLANET FITNESS** Business in any manner or for any purpose or utilize for any purpose any trade name, trademark or service mark or other commercial symbol that indicates or suggests a connection or association with us;
- (3) you agree to take such action and sign whatever documents as may be required to cancel (a) all fictitious or assumed names or equivalent registrations relating to your use of any Marks, and (b) the recording of the Summary of Franchise Agreement referred to in Article 7.5 hereof;
- (4) if we do not exercise our option to purchase the BUSINESS pursuant to Article 16.13, you agree that, after the Notification Date, you will promptly (in any event, within no later than ten (10) days) and at your own expense make such alterations as we may specify to distinguish the BUSINESS clearly from its former appearance and from other **PLANET FITNESS** Businesses so as to prevent confusion therewith by the public;
- (5) you will immediately (in any event, within no later than five (5) days) comply with our then-current de-branding checklist, unless otherwise directed by us. Unless an earlier time is specified, no later than thirty (30) days after the Notification Date, you shall complete all required de-branding and provide us with written certification that such de-branding has been completed. If you fail to do so, we may, in addition to our other rights and remedies hereunder and under applicable law, complete such de-branding for you at your expense and without liability to you. You hereby consent to our entry onto the BUSINESS premises

for such purpose. In connection with the de-branding of the BUSINESS, we may require you to, among other things:

- (a) remove and destroy, or at our option, return to us, all interior and exterior signage, point of sale materials, business forms, and stationery received from us;
- (b) delete from all computer hard drives, all materials, information, communications, manuals, and marketing and promotion materials received from us or our Approved Suppliers;
- (c) remove all decals containing the **PLANET FITNESS** name, slogans, purple/yellow color scheme, or Marks;
- (d) repaint or remove all purple and yellow colors from all equipment, walls, doors, and other surfaces;
- (e) remove and destroy **PLANET FITNESS** trademarked rubber flooring;
- (f) remove any coverings containing the **PLANET FITNESS** name, slogans, purple/yellow color scheme, or Marks from all exercise or other equipment;
- (g) cease selling memberships;
- (h) transition off the POS system and billing system authorized for use in the **BUSINESS**;
- (i) cease all advertising and promotional efforts that identify the location as a **PLANET FITNESS**;
- (j) instruct all third-party Internet sites and telephone directories to remove all listings identifying the location as a **PLANET FITNESS**;
- (k) assign to us, or our designee, all Internet Accounts that reference the Marks and/or System, if any;
- (l) post signage approved by us and notify all existing members in a communication approved by us describing the members' rights and options;
- (m) remove and destroy, or at our option, return all uniforms, sales materials, operations manuals, and other items that contain any Confidential Information;
- (n) cancel all fictitious or assumed names or equivalent registrations relating to your use of any of the Marks;
- (o) change your corporate or legal business name, if necessary, so that it does not contain any of the Marks;
- (p) remove and destroy, or at our option, return to us all signs, sign-faces, sign-cabinets, marketing materials, forms, packaging, and other materials that contain any of the Marks;
- (q) remove all total body enhancement booths; and
- (r) remove and cease selling any other items and materials that we determine, in our judgment, are similar to those used under or in connection with the **PLANET**

FITNESS Methods of Operation, and similarly, immediately cease using any other **PLANET FITNESS** procedures, systems, and any other information that we designate as proprietary and confidential.

- (6) you may not sell or otherwise transfer any equipment or other fixtures or items until they have been fully de-branded in accordance with our then-current de-branding checklist and Article 16.2(5). If you fail to comply with this requirement, you agree, in addition to all of our other rights and remedies available hereunder, you will indemnify us for our costs in attempting to de-brand the equipment including, but not limited to, our costs to purchase from third parties equipment you failed to properly de-brand. You agree to cooperate with all such efforts;
- (7) you shall be responsible for providing members with any refunds to which they are entitled under the terms of their membership agreements or applicable law;
- (8) you shall, within five (5) days of our request, assign to us or to the owner of a **PLANET FITNESS** Business we designate any of the membership agreements that we designate for assignment, to the extent such agreements are assignable under applicable law;
- (9) you must comply with the requirements for closure of a **PLANET FITNESS** Business that we set forth in the Operations Manual; and
- (10) you agree to furnish us, within thirty (30) days after the Notification Date, with evidence satisfactory to us of your compliance with the foregoing obligations.

16.3 COMMUNICATION TO MEMBERS. In connection with the termination of this Agreement or the expiration of this Agreement without your acquisition of a successor franchise, we may contact your members directly to notify them of the closing and/or de-branding of the BUSINESS and inform them of nearby **PLANET FITNESS** Businesses that they may join. We may make such communication (a) in the case of termination by you or expiration without acquisition of a successor franchise, on or after thirty (30) days prior to the date this Agreement would terminate or expire, or such longer period of time in advance of termination or expiration as applicable law may require you to notify members of the closing and/or de-branding of the BUSINESS or (b) in the case of termination by us, once the cure period for your default has expired (we may, for example, delay the effective date of termination after your cure period expires to make such communication). Notwithstanding any notices we may send to your members, you are solely responsible for compliance with any applicable laws related to notifying members in connection with the closing and/or de-branding of the BUSINESS and any associated refunds.

16.4 TELEPHONE NUMBERS, DOMAIN NAMES AND ACCOUNTS.

- (1) You hereby that you will assign to us or our designee the telephone numbers and listings issued to you with respect to the BUSINESS (“Telephone Numbers”) and any Internet Accounts per the terms below, if we desire to take possession and control over them.
- (2) If we do not exercise our option to purchase the BUSINESS pursuant to Article 16.13, you agree that, after the Notification Date, you will promptly (in any event, within no later than ten (10) days) notify any company that publishes telephone directories (the “Telephone Company”) and any provider of Internet services or host of an Internet site or platform with which an Internet Account or listing is set up or registered (“Internet Platform”) of your right to use any telephone, telecopy or other numbers, or Internet Accounts and any regular, classified or other telephone directory or Internet listings associated with any Marks, authorize the transfer of such numbers, Internet Accounts, and directory listings to us or at our direction and/or instruct (i) the Telephone Company to forward all calls made to your telephone numbers to numbers we specify and (ii) the Internet Platform to forward all

communications or requests to the accounts or sites we specify. You shall cause your Owners, legal representatives or other Personnel to sign any documents or take any other action that may be required to authorize the transfer of the Telephone Numbers, Internet Accounts and directory listings described herein that have been, in whole or in part, set-up, registered or owned by them.

- (3) Upon the termination, for any reason, or expiration, without your acquisition of a successor franchise, of this Agreement, you agree to execute immediately (in any event, within no later than five (5) days) such, documents, directions and authorizations as may be necessary or prudent to assign to us or our designee the telephone number or numbers and listings issued to you with respect to the BUSINESS. You shall assign to us ownership of any domain names you have used in connection with the BUSINESS, even if such domain names were registered in violation hereof, and agree to execute immediately (in any event, within no later than five (5) days after our corresponding request) such documents, directions and authorizations as may be necessary or prudent to assign to us or our designee any such domain names.

16.5 CONFIDENTIAL INFORMATION. You agree that, upon termination of this Agreement (including the full or partial transfer of rights by Franchisee or any Owner), for any reason, or expiration, without your acquisition of a successor franchise, of this Agreement, unless you own a franchise for another **PLANET FITNESS** Business, you will (a) immediately and for a term of five (5) years thereafter cease to use any of our Confidential Information in any business or otherwise, (b) return to us all copies of the Operations Manual, including any adaptation or translations thereof, and any other confidential materials including, without limitation, computer software and any login credentials, access codes or other mechanisms used to access the software and computer systems, that we have allowed you to use, and (c) immediately (in any event, within no later than five (5) days) de-activate your access and the access of your Owners and other Personnel to the Designated Franchise Portal and any other software, computer systems and electronic mailing lists containing Confidential Information.

16.6 IN-TERM COVENANT NOT TO COMPETE. You specifically acknowledge that, pursuant to this Agreement, you will receive valuable, specialized training, Confidential Information, and other proprietary and specialized information and knowledge that provide a valuable, competitive advantage in operating a business or other venture offering fitness, exercise or athletic services of any kind. You further acknowledge that we would be unable to protect the Confidential Information against unauthorized use or disclosure or to encourage the free exchange of ideas and information among our franchisees if you were permitted to hold interests in or perform services for a Competitive Business, and we have granted you the rights hereunder in consideration of, and in reliance upon, your agreement to deal exclusively with us. You therefore covenant that during the Term of this Agreement (except as otherwise approved in writing by us), you, your Owners, your Approved Operator, your Franchisee Executives and your and their Immediate Families shall not, either directly, indirectly or through, on behalf of, or in conjunction with any person, anywhere in the world:

- (1) Divert or attempt to divert any present or prospective business or customer of any **PLANET FITNESS** Business to any Competitive Business, by direct or indirect inducement or otherwise, or do or perform, directly or indirectly, any other act injurious or prejudicial to the goodwill associated with the Marks and the System; or
- (2) Own, develop, maintain, operate, engage in, be employed by, act as a consultant for, perform services for, provide assistance to, lease space for, enter into an agreement to develop or operate, or have any interest in (as owner or otherwise) any Competitive Business or any business or other venture that is offering or selling franchises or licenses for the operation of a Competitive Business.

- 16.7 POST-TERM COVENANT NOT TO COMPETE.** You covenant that, except as otherwise approved in writing by us, you, your Owners, your Approved Operator and your Franchisee Executives shall not, for a continuous, uninterrupted period of two (2) years commencing upon the date of (a) a Transfer permitted under Article 13 of this Agreement, (b) expiration, without your acquisition of a successor franchise, of this Agreement, (c) termination or non-renewal of this Agreement (regardless of the cause for termination or non-renewal), (d) in the case of an Approved Operator or Franchisee Executive, termination of their role with you, or (e) a final order of a court of competent jurisdiction (after all appeals have been taken) with respect to any of the foregoing or with respect to enforcement of this Article 16.7, either directly or indirectly, for yourself or your or their Immediate Family, or through, on behalf of, or in conjunction with any person, own, develop, maintain, operate, engage in, be employed by, act as a consultant for, perform services for, provide assistance to, lease space for, enter into an agreement to develop or operate, or have any interest in (as owner or otherwise) any Competitive Business or any business or other venture that is offering or selling franchises or licenses for the operation of a Competitive Business that is, or is intended to be, located or doing business (a) at the Location, (b) within twenty-five (25) kilometers of the Location, or (c) twenty-five (25) kilometers of any **PLANET FITNESS** Business in operation or under construction as of the date that you are required to comply with this Article 16.7. You agree and acknowledge that the two (2) year period of this restriction shall be tolled during any time period in which you, your Owners, your Approved Operator, your Franchisee Executives, or your or their Immediate Family are in violation of this restriction. If a former Owner, Approved Operator or Franchisee Executive violates this provision, you must fully cooperate with efforts we undertake to cause such Owner, Approved Operator or Franchisee Executive to cease and desist from such violation. Such cooperation may include, but shall not be limited to, providing documents and information and, when appropriate to do so (if the breach is also a violation of an obligation the Owner, Approved Operator or Franchisee Executive owes to you, for example), commencing and/or joining litigation.
- 16.8 OWNER AND OPERATOR COVENANTS.** If you are an Entity, your Responsible Owner, Approved Operator, Franchisee Executives and each person that has any direct or indirect legal or beneficial ownership interest in you is bound by the restrictions in Articles 16.6 and 16.7, and must sign Appendix B to this Agreement (Personal Covenants and Agreement Regarding Confidentiality and Non-Competition) to acknowledge such restrictions. If you are an Entity, then each person who, now or hereafter is or becomes a general quota holder or shareholder is deemed an Owner who must sign Appendix B. We make no representation or warranty with respect to the compliance with local law and enforceability of your third-party beneficiary rights under Appendix B hereof and you hereby waive any claims you may have against us related thereto. You acknowledge that it may be advisable to obtain additional covenants from your Owners and other personnel in separate agreements between you and them.
- 16.9 APPLICATION TO SECURITIES AND LEASING.** The restrictions in Articles 16.6(2) and 16.7 do not apply to (a) the ownership of shares of a class of securities that are listed on a public stock exchange or traded on the over-the-counter market and that represent less than five percent (5%) of that class of securities or (b) the lease or sublease of space by one of your Owners, with our approval (not to be unreasonably withheld, conditioned or delayed) to a Competitive Business.
- 16.10 REASONABLE SCOPE OF COVENANTS.** You acknowledge that the scope of the restrictions in Articles 16.6 and 16.7 are reasonable and necessary to protect us, the Confidential Information, and the System, and that such restrictions are designed solely to prevent you from taking information, materials, training, and know-how that we provided to you and using them to compete with us. In addition, your violation of Article 16.6 or 16.7 would necessarily involve your use of Confidential Information that would result in an unfair competitive advantage vis-à-vis other **PLANET FITNESS** franchisees. You further acknowledge that you and your Owners possess skills and abilities of a general nature and have other opportunities for exploiting these skills. Consequently, our enforcement of the covenant in Article 16.7 will not deprive you or your Owners of personal goodwill or the ability to engage in a lawful trade or business and earn a living.

16.11 REDUCTION OF SCOPE OF COVENANTS. You understand and acknowledge that we shall have the right, in our discretion, to reduce the scope of any covenant set forth in Articles 16.6 and 16.7, or any portion thereof, without your consent, effective immediately upon receipt by you of written notice thereof; and you agree that you shall comply forthwith with any covenant as so modified, which shall be fully enforceable.

16.12 COVENANT NOT TO COMPETE UPON EXERCISE OF RIGHT OF FIRST REFUSAL. If we exercise our right of first refusal pursuant to Article 13.8. above, you and your selling Owner(s) agree that, for a period of two (2) years commencing on the date of the closing, you and they will be bound by the noncompetition covenant contained in Article 16.7 hereof, and must sign Appendix B to this Agreement (Personal Covenants and Agreement Regarding Confidentiality and Non-Competition) to acknowledge such restrictions. In addition, we reserve the right to require you and your selling Owner(s) to agree that, for a period of three (3) years commencing on the date of the closing, you and they will be bound by the noncompetition covenant contained in Article 16.7 hereof but which shall be limited to a geographic area that extends no more than twenty-five (25) kilometers from any **PLANET FITNESS** Business, or rights to develop **PLANET FITNESS** Businesses, you or they are selling to us in such transaction.

16.13 OUR RIGHT TO PURCHASE THE BUSINESS.

- (1) Exercise of Option. Upon termination or expiration, without your acquisition of a successor franchise, of this Agreement in accordance with its terms and conditions, we have the option, exercisable by giving written notice thereof to you (by the later of (a) sixty (60) days from the date of such termination or expiration, without your acquisition of a successor franchise, or (b) seven (7) days after determination of the purchase price), to purchase the BUSINESS from you, including the leasehold rights to the Location, free and clear of all liens, restrictions or encumbrances. (The date on which we notify you whether or not we are exercising our option is referred to in this Agreement as the "Notification Date"). We have the unrestricted right to assign this option to purchase the BUSINESS. You acknowledge and agree that we may share the purchase price and other relevant information regarding the BUSINESS on a confidential basis with a prospective assignee. We will be entitled to all customary warranties and representations in connection with our asset purchase, including, without limitation, representations and warranties as to ownership and condition of and title to assets; liens and encumbrances on assets; validity of contracts and agreements; and liabilities affecting the assets, contingent or otherwise.
- (2) Leasehold Rights. You agree, at our election, to assign your leasehold interest in the Location to us or to enter into a sublease for the remainder of the lease term on the same terms (including renewal options) as the prime lease. For the avoidance of doubt, if we do not exercise our option to purchase the BUSINESS hereunder, we may, upon termination or expiration, without your acquisition of a successor franchise, of this Agreement, assume your leasehold interest by exercising our rights under the Lease without any obligation of payment or other consideration to you.
- (3) Purchase Price. The purchase price for the BUSINESS will be its fair market value. The BUSINESS's fair market value will (a) be determined in a manner consistent with depreciation of the BUSINESS's equipment, signs, inventory, materials and supplies, (b) be based on the value of the BUSINESS as an independent, non-franchised business and will not include any value for the Franchise or any rights granted by this Agreement, the Marks, or participation in the network of **PLANET FITNESS** Businesses, and (c) include the goodwill you developed since your commencement of operations that exists independent of the goodwill of the Marks and the System. The length of the remaining term of the lease for the Location will also be considered in determining the BUSINESS's fair market value.

- (4) Exclusions. We may exclude from the assets purchased hereunder cash or its equivalent and any equipment, signs, inventory, materials and supplies that are not necessary (in function or quality) to the BUSINESS's operation or that we have not approved as meeting standards for **PLANET FITNESS** Businesses, and the purchase price will reflect such exclusions.
- (5) Appraisal. If we and you are unable to agree on the BUSINESS's fair market value, its fair market value will be determined by an appraiser agreeable to both parties. If we and you are unable to agree on an appraiser, then the BUSINESS's fair market value will be determined by three (3) independent appraisers who collectively will conduct one (1) appraisal. We will appoint one (1) appraiser, you will appoint one (1) appraiser and the two (2) party appointed appraisers will appoint the third appraiser; provided, however, that if you fail to timely appoint your appraiser, then the fair market value determined by our appraiser alone shall prevail. You and we agree to select our respective appraisers within fifteen (15) days after the date we determine that we are unable to agree on the BUSINESS's fair market value, and the two (2) appraisers so chosen are obligated to appoint the third appraiser within fifteen (15) days after the date on which the last of the two (2) party appointed appraisers was appointed. You and we will bear the cost of our own appraisers and share equally the fees and expenses of the third appraiser chosen by the two party appointed appraisers. You and we will take all necessary actions to cause the appraisers to complete their appraisal within thirty (30) days after the third appraiser's appointment.
- (6) Closing. The purchase price will be paid at the closing of the purchase, which will take place not later than ninety (90) days after determination of the purchase price. We have the right to set off against the purchase price, and thereby reduce the purchase price by, any and all amounts you or your Owners owe to us or our Affiliates or any amounts you owe to your landlord, System suppliers or that we are otherwise required to pay in order to assume lawful occupancy of the Location and operation of the BUSINESS.
- (7) Instruments. At the closing, you agree to deliver instruments transferring:
- (a) good and merchantable title to the assets purchased, free and clear of all liens and encumbrances (other than liens and security interests acceptable to us, if any), with all sales and other transfer taxes paid by you;
 - (b) all licenses, authorizations, certifications and permits of the BUSINESS which may be assigned or transferred; and
 - (c) the leasehold interest in the Location and improvements thereon.
- (8) Escrow. If you cannot deliver clear title to all of the purchased assets, or if there are other unresolved issues, the closing of the sale will, at our election, be accomplished through an escrow arrangement with an independent escrow agent selected by us.
- (9) Releases. In connection with the closing of the sale, you and your Owners agree to execute general releases, in form satisfactory to us, of any and all claims against us, our Affiliates, and the shareholders, officers, partners, quota holders, legal representatives, directors, employees, agents, successors and assigns thereof.

16.14 CONTINUING OBLIGATIONS. All of our and your (and your Owners' and Affiliates') obligations which expressly or by their nature survive the expiration or termination of this Agreement will continue in full force and effect subsequent to and notwithstanding its expiration or termination and until they are satisfied in full or by their nature expire.

17. SECURITIES OFFERINGS.

17.1 SECURITIES OFFERINGS. Neither you nor any of your Owners may issue or sell, or offer to issue or sell, any of your securities or any securities of any of your Affiliates, if such sale or offer would require registration and/or disclosure pursuant to the securities laws of the Country or any other jurisdiction. Other offers, issuances or sales by you or your Owners of any of your securities or any securities of any of your Affiliates are subject to (1) our prior written consent and (2) your compliance with all applicable laws and all of our requirements and restrictions concerning use of information about us and our Affiliates. If such proposed offering is either (i) a customary employee equity incentive or (ii) an equity issuance in connection with an additional capital contribution by an existing Owner, our consent under this Article 17.1 will not be required (although such proposed offering may be subject to Article 13 hereof). Any proposed private placement of your or of your Affiliate's securities must be approved by us. For any proposed securities offering approved in principle by us, you shall submit to us for our prior review all materials required by applicable law for the offering. No such materials shall be submitted to a government agency or to prospective investors unless and until we have furnished our written approval. No offering materials shall imply, by use of the Marks or otherwise, that we, our Affiliates, or our respective directors, officers, legal representatives, employees, shareholders, partners, quota holders, or agents are participating as an underwriter, issuer, or offeror of securities of either you or us, or that we have approved the offering prospectus or any other aspect of the offering. Any review by us of the offering materials or the information included therein shall be conducted solely for our benefit to determine their conformance with our internal policies, and not to benefit or protect any other person. No investor should interpret such review by us as constituting, nor shall you or anyone acting on your behalf suggest, that our review constitutes an approval, endorsement, acceptance, or adoption of any representation, warranty, covenant, or projection contained in the materials reviewed; and the offering documents shall include legends and statements, in the form and manner specified by us, disclaiming our liability for, or involvement in, the transaction described in the offering documents. You and other participants in the offering must fully indemnify, defend and hold harmless us, our Affiliates and our respective directors, officers, legal representatives, employees, shareholders, partners, quota holders, and agents from any and all losses and expenses that arise directly or indirectly from, as a result of, or in connection with the offering. For any proposed offering, you shall reimburse our out-of-pocket costs (including the costs of our legal and accounting advisors) to review the materials when incurred. In addition, for any proposed offering that requires our consent under this Article 17.1, we may require you to pay us a non-refundable fee of up to the lesser of (a) one percent (1%) of the capital to be raised in the offering or (b) One Hundred Thousand Dollars 00/100 Legal Currency of the United States of America (US\$100,000.00), at the time that you submit materials for review by us. Such fee may be charged only once to you and your Affiliates per offering, and will not be charged on a per-Franchise Agreement basis. You shall give us written notice at least ninety (90) days prior to the date of commencement of any offering or other transaction covered by this Article 17.1. Any such offering shall be subject to our right of first refusal as provided in Article 13.8 hereof.

18. RELATIONSHIP OF THE PARTIES AND INDEMNIFICATION.

18.1 INDEPENDENT CONTRACTORS. Neither this Agreement nor the dealings of the parties pursuant to this Agreement shall create any fiduciary relationship or any other relationship of trust or confidence between the parties hereto. Furthermore, you and we acknowledge that this Agreement does not create any labor or employment relationship between you and us, nor between you and our employees, contractors, representatives and agents and that you are acting within the ordinary course of your business. The parties hereto, as between themselves, are and shall be independent contractors. If applicable law shall imply a covenant of good faith and fair dealing in this Agreement, the parties hereto agree that such covenant shall not imply any rights or obligations that are inconsistent with a fair construction of the terms of this Agreement. Additionally, if applicable law shall imply such covenant, we and you acknowledge and agree that (a) this Agreement (and the relationship of the parties which arises from this Agreement) grants us the right to make decisions, take actions and/or refrain from taking actions not inconsistent with your explicit

rights and obligations hereunder that may affect favorably or adversely your interests; (b) we will use our judgment in exercising such rights based on our assessment of our own interests and balancing those interests against the interests of the owners of **PLANET FITNESS** Businesses generally (including ourselves, and our Affiliates and other franchisees), and specifically without considering your individual interests or the individual interests of any other particular franchisee, and no court or judge or trier of fact, or any other person reviewing those activities or decisions may substitute his, her, or its judgment for our judgment, in recognition of the fact that the long-term goals of a franchise system, and the long-term interests of both us and our franchisees taken together, require that we have the latitude to exercise our business judgment in administering, managing and overseeing the System; and (c) we will have no liability to you for the exercise of our rights in this manner so long as such rights are not exercised in bad faith toward you. Nothing contained in this Agreement, or arising from the conduct of the parties hereunder, is intended to make either party a general or special agent, joint venturer, quota holder or employee of the other for any purpose whatsoever. You must conspicuously identify yourself in all dealings with customers, lessors, contractors, suppliers, public officials, employees and others as the owner of your BUSINESS and must provide written notice to all employees identifying yourself as a separate and distinct business from us, with such notice being affirmatively acknowledged by each of your employees in a form we specify in the Operations Manual or otherwise in writing from time to time. You agree to always indicate your status as an independent contractor and franchisee on any document or information released by you in connection with the BUSINESS and to place such other notices of independent ownership on such forms, business cards, stationery, advertising and other materials as we may require from time to time. Further, you will display the following notice in a prominent place at the BUSINESS: ***"This Planet Fitness is a franchise of Planet Fitness Mexico, S. de R.L. de C.V. and is independently owned and operated."*** You may not make any express or implied agreements, warranties, guarantees or representations or incur any debt in our name or on our behalf or represent that the relationship of the parties hereto is anything other than that of independent contractors or franchisor and franchisee. You represent and warrant that with respect to Articles 12 and 13 of the Mexican Federal Labor Law (*Ley Federal de Trabajo*), you are not an intermediary and that you have the necessary and sufficient material and human resources to perform your obligations under this Agreement. We will not be obligated by or have any liability under any agreements made by you with any third party or for any representations made by you to any third party. We will not be obligated for any damages of any nature whatsoever to any person or property arising directly or indirectly out of the operation of your BUSINESS.

- 18.2 NO LIABILITY FOR ACTS OF OTHER PARTY.** You agree not to employ any of the Marks in signing any contract or applying for any license or permit, or in a manner that may result in our liability for any of your indebtedness or obligations. Neither we nor you will be obligated by or have any liability under any agreements or representations made by the other that are not expressly authorized in writing, except as we may be authorized to do under this Agreement.
- 18.3 TAXES.** Each Party shall be responsible for the payment of the taxes levied in connection with this Agreement under the applicable laws. Without limitation to the foregoing, Franchisee must pay, promptly when due, and hold Franchisor and its Affiliates harmless from all taxes (including interest, penalties and additions to tax) in connection with the BUSINESS. Franchisee will fully cooperate, at Franchisee's cost, with Franchisor and its Affiliates in any manner they may reasonably request in connection with Franchisor's filing of any documentation relating to any tax imposed as a result or otherwise related in any way to this Agreement. Franchisee shall furnish to Franchisor, promptly upon request, all documentation required by Franchisor to evidence the payment of all of its taxes, including, official receipts of the appropriate taxing authorities and copies of any and all tax returns.
- 18.4 INDEMNIFICATION.** IN ADDITION TO YOUR OTHER INDEMNIFICATION OBLIGATIONS SET FORTH IN THIS AGREEMENT, YOU AND THE GUARANTOR IDENTIFIED IN APPENDIX C, AGREE THAT YOU SHALL, AT ALL TIMES, INDEMNIFY, EXCULPATE, DEFEND AND HOLD HARMLESS, TO THE FULLEST EXTENT PERMITTED BY LAW, US, OUR SUCCESSOR, ASSIGNS, AND AFFILIATES

(INCLUDING BUT NOT LIMITED TO PLANET FITNESS DISTRIBUTION LLC AND PFIP INTERNATIONAL), AND THE RESPECTIVE OFFICERS, DIRECTORS, SHAREHOLDERS, PARTNERS, QUOTA HOLDERS, AGENTS, REPRESENTATIVES, INDEPENDENT CONTRACTORS, SERVANTS, AND EMPLOYEES OF EACH OF THEM (THE "INDEMNIFIED PARTIES") FROM ALL LOSSES AND EXPENSES INCURRED IN CONNECTION WITH ANY ACTION, SUIT, PROCEEDING, CLAIM, DEMAND, INVESTIGATION, OR INQUIRY (FORMAL OR INFORMAL), OR ANY SETTLEMENT THEREOF, WHICH ARISES OUT OF OR IS BASED UPON ANY OF THE FOLLOWING: (A) THE INFRINGEMENT, ALLEGED INFRINGEMENT OR ANY OTHER VIOLATION BY YOU, YOUR GUARANTOR OR OWNERS OF ANY PATENT, MARK, COPYRIGHT, OR OTHER PROPRIETARY RIGHT OWNED OR CONTROLLED BY THIRD PARTIES DUE TO YOUR UNAUTHORIZED USE OF ALL OR ANY PORTION OF THE MARKS AND/OR SYSTEM; (B) THE VIOLATION, BREACH, OR ASSERTED VIOLATION OR BREACH BY YOU, YOUR GUARANTOR OR OWNERS OF ANY FEDERAL, STATE, OR MUNICIPAL LAW, REGULATION, RULING OR INDUSTRY STANDARD; (C) LIBEL, SLANDER, OR ANY OTHER FORM OF DEFAMATION BY YOU OR YOUR GUARANTOR OR OWNERS; (D) THE VIOLATION OR BREACH BY YOU OR BY YOUR GUARANTOR OR OWNERS OF ANY WARRANTY, REPRESENTATION, AGREEMENT, OR OBLIGATION OF THIS AGREEMENT OR IN ANY OTHER AGREEMENT BETWEEN YOU AND US OR OUR AFFILIATES; (E) ANY DATA EVENT, IDENTITY THEFT, OR THEFT, UNAUTHORIZED ACCESS, MISUSE, OR DISPOSAL OF PERSONAL INFORMATION OR HEALTHCARE INFORMATION OF A CUSTOMER OR PROSPECTIVE CUSTOMER ARISING FROM ANY SECURITY BREACH SUFFERED OR CAUSED BY YOU, YOUR LEGAL REPRESENTATIVES, AGENTS, OR YOUR EMPLOYEES; (F) ACTS, ERRORS, OMISSIONS OF YOU, ANY OF YOUR AFFILIATES, ANY OF YOUR OWNERS, OFFICERS, DIRECTORS, SHAREHOLDERS, QUOTA HOLDERS, AGENTS, LEGAL REPRESENTATIVES, INDEPENDENT CONTRACTORS, AND EMPLOYEES OF YOU AND YOUR AFFILIATES IN CONNECTION WITH THE ESTABLISHMENT AND OPERATION OF THE BUSINESS, INCLUDING, BUT NOT LIMITED TO, ANY ACTS, ERRORS, OR OMISSIONS OF ANY OF THE FOREGOING IN THE OPERATION OF ANY MOTOR VEHICLE OR IN THE ESTABLISHMENT OR IMPLEMENTATION OF SECURITY FOR THE BUSINESS; OR (G) ANY ALLEGATION THAT AN INDEMNIFIED PARTY IS A JOINT EMPLOYER OF YOUR EMPLOYEES; UNLESS (AND THEN ONLY TO THE EXTENT THAT) THE CLAIMS, OBLIGATIONS, AND DAMAGES ARE DETERMINED TO BE CAUSED SOLELY BY THE INDEMNIFIED PARTY'S NEGLIGENCE OR MISCONDUCT ACCORDING TO A FINAL, UNAPPEALABLE RULING ISSUED BY A COURT WITH COMPETENT JURISDICTION. FOR PURPOSES OF THIS INDEMNIFICATION, "LOSSES AND EXPENSES" INCLUDE ALL OBLIGATIONS, DAMAGES, LOSSES AND COSTS INCURRED IN THE DEFENSE OF ANY CLAIM AGAINST ANY OF THE INDEMNIFIED PARTIES, INCLUDING, WITHOUT LIMITATION, ACCOUNTANTS', ATTORNEYS' AND EXPERT WITNESS FEES, COSTS OF INVESTIGATION AND PROOF OF FACTS, COURT COSTS, OTHER EXPENSES OF LITIGATION OR ALTERNATIVE DISPUTE RESOLUTION AND TRAVEL AND LIVING EXPENSES. WE HAVE THE RIGHT TO DEFEND ANY SUCH CLAIM AGAINST US AT YOUR EXPENSE WITH COUNSEL WE SELECT. YOU SHALL PROVIDE THE ADDITIONAL COOPERATION AND ASSISTANCE THAT WE REQUEST IN ORDER TO RELEASE THE INDEMNIFIED PARTIES FROM LIABILITY FOR INDEMNIFIABLE LOSSES AND EXPENSES HEREUNDER. THIS INDEMNITY WILL CONTINUE IN FULL FORCE AND EFFECT SUBSEQUENT TO AND NOTWITHSTANDING THE EXPIRATION OR TERMINATION OF THIS AGREEMENT.

- 18.5 **MITIGATION NOT REQUIRED.** Under no circumstances will we or any other Indemnified Party be required to seek recovery from any insurer or other third party, or otherwise to mitigate our, their or your losses and expenses, in order to maintain and recover fully a claim against you.

You agree that a failure to pursue such recovery or mitigate a loss will in no way reduce or alter the amounts we or another Indemnified Party may recover from you.

- 18.6 NOTIFICATION OF ADVERSE ACTION.** You shall promptly notify us in writing of (a) a notice of violation or alleged violation of any law, ordinance or regulation that is likely to result in the commencement of any material action, suit, proceeding, or investigation, (b) the actual commencement of any such action, suit, proceeding, or investigation, and (c) the issuance of any order, writ, injunction, award, or decree of any court, agency, or other governmental instrumentality, in each case, against you, any of your Affiliates, us, or our Affiliates, that relates to the BUSINESS, or which may materially and adversely affect the development, occupancy or operation of the BUSINESS or your financial condition. Upon our request, you shall furnish to us within five (5) Business Days after receipt thereof, a copy of any notices, subpoenas, or other initial pleadings served upon or received by you in connection with such proceeding, provide us with updates of substantive developments and otherwise cooperate with us in monitoring the progress of any such proceeding. You shall furnish to us within two (2) Business Days after receipt thereof, a copy of any violation or citation which indicates your violation of any law, regulation, or ordinance in the operation of the BUSINESS, of your Lease, or of any alleged health or safety code violation from any governmental agency.

19. ENFORCEMENT AND MISCELLANEOUS MATTERS.

- 19.1 SEVERABILITY AND SUBSTITUTION OF VALID PROVISIONS.** Except as expressly provided to the contrary herein, each provision of this Agreement, and any portion thereof, will be considered severable, and if, for any reason, any such provision is held to be invalid or contrary to or in conflict with any applicable present or future law or regulation in a final, unappealable ruling issued by any court, agency or tribunal with competent jurisdiction in a proceeding to which we are a party, that ruling will not impair the operation of, or have any other effect upon, such other portions of this Agreement as may remain otherwise intelligible, which will continue to be given full force and effect and bind the parties hereto, although any portion held to be invalid will be deemed not to be a part of this Agreement from the date the time for appeal expires, if you are a party thereto, otherwise upon your receipt from us of a notice of non-enforcement thereof.
- 19.2 LESSER COVENANT ENFORCEABLE.** If any covenant herein which restricts competitive activity is deemed unenforceable by virtue of its scope in terms of area, business activity prohibited and/or length of time, but would be enforceable by reducing any part or all thereof, you and we agree that such covenant will be enforced to the fullest extent permissible under the laws and public policies applied in the jurisdiction whose law is applicable to the validity of such covenant.
- 19.3 GREATER NOTICE.** If any applicable and binding law or rule of any jurisdiction requires a greater prior notice than is required hereunder of the termination of this Agreement or of our refusal to enter into a successor franchise agreement, or the taking of some other action not required hereunder, or if, under any applicable and binding law or rule of any jurisdiction, any provision of this Agreement or any part of the Methods of Operation is invalid or unenforceable, the prior notice and/or other action required by such law or rule will be substituted for the comparable provisions hereof, and we will have the right to modify such invalid or unenforceable provision or unenforceable part of this Agreement or the Operations Manual or any part of the Methods of Operation to the extent required to be valid and enforceable. You agree to be bound by any promise or covenant imposing the maximum duty permitted by law which is subsumed within the terms of any provision hereof as though it were separately articulated in and made a part of this Agreement, that may result from striking from any of the provisions hereof, or any part of the Methods of Operation, any portion or portions which a court may hold to be unenforceable in a final decision to which we are a party, or from reducing the scope of any promise or covenant to the extent required to comply with such a court order. Such modifications to this Agreement will be effective only in such jurisdiction, unless we elect to give them greater applicability, and will be enforced as originally made and entered into in all other jurisdictions.

- 19.4 WAIVER OF OBLIGATIONS.** We and you may by written instrument, executed by your and our legal representatives, unilaterally waive or reduce any obligation of or restriction upon the other under this Agreement, effective upon delivery of written notice thereof to the other or such other effective date stated in the notice of waiver. Any waiver we grant will be without prejudice to any other rights we may have, will be subject to our continuing review and may be revoked at any time and for any reason, effective upon delivery to you of ten (10) days' prior written notice.
- 19.5 NON-WAIVER.** We and you will not be deemed to have waived or impaired any right, power or option reserved by this Agreement (including without limitation the right to demand exact compliance with every term, condition and covenant herein or to declare any breach thereof to be a default and to terminate (rescind) this Agreement prior to the expiration of its term), including, without limitation, our right to terminate (rescind) this Agreement through simple written notice, without responsibility, and without the need to obtain arbitral or judicial resolution by virtue of any custom or practice at variance with the terms hereof; our or your failure, refusal or neglect to exercise any right under this Agreement or to insist upon exact compliance by the other with our and your obligations hereunder including without limitation the Methods of Operation; our waiver, forbearance, delay, failure, or omission to exercise any right, power or option whether of the same, similar or different nature with respect to other **PLANET FITNESS** Businesses; the existence of other franchise agreements for **PLANET FITNESS** Businesses which contain different provisions from those contained herein; or our acceptance of any payments due from you after any breach of this Agreement. We may adopt policies from time to time to guide our decision making and promote consistency. Such policies shall not be binding on us and are subject to change. No special or restrictive legend or endorsement on any check or similar item given to us will constitute a waiver, compromise, settlement or accord and satisfaction. We are authorized to remove or obliterate any legend or endorsement, and such legend or endorsement will have no effect.
- 19.6 FORCE MAJEURE** Neither we nor you will be liable for loss or damage or deemed to be in default of this Agreement if our or your failure to perform our or your obligations is not our or your fault and results from:
- (1) transportation shortages, inadequate supply of equipment, products, merchandise, supplies, labor, materials or energy or the voluntary foregoing of the right to acquire or use any of the foregoing in order to accommodate or comply with the orders, requests, regulations, recommendations or instructions of any federal, state or municipal government or any department or agency thereof;
 - (2) hurricanes, earthquakes, epidemics and pandemics (including the voluntary or involuntary compliance by you to accommodate or comply with material restrictions due to any of the foregoing on construction or operations, or with orders, requests, regulations, recommendations or instructions of any federal, state or municipal government ((including quasi-governmental health authorities or organizations)), or any department or agency thereof), or other acts of nature;
 - (3) governmental laws or action (including material restrictions due any of the foregoing on operations), or lack thereof, inaction by any governmental authority with respect to the issuance of any licenses or permits necessary to perform an act of the parties hereunder or any other causes of any kind whatsoever which are beyond the party's reasonable control, fires, strikes, embargoes, war, acts of terrorism or riot; or
 - (4) any other similar event or cause beyond the control of the applicable party.
- Notwithstanding the above, lack of funds and economic conditions shall not constitute a force majeure condition hereunder nor shall any force majeure event excuse any payment obligations hereunder.

- 19.7 EXTEND PERFORMANCE.** Any delay resulting from any of the causes set forth in Article 19.6 will extend performance accordingly or excuse performance, in whole or in part, except that said causes will not excuse payments of amounts owed at the time of such occurrence or payment of Continuing Fees and Ad Fees due on any sales thereafter.
- 19.8 OUT-OF-STOCK AND DISCONTINUED.** We are not liable to you for any loss or damage, or deemed to be in breach of this Agreement, if we cannot deliver, or cause to be delivered, or if our Affiliates or designated sources or Approved Suppliers cannot deliver, all of your orders for products, merchandise, equipment, supplies, etc., where such things are out-of-stock or discontinued.
- 19.9 COSTS AND ATTORNEYS' FEES.** If we incur expenses in connection with your failure to pay when due amounts owed to us or to submit when due any reports, information or supporting records or otherwise to comply with this Agreement, you agree to reimburse us for any of the costs and expenses which we incur, including, without limitation, accounting, attorneys' and related fees. If you request a change to this Agreement after signing, or if you request additional documents (amendments, assignments, tri-party agreements, lender consents or comfort letters, etc.), and, in connection with our fulfillment of such request, we incur third-party costs or pay a filing fee, we may require you to pay or reimburse such costs and fees.
- 19.10 YOU MAY NOT WITHHOLD PAYMENTS DUE TO US.** You agree that you will not withhold payment of any amounts owed to us on the grounds of our alleged nonperformance of any of our obligations hereunder. You agree that all such claims will, if not otherwise resolved by us, be submitted to court as provided in Article 19.12.
- 19.11 RIGHTS OF PARTIES ARE CUMULATIVE.** Our and your rights hereunder are cumulative, and no exercise or enforcement by us or you of any right or remedy hereunder will preclude our or your exercise or enforcement of any other right or remedy hereunder which we or you are entitled by law to enforce.
- 19.12 DISPUTE RESOLUTION.**
- (1) Mediation. Except as provided in Article 19.12(3), prior to filing any suit before the competent courts, the parties agree to mediate any dispute, controversy or claim between and among the parties and any of our or your Affiliates, officers, directors, shareholders, members, partners, quota holders, guarantors, employees or owners arising under, out of, in connection with or in relation to this Agreement, any lease or sublease for your BUSINESS, any loan or other finance arrangement between us or our Affiliates and you, the parties' relationship, your BUSINESS, or any System standard in accordance with the following procedures:
- (a) The party seeking mediation must commence mediation by sending the other party, in accordance with Article 20, a written notice of its request for mediation headed "Notification of Dispute." The Notification of Dispute will specify, to the fullest extent possible, the party's version of the facts surrounding the dispute; the amount of damages and the nature of any injunctive or other relief such party claims. The party (or parties as the case may be) receiving a Notification of Dispute will respond within twenty (20) days after receipt thereof, in accordance with Article 20, stating its version of the facts and, if applicable, its position as to damages sought by the party initiating the dispute procedure; provided, however, that if the dispute has been the subject of a Notice of Default given under Article 15 of this Agreement, the other party will respond within ten (10) Business Days.
- (b) Upon receipt of a Notification of Dispute and response under Article 19.12(1)(a), the parties will endeavor, in good faith, to resolve the dispute outlined in the Notification of Dispute and response. If the parties have been unable to resolve a

dispute outlined in a Notification of Dispute or a response thereto within twenty (20) days after receipt of the response, either party may initiate a mediation procedure with the International Centre for Dispute Resolution (“ICDR”), pursuant to its International Mediation Rules (the “Mediation Rules”). The parties must select a mediator either jointly or as provided in the Mediation Rules.

(c) All mediation sessions will occur in Portsmouth, New Hampshire (or in the city of our then-current headquarters, if our headquarters are no longer in New Hampshire), and must be attended by your Responsible Owner (and any other persons with authority to settle the dispute on your behalf) and our representative(s) who is/are authorized to settle the dispute. The parties may be represented by counsel at the mediation. The parties agree to participate in the mediation proceedings in good faith and with the intention of resolving the dispute if at all possible within thirty (30) days of the notice from the party seeking to initiate the mediation procedures. If the dispute is not resolved within thirty (30) days, any party may file a suit before the competent courts pursuant to Article 19.12(2). In addition, if the party receiving notice of mediation has not responded within five (5) days of delivery of the notice or a party fails to participate in the mediation, this Article 19.12(1) will no longer be applicable and the other party can file a suit before the competent courts. The parties shall split equally the costs of the mediator. Each party must pay its own fees and expenses incurred in connection with the mediation. The mediation proceeding and any negotiations and results thereof will be treated as a compromise settlement negotiation and the entire process is confidential, except as otherwise expressly provided by applicable law. At least five (5) days prior to the initial mediation session, each party must deliver a written statement of positions.

- (2) Governing Law and Jurisdiction. You and we expressly submit ourselves to the federal laws of Mexico and to the jurisdiction of the competent courts of Mexico City, Mexico, with regards to the interpretation, performance and enforcement of this Agreement, and waive any other jurisdiction that may apply due to your or our present or future domiciles or for any other reason.
- (3) Injunctive Relief. Notwithstanding Article 19.12(1) of this Agreement, either party shall have the right to request measures and/or injunctive relief (without any requirement to post a bond) from any competent governmental authority or court, including, without limitation, application for judicial relief to protect against trademark infringement, unauthorized use of trademark, loss of possession of real or personal property, violations of non-competition or confidentiality obligations or termination of this Agreement.
- (4) Costs and Attorneys’ Fees. The prevailing party in any action or proceeding arising under, out of, in connection with, or in relation to this Agreement will be entitled to recover its costs and expenses (including attorneys’ fees and expert witness fees, costs of investigation and proof of facts, court costs, and other litigation expenses) incurred in connection with the claims on which it prevailed.
- (5) Survival. The provisions of this Article 19.12 are intended to benefit and bind certain third party non-signatories and will continue in full force and effect subsequent to and notwithstanding the expiration or termination of this Agreement.
- (6) Tolling of Statute of Limitations. All applicable statutes of limitation and defenses based on the passage of time are tolled while the dispute resolution procedures in this Article 19.12 are pending. The parties will take such action, if any, required to effectuate such tolling.

- (7) Performance to Continue. Each party must continue to perform its obligations under this Agreement pending final resolution of any dispute pursuant to this Article 19.12, unless to do so would be impossible or impracticable under the circumstances.
- 19.13 **AMENDMENT.** No amendment to this Agreement shall have effect unless in writing and signed by an authorized representative of both parties, provided, however, we may unilaterally modify the Operations Manual.
- 19.14 **DAMAGES AND LOSSES.** EXCEPT IN THE EVENT LIQUIDATED DAMAGES ARE APPLICABLE UNDER THIS AGREEMENT, WE AND YOU AND YOUR RESPECTIVE OWNERS AGREE THAT, IN THE EVENT OF A DISPUTE BETWEEN US, THE PARTY MAKING A CLAIM WILL BE LIMITED TO RECOVERY OF ANY ACTUAL DAMAGES AND LOSSES IT SUSTAINS, AS ESTABLISHED BY MEXICAN LAW, AND WE AND YOU AND YOUR RESPECTIVE OWNERS WAIVE TO THE FULLEST EXTENT PERMITTED BY LAW ANY OTHER RIGHT TO OR CLAIM FOR ANY TYPES OF DAMAGES AGAINST THE OTHER. WE EACH WAIVE TO THE FULLEST EXTENT POSSIBLE UNDER THE LAW OUR RESPECTIVE RIGHTS TO BRING AGAINST THE OTHER OR ANY AFFILIATE OR THE OTHER ANY CLAIMS DENOMINATED AS A CLASS ACTION, CONSOLIDATED ACTION, OR JOINT ACTION, WHETHER OR NOT PERMITTED UNDER APPLICABLE COURT RULES. EACH PARTY ACKNOWLEDGES THAT IT HAS HAD A FULL OPPORTUNITY TO CONSULT WITH COUNSEL CONCERNING THIS WAIVER, AND THAT THIS WAIVER IS INFORMED, VOLUNTARY, INTENTIONAL, AND NOT THE RESULT OF UNEQUAL BARGAINING POWER.
- 19.15 **BINDING EFFECT.** This Agreement is binding upon us and you and our respective executors, administrators, heirs, beneficiaries, assigns and successors in interest and may not be modified except by in accordance with Article 19.13 hereof.
- 19.16 **APPROVAL AND CONSENT.** Whenever our prior written approval or consent is required hereunder, you agree to submit to us a timely written request for such consent or approval. Except as otherwise specifically provided herein, we have the absolute right to refuse any request you make or to withhold our approval of any of your proposed or effected actions that require our approval. Our approval or consent must be in writing and signed by a duly authorized officer to be effective.
- 19.17 **HEADINGS; CONSTRUCTION.** The headings of the Articles hereof are for convenience only and do not define, limit or construe the contents of such Articles. Except as contemplated by the provisions of Article 18.4 and 19.12, nothing in this Agreement is intended, nor is deemed, to confer any rights or remedies upon any person not a party hereto.
- 19.18 **JOINT AND SEVERAL OWNERS' LIABILITY.** If two (2) or more persons are at any time the Owner of the BUSINESS hereunder, whether as partners or joint venturers, their obligations and liabilities to us will be joint and several.
- 19.19 **ANTI-TERRORISM LAWS.** You acknowledge that it is our intent to comply with all anti-terrorism laws enacted by the U.S. Government, including but not limited to the USA PATRIOT ACT or Executive Order 13324. You represent and warrant that neither you nor any of your Owners are now, nor have you ever been, a suspected terrorist or otherwise associated directly or indirectly with terrorist activity. You represent and warrant that to your actual and constructive knowledge: (1) neither you, nor any of your Affiliates, or any funding source for the BUSINESS, are identified on the sanctions or "blocked persons" lists at the United States Treasury's Office of Foreign Assets Control and other comparable laws in the Country applying to the Location; (2) neither you nor any of your Affiliates is directly or indirectly owned or controlled by the government of any country that is subject to an embargo imposed by the United States government or any governmental authority of the Country; (3) neither you, nor any of your Affiliates is acting on behalf of the government of, or is involved in business arrangements or other transactions with, any country that

is subject to such an embargo; (4) neither you, nor any of your Affiliates are on the U.S. Department of Commerce Denied Persons, Entities and Unverified Lists, the U.S. Department of State's Debarred Lists, or on the U.S. Department of Treasury's Lists of Specialty Designated Nationals, Specialty Designated Narcotics Traffickers or Specialty Designated Terrorists, any other lists of persons that are restricted or prohibited from doing business in the United States, and other comparable lists in the Country applying to the Location, as such lists may be amended from time to time (collectively, the "Lists"); (5) neither you, nor any of your Affiliates, during the Term, will be on any of the Lists; and (6) during the Term, neither you, nor any of your Affiliates will sell products, goods, or services to, or otherwise enter into a business arrangement with, any person on any of the Lists or with which you are otherwise prohibited from doing business. You agree to notify us in writing immediately upon the occurrence of any act or event that would render any of these representations incorrect. At any time during the Term of this Agreement, if we are prohibited from doing business with you under any anti-terrorism law enacted by the U.S. Government, then this Agreement may be terminated immediately.

19.20 ANTI-CORRUPTION. You acknowledge and agree that you are familiar with the prohibitions of the United States Foreign Corrupt Practices Act ("FCPA") and other comparable municipal, state and/or federal laws in the Country, including but not limited to the Mexican Federal Law on the Prevention and Identification of Operations from Illicit Sources (*Ley Federal para la Prevención e Identificación de Operaciones con Recursos de Procedencia Ilícita*) and the Mexican Federal Law on the Responsibilities of Civil Servants (*Ley Federal de Responsabilidades de los Servidores Públicos*). You further acknowledge that neither you nor any of your Owners have previously been accused of violating the FCPA or any other such laws; or engaged in any practice that would be deemed to be the making of an improper payment under the FCPA or any other such laws. You agree to provide us any evidence, information and documentation that we may require for purposes of proving its compliance with the above-mentioned anti-corruption laws and to allow us to make and retain copies of such information. In connection with the FCPA and other comparable laws in the Country, you acknowledge and agree (to the best of your knowledge) as follows:

- (1) None of your Qualifying Personnel (and none of those Qualifying Personnel's Family Members) are Government Officials.
- (2) If any of your Qualifying Personnel or their Family Members becomes a Government Official, you shall immediately notify us in writing.
- (3) You have not made, and will not make, any payment or transfer of value, directly or indirectly, to any Governmental Official or to any other person or entity if that payment or transfer would violate the laws of the country where you reside or in which the payment or transfer is made.
- (4) You have not made, and will not make, any payment or transfer of value, directly or indirectly, for the purpose or effect of public or commercial bribery, or acceptance of or acquiescence in extortion, kickbacks, money laundering or other unlawful or improper means of obtaining or retaining business.
- (5) You will comply with the FCPA (a copy of which can be found at <https://www.justice.gov/sites/default/files/criminal-fraud/legacy/2012/11/14/fcpa-english.pdf>), and any other comparable law or regulation in the Country, as well as any international conventions that outlaw bribery and corrupt practices.

19.21 ACKNOWLEDGMENT. You acknowledge and agree that we have limited experience operating or franchising **PLANET FITNESS** businesses under the System or the Marks in the Country; that we have made no representations or guarantees to you as to the viability, marketability, or adaptability in the Country of the System, the **PLANET FITNESS** businesses, or any of the products or services sold therefrom; and that you have performed your own independent research and investigation as to the viability, marketability, and adaptability in the Country of the System,

the **PLANET FITNESS** businesses, and the products and services to be sold, and you assume all of the business risks associated therewith.

19.22 GOVERNMENTAL APPROVALS.

- (1) This Agreement shall be executed subject to any and all required government approvals described in this Article, if applicable in the Country. Where required, we will take such actions as may be required from time to time to obtain required government approvals and authorizations from any government department or agency, and, if necessary, from any other organization whose approval or authorization is required under applicable law or regulation for this Agreement to be effective or for the payments required under this Agreement to be made to us as directed herein. You shall cooperate with us all such undertakings as requested.
- (2) If, at any time during the term of this Agreement, any governmental agency in the Country should require, directly or indirectly, alteration or modification of any term or condition of this Agreement, or of the performance of the parties hereunder, you and we agree to use our best efforts to comply with such request. Should, however, any such request impose substantial negative financial consequences on a party, the parties agree to work together in good faith to reach a mutually agreeable resolution, but, failing such a resolution, then such party may terminate (rescind) this Agreement by giving written notice to this effect to the other party within thirty (30) days of notice of such governmental requirement, without responsibility, and without the need to obtain arbitral or judicial resolution.

19.23 RIGHT TO INFORMATION. You consent to us obtaining, using and disclosing to third parties (including, without limitation, financial institutions, legal and financial advisors, and existing or prospective franchisees), for such purposes as are consistent with our Affiliate's practices in the United States or as may be required by law, all financial and other information (including, without limitation and subject to applicable law, membership data and customer lists) contained in or resulting from information, data, materials, statements and reports related, directly or indirectly, to the BUSINESS.

19.24 MULTIPLE COPIES AND ELECTRONIC RECORDS. This Agreement may be executed in multiple copies, each of which will be deemed an original, and all of which when taken together shall constitute one and the same document. You expressly consent and agree that we may provide and maintain all disclosures, agreements, amendments, notices, and all other evidence of transactions between us and you in electronic form. You expressly agree that electronic copies of this Agreement and related agreements between us and you are valid. You expressly agree not to contest the validity of the originals or copies of this Agreement and related agreements, absent proof of altered data or tampering. You also expressly agree to execution of this Agreement and related agreements by electronic means and that such execution shall be legally binding and enforceable as an "electronic signature" and the legal equivalent of your handwritten signature.

19.25 ENTIRE AGREEMENT BETWEEN THE PARTIES. This Agreement together with any exhibits, addenda and appendices hereto constitute the sole agreement between you and us with respect to the entire subject matter of this Agreement and embody all prior agreements and negotiations with respect to your BUSINESS authorized hereunder. There are no representations or warranties of any kind, express or implied, except as contained herein or in the FDD provided to you in connection with this Agreement. You acknowledge that you received the FDD at least thirty (30) Business Days before you signed this Agreement and that you have reviewed the FDD and fully understand it and you do not require any additional or explanatory information about said document or this Agreement. Except to the extent we have negotiated changes to this Agreement that differ from the FDD, nothing in this Agreement is intended to disclaim representations that were provided to you in the FDD.

- 19.26 AREA DEVELOPMENT AGREEMENT ADDENDUM.** This Article 19.26 is only applicable if you or your Affiliate have entered into an ADA with us, as referenced in Appendix G hereto. The ADA entered into with us contains certain negotiated provisions which are intended to apply to, and modify, future franchise agreements entered into between the parties. These negotiated provisions are set forth in Appendix G. Therefore, notwithstanding anything to the contrary set forth in this Agreement, to the extent any provision in Appendix G contradicts any provision in this Agreement, or is in addition to any provision of this Agreement, Appendix G shall control to the extent of such inconsistency or addition. Both we and you acknowledge and agree that Appendix G has been added at the request and for the convenience and benefit of all parties and with advice from their counsel. Accordingly, both we and you agree to work in good faith to resolve any disputes regarding the application or intent of Appendix G. Should a dispute arise as to the application or intent of Appendix G to this Agreement, the parties agree to resolve any such dispute pursuant to the dispute resolution procedures set forth in this Agreement.
- 19.27 NO COMMERCIAL AGENCY.** You acknowledge and agree that this Agreement is a contract calling for Franchisee to operate a **PLANET FITNESS** business in the Country, but that this Agreement does not cover an agency of any product or service; and, therefore, does not constitute or create any commercial agency as provided under the laws of the Country. You acknowledge and agree that this Agreement should not be interpreted or construed as a commercial agency, and, therefore, you are not a commercial or civil agent (*comisionista* or *mandatario*) under the terms of the Mexican Commercial Code and Mexican Federal Civil Code. You and we further acknowledge and agree that no party will attempt to register this Agreement with the government of the Country.
- 19.28 ENGLISH LANGUAGE.** Unless otherwise agreed, all notices, reports, invoices, documents, and communications provided under this Agreement shall be given by parties to one another in the English language, and you shall translate into English and provide to us any such items required to be provided to us hereunder that you have received from third parties. If translation of any communication into another language is required, you will be responsible for any costs incurred to accomplish this. This Agreement has been executed in English. If it is executed in another language as well, the English version will control for all purposes. In the event it becomes legally necessary to translate into Spanish this Franchise Agreement, its Exhibits and/or any other document related thereto or derived herefrom, the parties agree that the Spanish versions that shall prevail shall be those to be prepared by an official certified translator in the Country, duly authorized by the Superior Court of Justice of Mexico City, to be appointed and selected by us.
- 19.29 NO CONSENT OR FURTHER ACTION REQUIRED.** You represent that you desire to enter into this Agreement for the purposes set forth herein and that no consent or further act is required for you to execute this Agreement and comply with the obligations derived hereunder and such obligations are allowed and contemplated in your corporate purpose.
- 19.30 MEXICO SPECIFIC PROVISIONS.** For the purposes of complying with Article 142 Bis of the Industrial Property Law of Mexico, this Article 19.30 is hereby made a part of this Agreement. To the extent that any terms or conditions of this Article 19.30 conflict with the other terms or conditions of this Agreement, the terms of this Article 19.30 shall control.
- (1) The geographical zone in which you will perform the activities in connection with this Agreement is the Location.
 - (2) The ideal site from which you will perform the activities resulting from this Agreement shall be approximately 15,000 to 25,000 square feet and typically may be located in a strip centers, mall, or freestanding location. We consider a number of factors when evaluating a proposed site, including, but not limited to, the general location and neighborhood, demographic information, traffic patterns, access, visibility, location of other competing facilities, location of existing **PLANET FITNESS** businesses, size, configuration, appearance and other physical characteristics of the site. However, we evaluate proposed

sites on a case by case basis and may, in our business judgment, approve a site that deviates from these ideal characteristics if business circumstances warrant.

- (3) The policies with respect to inventory and provisions in connection with merchandise supply and engagement of vendors are set forth in Articles 4, 5, and 9 of this Agreement and are further established in the Operations Manual as modified from time to time by us. Our policies with respect to marketing and advertising are set forth in Article 10 of this Agreement and as further established in the Operations Manual from time to time by us.
- (4) The policies and procedures and terms in relation to reimbursements, financing and other consideration to be paid by the parties are set forth in Articles 3, 4, 5, 6, 7, 9, 10, 12, 13, 14, 15, 16, 17, 18, and 19 of this Agreement and as further established in the Operations Manual from time to time by us. We do not provide any financing to you.
- (5) We do not have any policies and procedures pursuant to which we govern the profit margin or commissions earned by you. Your ability to earn commission or generate a profit margin shall be determined by the manner in which you operate the BUSINESS and the prevailing market forces where the BUSINESS is located. We do not have any restrictions on “commissions” or “profit margins,” and you are able to earn as much as your relevant market will allow, so long as you are operating the BUSINESS in compliance with the terms of this Agreement and the Operations Manual, as modified from time to time by us.
- (6) The technical and operational training specifications for your personnel and the method whereby we will provide business assistance are set forth in Articles 4, 6, and 9 of this Agreement and in the Operations Manuals, as modified from time to time by us.
- (7) Our rights with respect to the supervision, information, evaluation and rating performance and quality of your services are provided for in Articles 4, 5, 6, 9, 11 and 12 of this Agreement. You may, but are not obligated to, perform an informational evaluation of the services provided by us under this Agreement within fifteen (15) calendar days following each anniversary of the date of this Agreement. The results of your evaluation and supervision shall be for informational purposes only and may be used by us in our discretion, to assist us in improving our franchise system generally and/or our working relationship with you. We will not be obligated to respond or react to the information received from you. The results of your evaluation and supervision shall not constitute, nor shall they be deemed to constitute, evidence of a breach by us of any of our obligations under this Agreement, nor shall they entitle you to terminate or rescind this Agreement for any reason.
- (8) You shall not, in any respect, have the right to sub-license or sub-franchise the right to use the Marks or any other right or benefit derived from this Agreement.
- (9) You and we acknowledge that the causes set forth in Article 15 shall be good and just causes for termination or rescission of this Agreement.
- (10) This Agreement may only be reviewed and/or amended in accordance with Article 19.13.
- (11) You are obliged to transfer ownership of your assets to us only as set forth in Article 13 and Article 16.
- (12) You are obliged to sell or transfer your company shares to us or to make us a partner in your company only as set forth in Article 13.

19.31 TIME. Time is of the essence to this Agreement

20. NOTICES AND PAYMENTS.

20.1 NOTICES. All written notices and reports permitted or required to be delivered by the provisions of this Agreement or the Operations Manual to us must be addressed to the Attorney-in-Fact at the address listed on the signature page hereto or at any other address we designate in writing and must be in the English language. Any required payment or report we do not actually receive during regular business hours on the date due (or postmarked by local postal authorities at least five (5) days prior thereto) will be deemed delinquent. All written notices and reports permitted or required to be delivered by the provisions of this Agreement to you shall be addressed to your Responsible Owner or Approved Operator at your address listed on the signature page hereto, the mailing address listed for your Responsible Owner or Approved Operator as listed on Appendix D, or at any other address you designate in writing. We may deliver copies of notices hereunder to your Owners, landlord, lenders or other parties with which you have a business relationship. Such notices or reports must be in the English language and will be deemed so delivered:

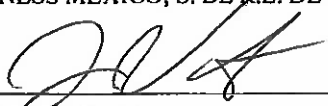
- (1) at the time delivered by hand;
- (2) one (1) Business Day after transmission by telecopy, facsimile or other electronic system, provided there is evidence of delivery and notice is also promptly provided pursuant to the methods set forth in subsections (1), (3), or (4);
- (3) one (1) Business Day after being placed in the hands of a commercial courier service for next Business Day delivery, provided there is evidence of delivery; or
- (4) five (5) Business Days after delivery to an international courier or other means which afford the sender evidence of delivery.

20.2 PAYMENTS. All payments required to be delivered by the provisions of this Agreement or the Operations Manual will be deemed so delivered as provided in Article 20.1 above, and will be deemed delivered by EFT or bank-wire transfer upon telephone or electronic confirmation with the receiving bank.

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IN WITNESS WHEREOF, the parties hereto have executed and delivered this Agreement as of the Effective Date.

PLANET FITNESS MEXICO, S. DE R.L. DE C.V.

By: 

Print Name: Justin Vartanian

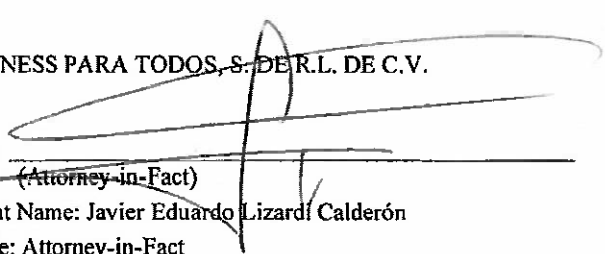
Title: General Counsel

Address: Av. Insurgentes Sur 1787, 4th Floor, Guadalupe Inn, Alvaro Obregón, Mexico City, Z.C. 01020

EFFECTIVE DATE: 27 APRIL 2023

EACH OF THE UNDERSIGNED PARTIES REPRESENTS AND WARRANTS THAT SUCH PARTY HAS NOT RELIED UPON ANY GUARANTEES CONCERNING REVENUE, PROFIT OR THE SUCCESS OF THIS FRANCHISE IN SO SIGNING. FRANCHISEE ACKNOWLEDGES AND AGREES THAT IT (1) HAS SPECIFICALLY REVIEWED THE COMPLETED VERSION OF APPENDICES D (OWNERSHIP ADDENDUM), AND G (AREA DEVELOPMENT AGREEMENT ADDENDUM), (2) IS BOUND THEREBY, (3) IS BEST POSITIONED, BETWEEN THE PARTIES, TO VERIFY THE ACCURACY OF THE INFORMATION PROVIDED AND CONTAINED THEREIN AND (4) HAS CAUSED ALL REQUIRED PARTIES TO RECEIVE, REVIEW AND EXECUTE APPENDIX B (PERSONAL COVENANTS AND AGREEMENT REGARDING CONFIDENTIALITY AND NON-COMPETITION). AS SUCH, WE ARE ENTITLED TO RELY ON SUCH INFORMATION. FRANCHISEE REPRESENTS AND WARRANTS THAT ALL SUCH INFORMATION IS TRUE, CORRECT AND COMPLETE AS OF THE DATE OF FRANCHISEE'S EXECUTION OF THIS AGREEMENT.

FITNESS PARA TODOS, S. DE R.L. DE C.V.

By: 

(Attorney-in-Fact)

Print Name: Javier Eduardo Lizardi Calderón

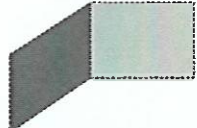
Title: Attorney-in-Fact

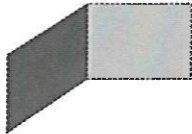
Dated: APRIL 24, 2023

Address: Paseo de los Tamarindos 60, 4th Floor, Col. Bosques de las Lomas, 05120 Cuajimalpa, Mexico City, Mexico

APPENDIX A
TO FRANCHISE AGREEMENT
LIST OF TRADEMARK REGISTRATIONS AND/OR APPLICATIONS IN THE COUNTRY

TITLE	STATUS	APPLN. NO.	APPLN. DATE	REG. NO.	REG. DATE	CLASS
30 MINUTOS, ¡A DARLE!	Registered	1964063	Oct 24, 2017	1863617	Mar 21, 2018	41
ALARMA ANTI-CRITICONES	Registered	1964062	Oct 24, 2017	1846334	Feb 15, 2018	41
BLACK CARD	Pending	2051618	May 23, 2018			41
	Registered	1293507	Jul 20, 2012	1330662	Nov 26, 2012	41
	Registered	1940744	Aug 31, 2017	1916509	Aug 27, 2018	41
GIMTIMIDACION	Registered	1516447	Aug 13, 2014	1507003	Aug 13, 2014	41
JUDGEMENT FREE ZONE	Registered	1173052	Apr 20, 2011	1239460	Sep 23, 2011	41
JUDGMENT FREE	Registered	1473404	Apr 2, 2014	1475524	Apr 2, 2014	41
JUDGMENT FREE ZONE	Registered	1173055	Apr 20, 2011	1273338	Mar 13, 2012	41
LA ZONA LIBRE DE JUICIOS	Pending	2249700	Aug 16, 2019			41
LUNES DE PIZZA	Registered	1964064	Oct 24, 2017	1846335	Feb 15, 2018	41
LUNK ALARM	Registered	1940728	Aug 31, 2017	1912951	Aug 14, 2018	41
MARTES DE FRUTAS	Registered	1964067	Oct 24, 2017	1846336	Feb 15, 2018	41
NO AL BULLGYM	Registered	1964057	Oct 24, 2017	1846331	Feb 15, 2018	41
NO CRITICOS	Registered	83619	Jun 27, 2013	78801	Dec 3, 2013	41
NO GIMTIMIDACION	Registered	1516448	Aug 13, 2014	1507004	Aug 13, 2014	41
NO SOMOS UN GIMNASIO, SOMOS PLANET FITNESS.	Registered	83616	Jun 27, 2013	78101	Oct 28, 2013	41
NO SOMOS UN GYM, SOMOS PLANET FITNESS	Registered	115938	Oct 24, 2017	106553	Apr 5, 2018	41
PERTENECES AQUI	Registered	83618	Jun 27, 2013	78800	Dec 3, 2013	41
PF BLACK CARD	Registered	1378993	May 31, 2013	1400645	Sep 27, 2013	41

	Registered	1473402	Apr 2, 2014	1651019	July 4, 2016	41
	Registered	1375877	May 22, 2013	1651745	July 5, 2016	41
PLANET FITNESS	Registered	1265955	Apr 13, 2012	1309631	Sep 6, 2012	05
PLANET FITNESS	Registered	1265954	Apr 13, 2012	1309630	Sep 6, 2012	28
PLANET FITNESS	Registered	1332793	Dec 10, 2012	1358634	Apr 1, 2013	32
PLANET FITNESS	Registered	1701880	Jan 13, 2016	1637063	May 9, 2016	25
PLANET FITNESS	Registered	1818602	Nov 9, 2016	1734728	May 21, 2017	44
PLANET FITNESS	Registered	1701881	Jan 13, 2016	1637064	May 9, 2016	41
planet fitness	Registered	1472790	Apr 1, 2014	1467298	Apr 1, 2014	41
	Registered	1173057	Apr 20, 2011	1239463	Sep 23, 2011	41
	Registered	1265952	Apr 13, 2012	1309963	Sep 6, 2012	25
	Registered	1940739	Aug 31, 2017	1912953	Aug 14, 2018	25
	Registered	1940741	Aug 31, 2017	1916508	Aug 27, 2018	41
	Registered	1940745	Aug 31, 2017	1823444	Nov 23, 2017	41

	Registered	1375876	May 22, 2013	1399907	Sept 25, 2013	41
PLANETA DE LOGROS	Registered	1964069	Oct 24, 2017	1843315	Feb 09, 2018	41
PLANETA DE LOGROS	Registered	1964070	Oct 24, 2017	1846338	Feb 15, 2018	42
PLANETA LIBRE DE CRÍTICAS	Registered	1964061	Oct 24, 2017	1846333	Feb 15, 2018	41
ZONA DE NO JUZGAR	Registered	83617	Jun 27, 2013	78799	Dec 3, 2013	41
ZONA LIBRE DE CRÍTICAS	Registered	2011508	Feb 19, 2018	1878127	Apr 26, 2018	25
ZONA LIBRE DE CRÍTICAS	Registered	2011511	Feb 19, 2018	1878128	Apr 26, 2018	41

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APPENDIX B
TO FRANCHISE AGREEMENT

**PERSONAL COVENANTS AND AGREEMENT REGARDING
CONFIDENTIALITY AND NON-COMPETITION
(OWNER(S), OPERATOR AND EXECUTIVES)**

In conjunction with your role in **Fitness Para Todos, S. de R.L. de C.V.** ("Franchisee"), you acknowledge and agree with Planet Fitness Mexico, S. de R.L. de C.V. ("we" or "us") as follows:

1. Franchisee owns and operates, or is developing, a **PLANET FITNESS** business (the "Business") located or to be located at Avenida del Penon 355, Moctezuma 2da seccion, Alcaldia Venustiano Carranza, 15530 Ciudad de Mexico, Mexico (the "Location"), pursuant to a franchise agreement ("Franchise Agreement") with us, which Franchise Agreement requires the Responsible Owner, the Approved Operator, Franchisee Executives and persons with legal or beneficial ownership interests in Franchisee under certain circumstances to be personally bound by the confidentiality and noncompetition covenants contained in the Franchise Agreement. All capitalized terms contained herein shall have the same meaning set forth in the Franchise Agreement.
2. You own or intend to own a legal or beneficial ownership interest in Franchisee, you have been designated an Approved Operator (as defined by the Franchise Agreement) of Franchisee, or you are a Franchisee Executive (as defined by the Franchise Agreement). You acknowledge and agree that your execution of this Personal Covenants and Agreement Regarding Confidentiality and Non-Competition Agreement ("Agreement") is a condition to such ownership interest, such designation or such role in the Business, as applicable, and that you have received good and valuable consideration for executing this Agreement. We may enforce this Agreement directly against you and your Owners (as defined below).
3. If you are an investment promotion corporation of variable capital, corporation of variable capital or limited liability company of variable capital or other entity, all persons who have a legal or beneficial interest in you (your "Owners") must also execute this Agreement.
4. You and your Owners, if any, may gain access to parts of our Confidential Information (as defined in the Franchise Agreement) as a result of your role with or investment in Franchisee. The Confidential Information is proprietary and includes our trade secrets and industrial secrets (*secretos industriales*), in accordance with the terms of Article 163 and other applicable provisions of the Mexican Federal Law for the Protection of the Industrial Property (*Ley Federal de Protección a la Propiedad Industrial*). Any Confidential Information you receive shall be subject to the provisions of the Franchise Agreement and any other limitations that we may impose in writing from time-to-time, and you and your Owners agree to abide by such limitations. You and your Owners hereby agree that while you and they have a management role or legal or beneficial ownership interest in Franchisee and thereafter you and they: (a) will not use the Confidential Information in any other business or capacity (such use being an unfair method of competition) or in any manner not expressly authorized by us; (b) will strictly maintain the confidentiality of the Confidential Information and shall not disclose or permit the Confidential Information to be disclosed to third-parties; (c) will not make unauthorized copies of any portion of the Confidential Information disclosed in written, electronic or other form; (d) will implement all procedures we prescribe from time to time, to prevent unauthorized use or disclosure of the Confidential Information; and (e) will disclose the Confidential Information to your officers, directors, employees and other personnel, only to the extent necessary to fulfill your obligations under this Agreement. You and your Owners acknowledge you are aware that (i) the Confidential Information may relate to publicly traded securities, and (ii) the restrictions imposed by applicable securities laws restrict trading in securities while in possession of material non-public information and on communication of such information when it is foreseeable that the recipient is likely to trade such securities in reliance on such information. You and your Owners agree not to trade, either directly or through other persons or entities, based on Confidential Information in a manner that would violate the securities law of any applicable jurisdiction including, without limitation, the United States securities laws. If you and/or your Owners no longer have an interest or management role in any **PLANET FITNESS** business, you and/or your Owners,

if any, must (a) coordinate the de-activation of your and/or your Owners' access to the Designated Franchise Portal and any other software, computer systems and electronic mailing lists, containing Confidential Information, and (b) upon our request or in accordance with such procedures as we may specify in the Operations Manual, destroy or deliver to us all Confidential Information in your or their possession. If you become legally compelled by a judicial or legislative order of a governmental authority or court of competent jurisdiction to disclose any of the Confidential Information, you shall provide us with prompt written notice of such requirement before you disclose any Confidential Information so that we may seek a protective order or other appropriate remedy and/or waive compliance with the terms of this Appendix B. Upon our request, you shall assist us in contesting such request for disclosure. If the protective order or other remedy is not obtained, or we waive compliance with this Appendix B, you agree to furnish only that portion of the Confidential Information you are advised by counsel is legally required to be disclosed and to seek assurance that confidential treatment will be afforded to such Confidential Information.

5. You specifically acknowledge that you will receive valuable, specialized training, Confidential Information, and other proprietary and specialized information and knowledge that provide a valuable, competitive advantage in operating a business or other venture offering fitness, exercise, or athletic services of any kind. You further acknowledge that we would be unable to protect the Confidential Information against unauthorized use or disclosure or to encourage the free exchange of ideas and information among our franchisees if you were permitted to hold interests in or perform services for a Competitive Business (as defined in Article 1.4 of the Franchise Agreement), and we have granted the Franchisee certain rights under the Franchise Agreement in consideration of, and in reliance upon, your agreement to deal exclusively with us. You therefore covenant that during the term of the Franchise Agreement (except as otherwise approved in writing by us), you, your Owners, and your and their Immediate Families (as defined in Article 1.4 of the Franchise Agreement) shall not, either directly, indirectly or through, on behalf of, or in conjunction with any person or legal entity, anywhere in the world:

(a) Divert or attempt to divert any present or prospective business or customer of any PLANET FITNESS business to any Competitive Business, by direct or indirect inducement or otherwise, or do or perform, directly or indirectly, any other act injurious or prejudicial to the goodwill associated with the Marks and the System; or

(b) Own, develop, maintain, operate, engage in, be employed by, act as a consultant for, perform services for, provide assistance to, lease space for, enter into an agreement to develop or operate, or have any interest in (as owner or otherwise) any Competitive Business or any business or other venture that is offering or selling franchises or licenses for the operation of a Competitive Business.

You agree that the breach by you or your Owners or your or their Immediate Families of your confidentiality obligations assumed herein shall require you to pay us as liquidated damages the amount of One Thousand Dollars 00/100 Legal Currency of the United States of America (US \$1,000) for each day that you or any other related party is in violation of this provision, in addition to such other remedies we may have, including the right to precautionary measures and/or injunctive relief, and to terminate (rescind) the Franchise Agreement through simple written notice by us to Franchisee, without responsibility to us and without the need to obtain an arbitral or judicial resolution.

6. You covenant that, except as otherwise approved in writing by us, you and your Owners shall not, for a continuous, uninterrupted period of two (2) years commencing upon the date of (a) a transfer permitted under Article 13 of the Franchise Agreement, (b) expiration of the Franchise Agreement, without your acquisition of a successor franchise, (c) termination of the Franchise Agreement (regardless of the cause for termination), (d) termination of your role with Franchisee, or (e) a final order of a court of competent jurisdiction (after all appeals have been taken) with respect to any of the foregoing or with respect to enforcement of this Paragraph 6, either directly or indirectly, for yourself or your or their Immediate Family, or through, on behalf of, or in conjunction with any person or legal entity, own, develop, maintain, operate, engage in, be employed by, act as a consultant for, perform services for, provide assistance to, lease space for, enter into an agreement to develop or operate, or have any interest in (as owner or otherwise) any Competitive Business or any business or other venture that is offering or selling franchises or licenses for the operation of a Competitive Business that is, or is intended to be, located or doing business (a) at the Location of the PLANET FITNESS business,

(b) within twenty five (25) kilometers of the Location, or (c) within twenty five (25) kilometers of any **PLANET FITNESS** business in operation or under construction as of the date that you are required to comply with this Paragraph 6. You agree and acknowledge that the two (2) year period of this restriction shall be tolled during any time period in which you are in violation of this restriction.

The restrictions in this Paragraph 6 do not apply to the ownership of shares of a class of securities that are listed on a public stock exchange or traded on the over-the-counter market and that represent less than five percent (5%) of that class of securities. We will not unreasonably withhold, condition or delay our approval for you to lease or sublease space to a Competitive Business.

7. In addition to the foregoing, as a result of your legal or beneficial ownership interest in Franchisee your designation as an Approved Operator of Franchisee or your role as a Franchisee Executive, you and each of your Owners acknowledge and agree that you and each of your Owners may receive: (i) confidential information from Franchisee relating to the development and operation of **PLANET FITNESS** businesses and to Franchisee; and (ii) valuable, specialized training and other proprietary and specialized information and knowledge from, or as a result of your association with, Franchisee, which would enable you and your Owners to unfairly compete with Franchisee. Franchisee shall have the right, as an express third-party beneficiary and in order to protect Franchisee's legitimate business interests, which include, but are not limited to, protecting the foregoing, to enforce the covenants set forth in Paragraphs 5 and 6 of this Agreement directly against you and your Owners; provided, however, that such enforcement by Franchisee will be limited to a Competitive Business that is, or is intended to be, located or operating (a) within twenty-five (25) kilometers of the Location or (b) within twenty-five (25) kilometers of any **PLANET FITNESS** business in operation or under construction and owned by Franchisee or one of its Affiliates as of the date that you are required to comply with such obligation. You acknowledge that such right may be in addition to any rights that Franchisee may have to enforce non-competition covenants in Franchisee's agreements with you.
8. You and each of your Owners expressly acknowledge the possession of skills and abilities of a general nature and the opportunity to exploit such skills in other ways, so that enforcement of the covenants contained in Paragraphs 5 and 6 will not deprive any of you of your personal goodwill or ability to earn a living. If any covenant herein which restricts competitive activity is deemed unenforceable by virtue of its scope or in terms of geographical area, type of business activity prohibited and/or length of time, but could be rendered enforceable by reducing any part or all of it, you and we agree that it will be enforced to the fullest extent permissible under applicable law and public policy. We and Franchisee may request precautionary measures and/or injunctive relief (without any requirement to post a bond) from any competent governmental authority or court, including, without limitation, application for judicial relief to protect against any violation of Paragraphs 4, 5 or 6 hereof. If we or Franchisee file a claim to enforce this Agreement and prevail in such proceeding, you agree to reimburse us and/or Franchisee for all our or its costs and expenses, including attorneys' fees.
9. The parties to this Agreement expressly submit themselves to the federal laws of Mexico and to the jurisdiction of the competent courts of Mexico City, Mexico, with regards to the interpretation, performance and enforcement of this Agreement, and waive any other jurisdiction that may apply to them due to their present or future domiciles or for any other reason. You agree that we may institute any action or seek any measures and/or injunctive relief relating to this Agreement or the enforcement of any provision of this Agreement with any competent governmental authority or court.
10. **YOU HAVE CAREFULLY READ THIS AGREEMENT, HAVE HAD THE OPPORTUNITY TO CONSULT WITH LEGAL COUNSEL REGARDING ITS CONTENTS AND HAVE HAD THE OPPORTUNITY TO CAREFULLY EVALUATE THE FRANCHISE OFFERING. YOU UNDERSTAND THAT YOU ARE AGREEING TO RESTRICT YOUR COMPETITIVE BUSINESS ACTIVITY BOTH DURING AND AFTER THE TERM OF THE FRANCHISE AGREEMENT.**

[Remainder of page intentionally left blank, signature page follows]

IN WITNESS WHEREOF, each of the undersigned has hereunto affixed the undersigned's signature, under seal, as of the Effective Date of the Franchise Agreement.

APPROVED OPERATOR:

By: 
Alfonso Manuel Gomez Benet, Individually
Dated: April 24, 2023

OWNER(S):

FITNESS PARA TODOS HOLDINGS, S. DE R.L. DE C.V.

By: _____
(Attorney-in-Fact)
Name Printed: Javier Eduardo Lizardi Calderón
Title: Attorney-in-Fact
Dated: _____

PLANET FITMEX SUB, LLC

By: _____
By: Karl Jaeger
Its.: Secretary
Dated: _____

PLANET FITMEX, LLC

By: _____
By: Karl Jaeger
Its.: Secretary
Dated: _____

MEXICO FITNESS PARTNERS, LLC

By: _____
By: Karl Jaeger
Its.: Vice President
Dated: _____

IN WITNESS WHEREOF, each of the undersigned has hereunto affixed the undersigned's signature, under seal, as of the Effective Date of the Franchise Agreement.

APPROVED OPERATOR:

By: _____
Alfonso Manuel Gomez Benet, Individually
Dated: _____

OWNER(S):

FITNESS PARA TODOS HOLDINGS, S. DE R.L. DE C.V.

By: _____
(Attorney-in-Fact)
Name Printed: Javier Eduardo Lizardi Calderón
Title: Attorney-in-Fact
Dated: _____

PLANET FITMEX SUB, LLC

By: _____
By: Karl Jaeger
Its.: Secretary
Dated: 4/13/2023

PLANET FITMEX, LLC

By: _____
By: Karl Jaeger
Its.: Secretary
Dated: 4/13/2023

MEXICO FITNESS PARTNERS, LLC

By: _____
By: Karl Jaeger
Its.: Vice President
Dated: 4/13/2023

IN WITNESS WHEREOF, each of the undersigned has hereunto affixed the undersigned's signature, under seal, as of the Effective Date of the Franchise Agreement.

APPROVED OPERATOR:

By: _____
Alfonso Manuel Gomez Benet, Individually
Dated: _____

OWNER(S):

FITNESS PARA TODOS HOLDINGS, S. DE R.L. DE C.V.

By: _____
(Attorney-in-Fact)
Name Printed: Javier Eduardo Lizardi Calderón
Title: Attorney-in-Fact
Dated: APRIL 21, 2023

PLANET FITMEX SUB, LLC

By: _____
By: Karl Jaeger
Its.: Secretary
Dated: _____

PLANET FITMEX, LLC

By: _____
By: Karl Jaeger
Its.: Secretary
Dated: _____

MEXICO FITNESS PARTNERS, LLC

By: _____
By: Karl Jaeger
Its.: Vice President
Dated: _____

POSITANO HOLDING LP

By: Carlos Ibarra
Its: General partner
Dated: 04/12/2023

IB CONSULTING GROUP, LLC

By: Carlos Ibarra
Its: General partner
Dated: 04/12/2023

THE 1054 REVOCABLE TRUST

By: Carlos Ibarra
Its: General partner
Dated: 04/12/2023

FONGOBE, A S. DE R.L. DE C.V.

By: Alfonso Manuel Gomez Benet
Its: Manager
Dated: April 24, 2023

By: Carlos Guillermo Ibarra Covarrubias, Individually
Dated: 04/12/2023

PLANET FITNESS MEXICO, S. DE R.L. DE C.V.

By: Justin Vartanian
Its: General Counsel
Dated: 27 APRIL 2023

APPENDIX C
TO FRANCHISE AGREEMENT

ASSUMPTION OF JOINT OBLIGATION AGREEMENT

(See attached.)

CONTRATO DE ASUNCIÓN DE
OBLIGACIÓN SOLIDARIA

CONTRATO DE ASUNCIÓN DE OBLIGACIÓN SOLIDARIA DE FECHA 27 DE ABRIL DE 2023 QUE CELEBRAN PLANET FITNESS MEXICO, S. DE R.L. DE C.V. (EN LO SUCESIVO "PLANET FITNESS"); Y FITNESS PARA TODOS HOLDINGS, S. DE R.L. DE C.V. (EN LO SUCESIVO LOS "OBLIGADOS SOLIDARIOS"), POR SU PROPIO DERECHO, DE CONFORMIDAD CON LO SIGUIENTE:

ANTECEDENTE

Con fecha 27 de abril de 2023, PLANET FITNESS celebró con la sociedad denominada Fitness Para Todos, S. de R.L. de C.V. (el "Franquiciatario"), un contrato de franquicia mediante el cual PLANET FITNESS, en carácter de franquiciante, otorgó al Franquiciatario, en tal carácter, una licencia y franquicia para el uso de un sistema y de ciertas marcas para establecer y operar un negocio denominado Planet Fitness, bajo la marca "Planet Fitness", que se encuentra en el territorio de Querétaro, Mexico con una duración de diez 10 años a partir de desde el inicio de operaciones de la franquicia (el "Contrato de Franquicia").

DECLARACIONES

1. **Declara PLANET FITNESS, por conducto de su representante, que:**
 - a) Es una sociedad debidamente constituida y existente conforme a las leyes de Mexico y que su representante cuenta con las facultades necesarias a fin de celebrar el presente Contrato en su nombre y representación, y que dichas facultades no le han sido revocadas, restringidas ni modificadas de modo alguno.
 - b) Es su deseo celebrar el presente Contrato

ASSUMPTION OF JOINT OBLIGATION
AGREEMENT

ASSUMPTION OF JOINT OBLIGATION AGREEMENT DATED APRIL 27, 2023, ENTERED INTO BY AND BETWEEN PLANET FITNESS MEXICO, S. DE R.L. DE C.V. (HEREINAFTER "PLANET FITNESS"); AND FITNESS PARA TODOS HOLDINGS, S. DE R.L. DE C.V. (HEREINAFTER THE "JOINT OBLIGORS"), ON THEIR OWN BEHALF, ACCORDING TO THE FOLLOWING:

ANTECEDENT

On April 27, 2023, PLANET FITNESS entered into a franchise agreement with the company named Fitness Para Todos, S. de R.L. de C.V. (the "Franchisee"), whereby PLANET FITNESS, in its capacity as franchisor, granted the Franchisee, in such capacity, a license and franchise for the use of a system and certain marks to establish and operate one Planet Fitness business under the trademark "Planet Fitness", consisting of fitness training facilities offering exercise machines and free weights, fitness training services, tanning services, related services and ancillary goods, to be located in the territory of Querétaro, Mexico, with a duration of ten (10) years from the commencement of operations of the franchise (the "Franchise Agreement").

RECITALS

1. **PLANET FITNESS states, through its representative, that:**
 - a) It is a company duly organized and existing according to the laws of Mexico and that its representative has the necessary authority to execute this Agreement on its behalf and representation, and that such authority has not been revoked, limited nor modified in any manner whatsoever.
 - b) It desires to enter into this Agreement in order for the Joint Obligors to constitute

- b) Es su deseo celebrar el presente Contrato con el objeto de que los Obligados Solidarios se constituyan en obligados solidarios del Franquiciatario y respondan y garanticen en favor de PLANET FITNESS el cumplimiento de las obligaciones asumidas por el Franquiciatario conforme al Contrato de Franquicia.
- 2. **Declaran los Obligados Solidarios, por su propio derecho o a través de sus representantes legales, que:**
 - a) Es una sociedad mercantil constituida conforme a la legislación mexicana o un individuo de nacionalidad mexicana, con capacidad legal y económica suficiente para celebrar el presente Contrato y responder por el cumplimiento de las obligaciones que asumen conforme al mismo.
 - b) En su caso, que su representante cuenta con las facultades necesarias a fin de celebrar el presente Contrato en su nombre y representación, y que dichas facultades no le han sido revocadas, restringidas ni modificadas de modo alguno.
 - c) Comparecen a celebrar el presente Contrato con el fin de constituirse en obligados solidarios del Franquiciatario y responder y garantizar en favor de PLANET FITNESS el cumplimiento de las obligaciones asumidas por el Franquiciatario conforme al Contrato de Franquicia.

Con base en lo anterior, las partes convienen en otorgar y obligarse conforme a las siguientes:

CLÁUSULAS

PRIMERA. Los Obligados Solidarios en este acto se constituye en obligados solidarios del Franquiciatario frente a y en favor de PLANET FITNESS, y se obligan a responder por y garantizar el oportuno cumplimiento de todas y cada una de las obligaciones asumidas por el Franquiciatario conforme al Contrato de Franquicia, de conformidad con lo previsto en los artículos 1987, 1988, 1989, 1995 y 2002 y demás aplicables del Código Civil Federal y artículos correlativos de los Códigos Civiles para cada una de la entidades federativas que conforman los Estados Unidos Mexicanos y para el

order for the Joint Obligors to constitute themselves as joint obligors of the Franchisee and respond and guarantee in favor of PLANET FITNESS the fulfillment of the obligations assumed by the Franchisee according to the Franchise Agreement.

2. **The Joint Obligors state, on their own behalf, that:**

- a) He/She/It is a Mexican individual or a company incorporated under Mexican law, with sufficient legal and economic capacity to execute this Agreement and to respond for the compliance of the obligations assumed herein.
- b) If applicable, its representative has the necessary authority to execute this Agreement on its behalf and representation, and that such authority has not been revoked, limited nor modified in any manner whatsoever.
- c) They appear to enter into this Agreement in order to constitute themselves as joint obligors of the Franchisee and to respond and guarantee in favor of PLANET FITNESS the fulfillment of the obligations assumed by the Franchisee according to the Franchise Agreement.

Based on the foregoing, the parties agree to grant and be bound in accordance with the following:

CLAUSES

FIRST. The Joint Obligors hereby constitute themselves as joint obligors of the Franchisee, in front and in favor of PLANET FITNESS, and assume the obligation to respond for and guarantee the timely compliance of each and all obligations assumed by the Franchisee according to the Franchise Agreement, pursuant to the provisions contained in articles 1987, 1988, 1989, 1995 and 2002 and other applicable of the Federal Civil Code and correlative articles of the Civil Codes for each of the federative entities conforming the United Mexican States and for the Federal District.

Distrito Federal.

SEGUNDA. La obligación solidaria asumida por los Obligados Solidarios conforme al presente Contrato estará en plena fuerza y vigor durante el tiempo en que se encuentre vigente el Contrato de Franquicia y hasta en tanto PLANET FITNESS se dé por satisfecha del cumplimiento de todas y cada una de las obligaciones a cargo del Franquiciatario en términos del Contrato de Franquicia, y emita en favor de los Obligados Solidarios un finiquito de obligaciones por escrito que así lo acredite. El presente Contrato y las obligaciones asumidas por los Obligados Solidarios conforme al mismo continuarán en plena fuerza y vigor no obstante que el Contrato de Franquicia sea modificado, prorrogado, expire o termine anticipadamente por cualquier causa.

TERCERA. Ante cualquier incumplimiento del Franquiciatario respecto de sus obligaciones conforme al Contrato de Franquicia, PLANET FITNESS estará facultada para exigir el cumplimiento de dicha obligación a todos y/o a cualquiera de los Obligados Solidarios, sin que sea necesario que PLANET FITNESS agote procedimiento alguno en forma previa en contra del Franquiciatario y/o de uno o más de los Obligados Solidarios. Las partes acuerdan que en caso de que se verifique el supuesto señalado en la presente cláusula y de que uno o más de los Obligados Solidarios se vean obligados a subsanar cualquier incumplimiento del Franquiciatario respecto de las obligaciones de este último derivadas del Contrato de Franquicia, los Obligados Solidarios que hayan subsanado dicha obligación quedarán subrogados en los derechos de PLANET FITNESS frente al Franquiciatario y a los otros Obligados Solidarios, de ser el caso, por lo que se refiere a la obligación subsanada y podrán, a su entera discreción, repetir en contra del Franquiciatario y de los otros Obligados Solidarios.

CUARTA. En caso de que los Obligados Solidarios deban cumplir con cualquier obligación a cargo del Franquiciatario conforme al Contrato de Franquicia, en cumplimiento del presente Contrato, éstos deberán cumplir con dicha obligación, a partir de la fecha en que así lo requiera PLANET FITNESS a cualquiera de los Obligados solidarios, conforme a lo establecido en el Contrato de Franquicia.

QUINTA. Los Obligados Solidarios garantizan y asumen en forma solidaria e ilimitada todas y cada una de las obligaciones asumidas por el

SECOND. The joint obligation assumed by the Joint Obligors according to this Agreement shall be in full force and effect during the time on which the Franchise Agreement is in effect and until PLANET FITNESS is satisfied for the compliance of each and all of the obligations of the Franchisee in terms of the Franchise Agreement, and a written release of obligations evidencing the foregoing is issued by PLANET FITNESS in favor of the Joint Obligors. This Agreement and the obligations assumed by the Joint Obligors according to same shall continue in full force and effect notwithstanding that the Franchise Agreement is modified, extended, expires or terminates in advance for any reason.

THIRD. Upon any breach by the Franchisee with respect to its obligations under the Franchise Agreement, PLANET FITNESS will be entitled to request to all and/or any of the Joint Obligors the compliance of such obligation, without it being necessary that PLANET FITNESS previously completes any procedure against the Franchisee and/or one or more of the Joint Obligors. The parties hereby agree that upon the circumstances indicated in this clause and if one or more of the Joint Obligors are obliged to remedy any breach of the Franchisee with respect to the obligations of the latter derived from the Franchise Agreement, the Joint Obligors that have remedied said obligation shall be subrogated to the rights of PLANET FITNESS with respect to the Franchisee and the other Joint Obligors, if that is the case, as to the remedied obligation and will be entitled, at their sole discretion, to assert a claim against the Franchisee and the other Joint Obligors.

FOURTH. In the event that under this Agreement the Joint Obligors are obliged to fulfill any obligation in charge of the Franchisee according to the Franchise Agreement, the Joint Obligors shall have to comply with their obligation, as of the date on which any of them receives the corresponding requirement from PLANET FITNESS.

FIFTH. The Joint Obligors guarantee and assume in a joint and unlimited manner each and all of the obligations assumed by the Franchisee under the Franchise Agreement, as such instrument may be

Franquiciatario conforme al Contrato de Franquicia, según dicho instrumento pueda ser modificado de tiempo en tiempo, el cual, con sus respectivos anexos se adjunta en copia simple al presente Contrato como Anexo "A". Será responsabilidad de los Obligados Solidarios obtener del Franquiciatario la información relativa a cualquier modificación del Contrato de Franquicia que PLANET FITNESS y el Franquiciatario puedan pactar, sin que la falta de obtención de dicha información limite o afecte de modo alguno las obligaciones de los Obligados Solidarios conforme al presente Contrato.

SEXTA. Los Obligados Solidarios reconocen y aceptan que PLANET FITNESS tiene el derecho de aplicar cualquier monto adeudado por los Obligados Solidarios a PLANET FITNESS a cualquiera de los adeudos vencidos de los Obligados Solidarios a PLANET FITNESS y, por lo tanto, PLANET FITNESS tiene el derecho de, y mediante el presente Contrato los Obligados Solidarios autorizan a PLANET FITNESS, retener y/o compensar cualquier cantidad que los Obligados Solidarios adeuden a PLANET FITNESS contra cualquier cantidad que PLANET FITNESS pueda adeudar a los Obligados Solidarios, en virtud de este Contrato o cualquier otro convenio entre las Partes, así como cualesquier otros adeudos u obligaciones de los Obligados Solidarios ante PLANET FITNESS.

SÉPTIMA. El presente Contrato constituye la totalidad de los acuerdos de las partes en relación con los asuntos aquí contemplados, por lo que cualquier pacto, convenio o acuerdo, verbal o escrito que hayan celebrado con anterioridad a la fecha de firma de este documento, respecto del objeto de este Contrato, quedará sin efecto alguno.

OCTAVA. Este Contrato sólo podrá ser modificado mediante acuerdo por escrito entre las partes. Los Obligados Solidarios no podrán ceder los derechos que adquieren ni las obligaciones que asumen en los términos de este instrumento. Por su parte, PLANET FITNESS estará facultada para ceder el presente Contrato, ya sea parcial o totalmente, mediante simple aviso por escrito a los Obligados Solidarios.

NOVENA. Todos los avisos y notificaciones que las partes deban o deseen hacerse en los términos de este Contrato se realizarán por escrito a los domicilios que se indican a continuación. La parte que realice el aviso o notificación deberá obtener prueba de que el mismo fue entregado y recibido por

modified from time to time, which simple copy with its respective exhibits is attached hereto as Exhibit "A". It will be the Joint Obligors' responsibility to obtain from the Franchisee the information related to any amendment of the Franchise Agreement that PLANET FITNESS and the Franchisee may agree, and the failure by the Joint Obligors to obtain such information will not limit or affect in any manner the obligations of the Joint Obligors pursuant to this Agreement.

SIXTH. The Joint Obligors acknowledge and agree that PLANET FITNESS has the right to apply any amounts owed by the Joint Obligors to PLANET FITNESS to any of the Joint Obligors' past due indebtedness to PLANET FITNESS and, therefore, PLANET FITNESS has the right to, and the Joint Obligors hereby give PLANET FITNESS approval to, withhold and/or set off any amounts the Joint Obligors owe PLANET FITNESS against any amounts PLANET FITNESS might owe the Joint Obligors, under this Agreement or any other agreement between the Parties, as well as any other debt or obligation of the Joint Obligors to PLANET FITNESS.

SEVENTH. This Agreement constitutes the entire agreement between the parties in connection with the subject matter contemplated hereby; therefore, any written or verbal agreement, contract or arrangement, entered into prior to the date of execution of this document, with respect to the subject matter hereof, shall have no effect.

EIGHTH. This Agreement can only be amended by written agreement of the parties. The Joint Obligors will not be entitled to assign the rights that they acquire nor the obligations that they assume in terms of this instrument. On its part, PLANET FITNESS shall be entitled to assign this Agreement, partially or totally, through simple written notice to the Joint Obligors.

NINTH. All notices and notifications to be given by the parties under this Agreement shall be made in writing to the addresses indicated below. The party giving the notice or notification shall obtain evidence that the same was delivered and received by the addressee at the respective domicile.

el destinatario en el domicilio respectivo. Para dichos efectos y hasta en tanto las partes no notifiquen cambio de domicilio conforme a lo anterior, las partes señalan como sus domicilios los siguientes:

PLANET FITNESS
Planet Fitness Mexico, S. de R.L. de C.V.
Av. Insurgentes Sur 1787
4th Floor, Guadalupe Inn
Alvaro Obregón
Mexico City, Z.C. 01020
Atención: General Counsel

Los Obligados Solidarios

**Fitness Para Todos Holdings, S. de R.L.
de C.V.**

Av. Eje Central Lázaro Cárdenas No. 887,
Interior 130,
Colonia Vertiz Narvarte,
Benito Juárez, 03600,
Ciudad de México, México

DÉCIMA. Para todo lo relativo a la interpretación y cumplimiento del presente Contrato, las partes se someten a las leyes aplicables y a los tribunales competentes de la Ciudad de México, México, renunciando expresamente a cualquier otro fuero que pudiera corresponderles en virtud de sus domicilios presentes o futuros, por la ubicación de sus bienes, o por cualquier otra causa.

DÉCIMA PRIMERA. El presente Contrato se firma en idioma español con su traducción al idioma inglés para efectos informativos únicamente. En caso de cualquier diferencia entre ambas versiones, la versión en español prevalecerá.

EN TESTIMONIO DE LO CUAL, el presente Contrato se firma con efectos a partir de la fecha indicada en el encabezado del mismo.

For such purposes and until the parties notify a change of address according to the foregoing, the parties appoint the following as their domiciles:

PLANET FITNESS
Planet Fitness Mexico, S. de R.L. de C.V.
Av. Insurgentes Sur 1787
4th Floor, Guadalupe Inn
Alvaro Obregón
Mexico City, Z.C. 01020
Attention: General Counsel

The Joint Obligors

**Fitness Para Todos Holdings, S. de R.L.
de C.V.**

Av. Eje Central Lázaro Cárdenas No. 887,
Interior 130,
Colonia Vertiz Narvarte,
Benito Juárez, 03600,
Mexico City, Mexico.

TENTH. For all related to the interpretation and performance of this Agreement, the parties expressly submit themselves to the applicable laws and the corresponding courts of Mexico City, Mexico, expressly waiving any other forum to which they might be entitled by reason of their present or future domiciles, for the location of their assets, or by any other cause.

ELEVENTH. This Agreement is executed in Spanish language with its translation into English language for informative purposes only. In case of any difference between both versions, the Spanish version shall prevail.

IN WITNESS WHEREOF, this Agreement is executed effective as of the date first above written.

[El siguiente espacio se deja en blanco intencionalmente; firmas en la siguiente hoja]
[The following space is left in blank intentionally; signature on next page]

Planet Fitness Mexico, S. de R.L. de C.V.

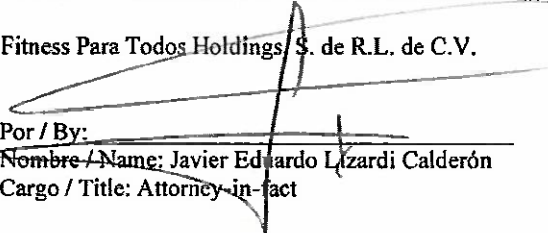
Por / By: 

Nombre / Name: Justin Vartanian

Cargo / Title: General Counsel

LOS OBLIGADOS SOLIDARIOS / THE JOINT OBLIGORS

Fitness Para Todos Holdings/ S. de R.L. de C.V.

Por / By: 

Nombre / Name: Javier Eduardo Lizardi Calderón

Cargo / Title: Attorney-in-fact

La presente es la hoja de firmas del Contrato de Asunción de Obligación Solidaria de fecha 27 de April de 2023, celebrado entre Planet Fitness Mexico, S. de R.L. de C.V. y Fitness Para Todos Holdings, S. de R.L. de C.V.

This is the signatures page of the Assumption of Joint Obligation Agreement dated April 24, 2023 entered into between Planet Fitness Mexico, S. de R.L. de C.V. and Fitness Para Todos Holdings, S. de R.L. de C.V.

* * *

ANEXO "A"

**COPIA DEL CONTRATO DE FRANQUICIA Y
SUS ANEXOS**

EXHIBIT "A"

**COPY OF THE FRANCHISE AGREEMENT
AND ITS EXHIBITS**

APPENDIX D
TO FRANCHISE AGREEMENT
OWNERSHIP ADDENDUM

1. **RESPONSIBLE OWNER.** The name, email address and address of the Responsible Owner is as follows:
Bill Weimar, email address: bweimar@argonnecapital.com, address: 3060 Peachtree Road N.W., Suite 400, Atlanta, Georgia 30305.
2. **APPROVED OPERATOR.** The name, email address and address of the Approved Operator is as follows:
Alfonso Manuel Gomez Benet, email address: alfonso@fpt.com.mx, address: Calzada de los Leones 170, Primer Piso, Colonia Los Alpes, Álvaro Obregón, Mexico City, C.P. 01010.
3. **FORM OF ENTITY OF FRANCHISEE.**

Franchisee: FITNESS PARA TODOS S. DE R.L. DE C.V.

Franchisee was organized as a limited liability company on February 26, 2021, under the laws of the United Mexican States, as evidenced in public deed No. 141,398, dated February 26, 2021 granted before Mr. Gerardo Correa Etchegaray, Notary Public No. 89 for Mexico City, which first true copy was recorded with the Public Registry of Commerce of Mexico City under Mercantile Folio No. N-20210430020. Its Tax Identification Number is FTO210226USA. It has not conducted business under any name other than its corporate or company name. Its principal business address is Calzada de los Leones 170, Primer Piso, Colonia Los Alpes, Álvaro Obregón, Mexico City, C.P. 01010.

Franchisee's attorney-in-fact has the necessary authority to execute this Franchise Agreement on your behalf, and such authority has not been revoked, limited or modified in any manner whatsoever, as it is evidenced in public deed No. 141,398, dated February 26, 2021, granted before Mr. Gerardo Correa Etchegaray, Notary Public No. 89 of Mexico City.

<u>Name of Each Director/Officer/Partner/Manager/Managing Member</u>	<u>Position(s) Held</u>
Planet Fitmex, LLC, a Delaware Limited Liability Company	Partner
Fitness Para Todos Holdings, a S. de R.L. de C.V.	Partner
Marco Antonio Franco Alanis	Sole Administrator

4. **OWNERS.**

(a) **Ownership Interests.** Franchisee represents and warrants that, as at the Effective Date, the following is a complete and accurate list of all Owners (as defined in this Agreement, as amended by the Area Development Agreement Addendum to the Franchise Agreement) of any direct or indirect ownership interest whatsoever in Franchisee, including the full name and contact information of each Owner, and fully describes the nature and extent of each Owner's interest in Franchisee to the extent required. Franchisee represents and warrants that each Owner is the sole and exclusive legal and beneficial Owner of its, his or her ownership interest in Franchisee, free and clear of all liens, restrictions, agreements and encumbrances of any kind or nature, other than those required or permitted by this Agreement or consented to in writing by us.

<u>Owners' Name and Contact Information</u>	<u>Percentage and Nature of Ownership Interest</u>
Planet Fitmex Sub, LLC, a Delaware limited liability company 3060 Peachtree Road N.W., Suite 400, Atlanta, Georgia 30305	.01%
Fitness Para Todos Holdings, S. de R.L. de C.V. Calzada de los Leones 170 Primer Piso, Colonia Los Alpes, Álvaro Obregón, Mexico City, C.P. 01010	99.99%

<u>Owner of Fitness Para Todos Holdings, S. de R.L. de C.V.</u>	<u>Percentage and Nature of Ownership Interest</u>
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Planet Fitmex Sub, LLC, a Delaware limited liability company 3060 Peachtree Road N.W., Suite 400, Atlanta, Georgia 30305	.01%
--	------

Planet Fitmex, LLC, a Delaware limited liability company 3060 Peachtree Road N.W., Suite 400, Atlanta, Georgia 30305	99.99%
--	--------

<u>Owners of Planet Fitmex Sub, LLC</u>	<u>Percentage and Nature of Ownership Interest</u>
---	--

Planet Fitmex, LLC, a Delaware limited liability company 3060 Peachtree Road N.W., Suite 400, Atlanta, Georgia 30305	100%
--	------

<u>Owners of Planet Fitmex, LLC</u>	<u>Percentage and Nature of Ownership Interest</u>
-------------------------------------	--

Mexico Fitness Partners, LLC, a Delaware limited liability company 3060 Peachtree Road N.W., Suite 400, Atlanta, Georgia 30305	5.99%
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<u>Owners of Mexico Fitness Partners, LLC</u>	<u>Percentage/Nature of Ownership Interest</u>
Michael A. Klump	100% in the aggregate for all
Karl F. Jaeger	
Layton Grisette	
Bill Weimar	
Ben Nemo	
Mitchell Brister	
Patrick Anderson	

Michael A. Klump, in his individual capacity	0.86%
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ACG Planet Fitmex Manager, LLC, a Delaware limited liability company 3060 Peachtree Road N.W., Suite 400, Atlanta, Georgia 30305	35.92%
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Positano Holding LP, a Canadian limited partnership 24503 Cliff Line, San Antonio, Texas 78257	11.97%
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<u>Owners of Positano Holding LP</u>	<u>Percentage/Nature of Ownership Interest</u>
IB Consulting Group, LLC (General Partner), a Texas limited liability company	1%

<u>Owners of IB Consulting Group, LLC.</u>	<u>Percentage of Ownership Interest</u>
--	---

Carlos Guillermo Ibarra Covarrubias	40%
Marjorie Pauline Jackson Herreras	15%
Cynthia Ibarra Jackson	15%
Carlos Patricio Ibarra Jackson	15%
Juan Carlos Ibarra Jackson	15%

THE 1054 REVOCABLE TRUST (Limited Partner)	99%
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Fongobe, a S. de R.L. de C.V. 11.97%
 Amsterdam 259, #103, Col. Hipodromo Condesa, Deleg. Cuauhtemoc, 06100 Mexico, DF, Mexico

<u>Owners of Fongobe. a S. de R.L. de C.V.</u>	<u>Percentage/Nature of Ownership Interest</u>
Alfonso Manuel Gomez Benet	60%
Claudia Mercedes Gomez Gonzalez	20%
Alfonso Gomez Gonzalez	20%

Passive Members of Planet Fitmex, LLC 33.29%

(b) **Ownership Group.** If this Franchise Agreement is executed pursuant to an ADA, you represent and warrant that the following Owner or group of Owners owns you and constitutes your Ownership Group as described in Article 8 of the Area Development Agreement.

Owner's Name	Percentage and Nature of Ownership Interest	Voting Interest (%)
Planet Fitmex, LLC	See above	100%

5. **PLANET FITNESS BUSINESS GROUP**

Fitness Para Todos, S. de R.L. de C.V.
 Fitness Para Todos Holdings, S. de R.L. de C.V.
 Planet Fitmex Sub, LLC
 Planet Fitmex, LLC
 Controlled Affiliates of Franchisee

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APPENDIX E
TO FRANCHISE AGREEMENT

ADDENDUM TO LEASE

1. Landlord shall concurrently deliver to Planet Fitness Mexico, S. de R.L. de C.V. ("Franchisor") a copy of any notice of default or termination of the Lease delivered to Franchisee. Such copy shall be sent to Planet Fitness Mexico, S. de R.L. de C.V., 4 Liberty Lane West, Hampton, New Hampshire 03842, Attn: General Counsel, or such other address as Franchisor may specify by written notice to Landlord.
2. Franchisee (being the Tenant or Lessee under this Lease) hereby assigns to Franchisor, with Landlord's irrevocable and unconditional consent, all of Franchisee's rights, title and interest to and under the Lease upon any termination or non-renewal of the Franchise Agreement, but no such assignment shall be effective unless: (a) the Franchise Agreement is terminated or expires without renewal; and (b) Franchisor notifies the Franchisee and Landlord in writing that Franchisor assumes Franchisee's obligations under the Lease.
3. Franchisor shall have the right, but not the obligation, upon written notice to Franchisee and Landlord, to cure any breach of the Lease and, if stated in the notice, to assume Franchisee's rights, title and interests thereunder.
4. Franchisor shall have no liability or obligation whatsoever under the Lease unless and until Franchisor assumes the Lease in writing pursuant to paragraph 2 or 3 above. Franchisor will be responsible for the lease obligations incurred after the effective date of the assumption. In the event Franchisor elects to assume the Lease, (i) Franchisee will remain liable for the responsibilities and obligations, including amounts owed to Landlord, prior to the date of assignment and assumption, and (ii) Franchisor will have the right to sublease the leased premises, without regard to any restriction on subleasing contained in the Lease, to another franchisee or an affiliate that agrees to operate the leased premises as a **PLANET FITNESS** business.
5. Franchisor and its employees or agents shall have the right to enter the Location for certain purposes set forth in the Franchise Agreement, including, without limitation, to remove signs, decor and materials displaying trademarks, designs or logos owned by Franchisor in the event of expiration (without renewal) of the Franchise Agreement or the Lease. Landlord consents to such entry for the limited purposes set forth in the Franchise Agreement. Franchisor shall bear the expense of repairing any damage to the Location as a result thereof.
6. Landlord agrees to allow Franchisee to remodel, equip, paint and decorate the interior and exterior of the Location pursuant to the terms of the Lease, the Franchise Agreement and any successor Franchise Agreement under which Franchisee may operate the Business at the Location. Subject to applicable law, Landlord agrees to allow Franchisee to conduct a physical presale at the Location subsequent to Landlord delivering possession of the Location to Franchisee and prior to the opening of the Business.
7. Landlord agrees to allow Franchisee to use ultraviolet tanning devices, massage chairs and similar devices, operate twenty-four (24) hours per day and seven (7) days per week and serve food and beverages to its members.
8. Landlord acknowledges and agrees that: (a) Franchisor is a third party beneficiary of the Lease; (b) Franchisor is at all times entitled to enforce, in its own name, the provisions of the Lease; and (c) Landlord waives any limitation in the Lease that would prevent Franchisor or its designated assignee, sublessee or franchisee from operating a **PLANET FITNESS** business in the leased premises or within a specified distance of the leased premises.
9. References to the Lease and the Franchise Agreement include all amendments, addenda, extensions and renewals to such documents. In the event the terms of the Lease conflict with the terms of this Appendix, this Appendix shall control. No subsequent amendment, renewal, assignment or modification to the Lease shall adversely affect Franchisor's rights hereunder, absent Franchisor's prior written consent.
10. References to the Landlord, Franchisee and Franchisor include their successors and assigns.

APPENDIX F
TO FRANCHISE AGREEMENT
SUMMARY OF FRANCHISE AGREEMENT

TO BE EXECUTED UPON COMMENCEMENT OF BUSINESS OPERATIONS

(See attached.)

**RESUMEN DEL CONTRATO DE
FRANQUICIA**

RESUMEN DEL CONTRATO DE
FRANQUICIA CELEBRADO EL ____ DE
____ 2023, ENTRE PLANET
FITNESS MEXICO, S. DE R.L. DE C.V., (EN LO
SUCESIVO EL "FRANQUICIANTE"),
REPRESENTADA EN ESTE ACTO POR
_____, POR LA OTRA
PARTE, FITNESS PARA TODOS, S. DE R.L.
DE C.V., REPRESENTADA EN ESTE ACTO
POR JAVIER EDUARDO LIZARDI
CALDERÓN (EN LO SUCESIVO, EL
"FRANQUICIATARIO"), DE CONFORMIDAD
CON LAS SIGUIENTES DECLARACIONES Y
CLÁUSULAS:

DECLARACIONES

- I. Declara el Franquiciante, por conducto de su representante legal, que:**
- I.1** Es una sociedad constituida de conformidad con las leyes de Mexico.
- I.2** Su representante cuenta con las facultades suficientes para celebrar el presente instrumento en representación del Franquiciante, las cuales no le han sido revocadas ni limitadas de modo alguno
- I.3** Su domicilio se encuentra ubicado en Av. Insurgentes Sur 1787, 4th Floor, Guadalupe Inn, Alvaro Obregón, Ciudad de México, C.P. 01020, México.
- I.4** Cuenta con el derecho suficiente para licenciar y franquiciar un sistema único y distintivo que incluye, entre otros conceptos, las marcas, el diseño y los diseños del edificio, el equipo, el entrenamiento, ciertos estándares y políticas de funcionamiento y de negocio, secretos industriales y demás información confidencial (el "Sistema") para el establecimiento y operación de negocios de fitness que ofrecen servicios de facilidades de entrenamiento de fitness, incluyendo máquinas de ejercicios y pesos libres, servicios de entrenamiento físico, servicios de bronceado, servicios relacionados y mercancías auxiliares (the "Planet Fitness Businesses").
- I.5** El Franquiciador tiene una licencia de su afiliado, PFIP International, para usar y para sublicenciar el nombre y la marca comercial "Planet Fitness," así como otras marcas registradas, marcas en trámite de registro,

**SUMMARY OF THE FRANCHISE
AGREEMENT**

SUMMARY OF FRANCHISE AGREEMENT
ENTERED INTO ON _____, 2023,
BY AND BETWEEN PLANET FITNESS
MEXICO, S. DE R.L. DE C.V.,
(HEREINAFTER THE "FRANCHISOR"),
REPRESENTED HEREIN BY
_____, AND BY FITNESS
PARA TODOS, S. DE R.L. DE C.V.,
REPRESENTED HEREIN BY JAVIER
EDUARDO LIZARDI CALDERÓN
(HEREINAFTER THE "FRANCHISEE"),
PURSUANT TO THE FOLLOWING
REPRESENTATIONS AND CLAUSES:

REPRESENTATIONS

- I. The Franchisor represents, through its legal representative, that:**
- I.1** It is an entity organized in accordance with the laws of Mexico.
- I.2** Its legal representative has sufficient authority to enter into this instrument on behalf of Franchisor, which authority has not been revoked or limited in any manner whatsoever.
- I.3** Its domicile is located at Av. Insurgentes Sur 1787, 4th Floor, Guadalupe Inn, Alvaro Obregón, Mexico City, Z.C. 01020.
- I.4** It has the necessary right to license and franchise a unique and distinctive system which includes, among other things, the Marks, building design and layouts, equipment, training, certain operating and business standard and policies, industrial secrets and other confidential information (the "System") for the establishment and operation of fitness businesses offering fitness training facility services, including exercise machines and free weights, fitness training services, tanning services, related services, and ancillary merchandise (the "Planet Fitness Businesses").
- I.5** Franchisor has a license from its affiliate, PFIP International, to use and to sublicense the name and the trademark "Planet Fitness," as well as other registered trademarks, trademarks in the process of registration, trade names, logotypes, designs and other commercial symbols as Franchisor may from time to time authorize or direct the Franchisee to use in connection

nombres comerciales, logotipos, diseños y otros símbolos comerciales que el Franquiciante autorice de tiempo en tiempo o indique usar al Franquiciatario en relación con el establecimiento y operación de las empresas de Planet Fitness (las "<u>Marcas</u>"). I.6 Algunas de las Marcas se encuentran debidamente registradas o en trámite de registro en los Estados Unidos Mexicanos, ante el Instituto Mexicano de la Propiedad Industrial, las cuales se señalan en el <u>Apéndice 1</u> del presente Resumen de Contrato de Franquicia (las "<u>Marcas Licenciadas</u>"). II. Declara el Franquiciatario, a través de su representante legal, que: II.1 Es una sociedad debidamente constituida de conformidad con las leyes de México. II.2 Su representante cuenta con las facultades suficientes para celebrar el presente instrumento en representación del Franquiciatario, las cuales no le han sido revocadas ni limitadas de modo alguno. II.3 Su domicilio se encuentra ubicado en Paseo de los Tamarindos 60, Piso 4, Col. Bosques de las Lomas, 05120 Cuajimalpa, Ciudad de México, México. III. Declaran el Franquiciante y el Franquiciatario, que: III.1 El presente documento constituye un resumen del contrato de franquicia que las partes celebraron el ____ de ____ de 2023 (el "<u>Contrato de Franquicia</u>") y lo celebran única y exclusivamente para efectos de inscripción ante el Instituto Mexicano de la Propiedad Industrial, de acuerdo a lo establecido en las disposiciones aplicables de la Ley Federal de Protección a la Propiedad Industrial y su Reglamento, incluyendo lo señalado en los artículos 239 y 240 de la citada Ley. III.2 El Contrato de Franquicia cumple con todos y cada uno de los requisitos establecidos en el artículo 246 y demás aplicables de la Ley Federal de Protección a la Propiedad Industrial y parte de la información contenida en el Contrato de Franquicia constituye información confidencial en términos de lo previsto en el penúltimo párrafo del artículo 10 del Reglamento aplicable, por lo que se omite su inclusión	with the establishment and operation of the Planet Fitness Businesses (the "<u>Marks</u>"). I.6 Some of the Marks are duly registered or in the process of registration in the United Mexican States, with the Mexican Institute of Industrial Property, same which are referred in <u>Appendix 1</u> of this Summary of Franchise Agreement (the "<u>Licensed Marks</u>"). II. The Franchisee represents, through its legal representative, that: II.1 It is a corporation duly organized in accordance with the laws of Mexico. II.2 Its legal representative has sufficient authority to enter into this instrument on behalf of Franchisor, which authority has not been revoked or limited in any manner whatsoever. II.3 Its domicile is located at Paseo de los Tamarindos 60, 4th Floor, Col. Bosques de las Lomas, 05120 Cuajimalpa, Mexico City, Mexico. III. The Franchisor and the Franchisee represent, that: III.1 This document constitutes a summary of the franchise agreement entered into by the parties on _____, 2023 (the "<u>Franchise Agreement</u>") and the parties execute the same only and exclusively for purposes of registration before the Mexican Institute of Industrial Property, pursuant to what is foreseen in the applicable provisions of the Mexican Federal Law for the Protection of the Industrial Property and its Regulations, including what is provided in articles 239 and 240 of said Law. III.2 The Franchise Agreement complies with each and every one of the requisites set forth in article 246 and other applicable provisions of the Mexican Federal Law for the Protection of the Industrial Property and part of the information contained in the Franchise Agreement constitutes confidential information pursuant to what is provided in the penultimate last paragraph of article 10 of the applicable Regulations and, therefore, its inclusion in this Summary of the Franchise Agreement is omitted. Based on the above Representations, the Parties agree to be bound pursuant to the following:
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en el presente Resumen del Contrato de Franquicia.

Con base en las Declaraciones que anteceden, las Partes están de acuerdo en obligarse conforme a las siguientes:

CLÁUSULAS

PRIMERA.- El Franquiciante en este acto otorga al Franquiciatario, bajo los términos y condiciones establecidos en el presente Resumen del Contrato de Franquicia, el derecho, licencia y franquicia para usar las Marcas Licenciadas y el Sistema, exclusivamente para establecer y operar una (1) empresas de Planet Fitness (en lo sucesivo el "Negocio Franquiciado") en la zona geográfica y ubicación que se señala en la Cláusula Segunda Siguiente.

SEGUNDA.- La ubicación geográfica del Negocio Franquiciado será la siguiente dirección: Avenida del Penon 355, Moctezuma 2da seccion, Alcaldia Venustiano Carranza, 15530 Ciudad de Mexico, Mexico.

TERCERA.- El Franquiciante y el Franquiciatario en este acto designan y autorizan irrevocablemente a Jorge Mondragón Domínguez, Pablo Hooper Ramírez, Lirio Salgado Ramos, Constantino Aquique Pineda y Alberto Pliego Beguerisse para que cualquiera de ellos inscriba el presente Resumen del Contrato de Franquicia ante el Instituto Mexicano de la Propiedad Industrial, para tomar cualquier otra acción necesaria o conveniente relacionada con la inscripción y cancelación de inscripción de este Resumen del Contrato de Franquicia, en caso de que dichas acciones sean consideradas apropiadas por el Franquiciante o requeridas por la ley y/o por la licencia de las Marcas Licenciadas contenida en este Resumen del Contrato de Franquicia. En adición a lo anterior y para los efectos señalados en el presente párrafo, el Franquiciatario se obliga a otorgar un poder especial irrevocable en términos del poder especial que se adjunta al presente Contrato como Apéndice 2, en favor de las personas señaladas anteriormente y entregado por el Franquiciatario al Franquiciante dentro de los 5 (cinco) días hábiles siguientes a que reciban una solicitud por escrito emitida por el Franquiciante en tal sentido.

CUARTA.- El término de este Resumen del Contrato de Franquicia diez (10) años contados a partir de la fecha de este Resumen del Contrato de Franquicia, por lo que expirará a las 11:59 PM del día ____ de ____ de 20____. No obstante lo anterior, la terminación por cualquier causa del Contrato de Franquicia tendrá como consecuencia y efecto inmediato y natural la terminación del presente Resumen del Contrato de Franquicia, el cual

CLAUSES

FIRST.- Under the terms and conditions established in this Summary of the Franchise Agreement, Franchisor hereby grants to the Franchisee the right, license and franchise to use the Licensed Marks and the System, exclusively for purposes of the establishment and operation of one (1) Planet Fitness Business (the "Franchised Business") to be located in the geographic location indicated in Clause Second below.

SECOND.- The geographic location of the Franchised Business shall be the following address: Avenida del Penon 355, Moctezuma 2da seccion, Alcaldia Venustiano Carranza, 15530 Ciudad de Mexico, Mexico.

THIRD.- The Franchisor and the Franchisee hereby irrevocably appoint and authorize Jorge Mondragón Domínguez, Pablo Hooper Ramírez, Lirio Salgado Ramos, Constantino Aquique Pineda and Alberto Pliego Beguerisse, in order to register this Summary of the Franchise Agreement before the Mexican Institute of Industrial Property, to take any other necessary or convenient action related to the registration and cancellation of registration of this Summary of Franchise Agreement, in the event that such actions are considered appropriate by Franchisor or required by law and/or the trademark license contained in this Summary of Franchise Agreement. In addition to the foregoing and for the purposes established in this paragraph, the Franchisee shall grant an irrevocable special power of attorney in terms of the power of attorney attached hereto as Appendix 2 to those individuals mentioned above and deliver to Franchisor the document containing such power of attorney within the next 5 (five) business days following receipt of a written request in such regard issued by Franchisor.

FOURTH.- The term of this Summary of Franchise Agreement is ten (10) years counted as from the date of this Summary of Franchise Agreement, in consequence it shall expire precisely at 11:59 PM of _____, 20____. Therefore and notwithstanding the foregoing, the termination by any cause of the Franchise Agreement shall have as consequence and immediate and natural effect the termination of this Summary of Franchise Agreement which is ancillary to the Franchise Agreement, without the need to obtain an arbitral, judicial or administrative resolution nor of any other nature.

es accesorio del Contrato de Franquicia, sin que sea necesario obtener resolución arbitral, judicial o administrativa alguna, ni de cualquier otra naturaleza.

QUINTA.- El Franquiciante declara que tiene el derecho de licenciar el uso de las Marcas Licenciadas en favor del Franquiciatario. El Franquiciante expresamente se reserva el derecho de cambiar, alterar o modificar cualesquiera de las Marcas Licenciadas, color y diseño que el Franquiciante pueda utilizar regularmente en relación con el Sistema y las empresas de Planet Fitness, o sustituir cualquier Marca Licenciada en cualquier momento. En caso de cualquier cambio, alteración o modificación de cualquiera de las Marcas Licenciadas, el Franquiciatario acuerda que únicamente la Marca Licenciada sustituta, modificada o alterada deberá ser utilizada por el Franquiciatario para identificar el Sistema o el Negocio Franquiciado, según sea el caso y conforme lo indique el Franquiciante, sujeto a que el Franquiciante o una sociedad afiliada del Franquiciante (incluyendo, sin limitar, PFIP International) haya obtenido o solicitado el o los registros correspondientes.

El Franquiciante y PFIP International se reservan el derecho y las facultades para ejercitar las acciones de protección sobre los derechos de propiedad industrial derivados de las Marcas Licenciadas. El Franquiciatario deberá notificar de inmediato al Franquiciante sobre cualquier reclamación, demanda o causa de acción que el Franquiciante pudiera tener por el surgimiento de cualquier intento a cargo de una persona o sociedad del uso no autorizado de cualquiera de las Marcas Licenciadas, o cualquier variación en los colores, o cualquier otra marca, nombre o denominación respecto de la cual el Franquiciante sea titular o licenciario. El Franquiciatario deberá proporcionar ayuda al Franquiciante cuando éste lo requiera y bajo el costo del Franquiciatario, para llevar a cabo tales acciones, en su caso, cuando el Franquiciante lo considere apropiado, con la finalidad de detener dichas actividades.

El Franquiciante se reserva el derecho de sustituir cualesquiera de las Marcas Licenciadas para identificar el Sistema y el Negocio Franquiciado, en caso de que las Marcas Licenciadas no puedan seguir siendo utilizadas o en caso de que el Franquiciante, a su entera discreción, determine que la sustitución de diferentes Marcas Licenciadas será benéfica para el Sistema y el Negocio Franquiciado.

SEXTA.- Todas las notificaciones que deban realizarse conforme al presente Resumen del Contrato de Franquicia serán por escrito y deberán ser enviadas personalmente o mediante cualquiera de

FIFTH.- Franchisor represents to have the right to license the use of the Licensed Marks in favor of the Franchisee. Franchisor expressly reserves for itself the right of changing, altering or modifying any of the Licensed Marks, color and design that Franchisor may regularly use in connection with the System and the Planet Fitness Business, or substitute any Licensed Mark at any time. In the event of any change, alteration or modification of any of the Licensed Marks, the Franchisee agrees that only the substituted, modified or altered Licensed Mark shall be used by the Franchisee to identify the System or the Franchised Business, as the case may be, and pursuant to Franchisor's indications, provided that Franchisor or an affiliate of Franchisor (including without limitation, PFIP International) have obtained or requested the corresponding registration or registrations.

Franchisor and PFIP International reserve for themselves the right and authority to exercise the actions to protect the industrial property rights derived from the Licensed Marks. The Franchisee shall immediately notify Franchisor about any claim, lawsuit or cause of action that Franchisor may have as a consequence of any intent by any individual or company of the non authorized use of the Licensed Marks, or any variation in the colors, or any other trademark or name of which Franchisor is the owner or a licensee. The Franchisee shall provide assistance to Franchisor when requested by Franchisor and at the Franchisee's cost, in order to carry out such actions, if applicable, when deemed appropriate by Franchisor, with the purpose of stopping such activities.

Franchisor reserves for itself the right to substitute any of the Licensed Marks to identify the System and the Franchised Business, in the event that the Licensed Marks may not continue to be used or in the event that Franchisor, at its sole discretion, determines that the substitution of some of the Licensed Marks shall benefit the System and the Franchised Business.

SIXTH.- All notifications to be performed pursuant to this Summary of Franchise Agreement shall be in writing and shall be personally delivered or through one of the following professional reputable overnight couriers: FedEx, DHL, UPS or other reputable overnight courier service. For such purposes, the parties indicate the following as their respective domiciles:

las siguientes compañías reconocidas de mensajería especializada, FEDEX, DHL, UPS o cualquier otro servicio nocturno de mensajería con reputación. Para tales efectos, las partes señalan como sus domicilios los siguientes:

Franchisor

Planet Fitness Mexico, S. de R.L. de C.V.

Av. Insurgentes Sur 1787

4th Floor, Guadalupe Inn

Alvaro Obregón

Mexico City, Z.C. 01020

Con copia para (sin que dicha copia constituya una notificación):

Jorge Mondragón D.

González Calvillo, S.C.

Montes Urales 632, Piso 3

Lomas de Chapultepec

11000 México, D.F.

Facsimile No.: (5255) 5520-7671

Franquiciatario:

Javier Lizardi como Representante Legal

Paseo de los Tamarindos 60

Cuarto Piso,

Col. Bosques de las Lomas

05120 Cuajimalpa

Ciudad de México, México

SÉPTIMA. Las Partes se someten expresamente a las leyes federales de México y a la jurisdicción de los tribunales competentes de Ciudad de México, México, para todo lo relativo a la interpretación, cumplimiento y ejecución del presente Resumen del Contrato de Franquicia, y renuncian a cualquier otra jurisdicción que pueda corresponderles debido a sus domicilios presentes o futuros o por cualquier otra razón.

OCTAVA. Los encabezados en el presente Resumen del Contrato de Franquicia son únicamente por conveniencia y no deberán controlar o afectar el significado o interpretación de cualquier disposición en este Resumen del Contrato de Franquicia.

NOVENA. Para todo lo no previsto en el presente Resumen del Contrato de Franquicia, se estará a lo dispuesto en el propio Contrato de Franquicia.

DÉCIMA. El presente Resumen del Contrato de Franquicia se firma en idioma español con su traducción al idioma inglés para efectos informativos únicamente. En caso de cualquier diferencia entre ambas versiones, la versión en español prevalecerá.

EN TESTIMONIO DE LO CUAL, las partes celebran el presente Resumen del Contrato de

Franchisor

Planet Fitness Mexico, S. de R.L. de C.V.

Av. Insurgentes Sur 1787

4th Floor, Guadalupe Inn

Alvaro Obregón

Mexico City, Z.C. 01020

With a copy to (without such copy being considered a notice):

Jorge Mondragón D.

González Calvillo, S.C.

Montes Urales 632, Piso 3

Lomas de Chapultepec

11000 México, D.F.

Facsimile No.: (5255) 5520-7671

Franchisee:

Javier Eduardo Lizardi Calderón as Attorney-in-fact

Paseo de los Tamarindos 60

4th Floor

Bosques de las Lomas

05120 Cuajimalpa

Mexico City, Mexico

SEVENTH.- The Parties expressly submit themselves to the federal laws of Mexico and to the jurisdiction of the competent courts of Mexico City, Mexico, with regards to the interpretation, performance and enforcement of this Summary of the Franchise Agreement, and waive any other jurisdiction that may apply to them due to their present or future domiciles or for any other reason.

EIGHT.- The headings of this Summary of Franchise Agreement are for convenience purposes only and shall not control or affect the meaning or interpretation of any provision of this Summary of Franchise Agreement.

NINTH.- All that is not contemplated in this Summary of the Franchise Agreement will be governed by the provisions of the Franchise Agreement.

TENTH. This Summary of the Franchise Agreement is executed in Spanish language with its translation into English language for informative purposes only. In case of any difference between both versions, the Spanish version shall prevail.

IN WITNESS WHEREOF the parties hereto execute this Summary of the Franchise Agreement on the date first above written.

Franquicia en la fecha indicada en el proemio del mismo.		
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Franquiciante / Franchisor

Planet Fitness Mexico, S. de R.L. de C.V.

Por / By: _____

Nombre / Name: _____

Cargo / Title: _____

Franquiciatario / Franchisee

FITNESS PARA TODOS, S. DE R.L. DE C.V.

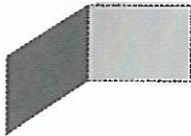
Por / By: _____

Nombre / Name: Javier Eduardo Lizardi Calderón

Cargo / Title: Apoderado/ Attorney-in-fact

APÉNDICE / APPENDIX 1
MARCAS LICENCIADAS / LICENSED MARKS

TITLE	STATUS	APPLN. NO.	APPLN. DATE	REG. NO.	REG. DATE	CLASS
30 MINUTOS, ¡A DARLE!	Registered	1964063	Oct 24, 2017	1863617	Mar 21, 2018	41
ALARMA ANTI-CRITICONES	Registered	1964062	Oct 24, 2017	1846334	Feb 15, 2018	41
BLACK CARD	Pending	2051618	May 23, 2018			41
	Registered	1293507	Jul 20, 2012	1330662	Nov 26, 2012	41
	Registered	1940744	Aug 31, 2017	1916509	Aug 27, 2018	41
GIMTIMIDACION	Registered	1516447	Aug 13, 2014	1507003	Aug 13, 2014	41
JUDGEMENT FREE ZONE	Registered	1173052	Apr 20, 2011	1239460	Sep 23, 2011	41
JUDGMENT FREE	Registered	1473404	Apr 2, 2014	1475524	Apr 2, 2014	41
JUDGMENT FREE ZONE	Registered	1173055	Apr 20, 2011	1273338	Mar 13, 2012	41
LA ZONA LIBRE DE JUICIOS	Pending	2249700	Aug 16, 2019			41
LUNES DE PIZZA	Registered	1964064	Oct 24, 2017	1846335	Feb 15, 2018	41
LUNK ALARM	Registered	1940728	Aug 31, 2017	1912951	Aug 14, 2018	41
MARTES DE FRUTAS	Registered	1964067	Oct 24, 2017	1846336	Feb 15, 2018	41
NO AL BULLGYM	Registered	1964057	Oct 24, 2017	1846331	Feb 15, 2018	41
NO CRITICOS	Registered	83619	Jun 27, 2013	78801	Dec 3, 2013	41
NO GIMTIMIDACION	Registered	1516448	Aug 13, 2014	1507004	Aug 13, 2014	41
NO SOMOS UN GIMNASIO, SOMOS PLANET FITNESS.	Registered	83616	Jun 27, 2013	78101	Oct 28, 2013	41
NO SOMOS UN GYM, SOMOS PLANET FITNESS	Registered	115938	Oct 24, 2017	106553	Apr 5, 2018	41
PERTENECES AQUI	Registered	83618	Jun 27, 2013	78800	Dec 3, 2013	41
PF BLACK CARD	Registered	1378993	May 31, 2013	1400645	Sep 27, 2013	41
	Registered	1473402	Apr 2, 2014	1651019	July 4, 2016	41

	Registered	1375877	May 22, 2013	1651745	July 5, 2016	41
PLANET FITNESS	Registered	1265955	Apr 13, 2012	1309631	Sep 6, 2012	05
PLANET FITNESS	Registered	1265954	Apr 13, 2012	1309630	Sep 6, 2012	28
PLANET FITNESS	Registered	1332793	Dec 10, 2012	1358634	Apr 1, 2013	32
PLANET FITNESS	Registered	1701880	Jan 13, 2016	1637063	May 9, 2016	25
PLANET FITNESS	Registered	1818602	Nov 9, 2016	1734728	May 21, 2017	44
PLANET FITNESS	Registered	1701881	Jan 13, 2016	1637064	May 9, 2016	41
planet fitness	Registered	1472790	Apr 1, 2014	1467298	Apr 1, 2014	41
	Registered	1173057	Apr 20, 2011	1239463	Sep 23, 2011	41
	Registered	1265952	Apr 13, 2012	1309963	Sep 6, 2012	25
	Registered	1940739	Aug 31, 2017	1912953	Aug 14, 2018	25
	Registered	1940741	Aug 31, 2017	1916508	Aug 27, 2018	41
	Registered	1940745	Aug 31, 2017	1823444	Nov 23, 2017	41
	Registered	1375876	May 22, 2013	1399907	Sept 25, 2013	41
PLANETA DE LOGROS	Registered	1964069	Oct 24, 2017	1843315	Feb 09, 2018	41
PLANETA DE LOGROS	Registered	1964070	Oct 24, 2017	1846338	Feb 15, 2018	42
PLANETA LIBRE DE CRITICAS	Registered	1964061	Oct 24, 2017	1846333	Feb 15, 2018	41

ZONA DE NO JUZGAR	Registered	83617	Jun 27, 2013	78799	Dec 3, 2013	41
ZONA LIBRE DE CRÍTICAS	Registered	2011508	Feb 19, 2018	1878127	Apr 26, 2018	25
ZONA LIBRE DE CRÍTICAS	Registered	2011511	Feb 19, 2018	1878128	Apr 26, 2018	41

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APÉNDICE / APPENDIX 2
PODER ESPECIAL IRREVOCABLE

Fitness Para Todos, S. de R.L. de C.V., representada en este acto por _____ otorga y confiere en favor de Jorge Mondragón Domínguez, Pablo Hooper Ramírez, Lirio Salgado Ramos, Constantino Aquique Pineda y Alberto Pliego Beguerisse, un PODER ESPECIAL, para ser ejercido conjunta o separadamente, indistintamente, en los siguientes términos:

Poder especial, pero dentro de su especialidad tan amplio como en derecho sea necesario, de conformidad con lo previsto en los dos primeros párrafos del artículo dos mil quinientos cincuenta y cuatro del Código Civil para el Distrito Federal y artículos correlativos del Código Civil Federal y de los Códigos Civiles de las diversas entidades que conforman los Estados Unidos Mexicanos, para realizar y mantener ante el Instituto Mexicano de la Propiedad Industrial la inscripción de cualesquiera contratos de franquicia, sub-franquicia, licencia y/o sub-licencia que celebre Planet Fitness Mexico, S. de R.L. de C.V. con Fitness Para Todos, S. de R.L. de C.V., así como para cancelar dichas inscripciones en cualquier tiempo, quedando facultados para firmar, presentar y obtener todo tipo de documentación, así como para realizar cualesquier trámites de naturaleza administrativa que de conformidad con las leyes aplicables sean necesarios para dichos propósitos.

El suscrito declara en este acto que las facultades para conferir el presente poder constan en la escritura pública número _____ de fecha _____, otorgado ante el Lic. _____, titular de la Notaría Pública No. _____ de _____ (se anexa copia de dicho instrumento)._____.

Fitness Para Todos, S. de R.L. de C.V., represented herein by _____, grants and confers in favor of grants and confers in favor of Jorge Mondragón Domínguez, Pablo Hooper Ramírez, Lirio Salgado Ramos, Constantino Aquique Pineda and Alberto Pliego Beguerisse, a **SPECIAL POWER OF ATTORNEY**, to be exercised jointly or severally, indistinctly, in the following terms:

Special power of attorney, but as broad as required in accordance to law, pursuant to the provisions of the first two paragraphs of article two thousand five hundred and fifty four of the Civil Code for the Federal District and correlative articles of the Federal Civil Code and the Civil Codes of the entities conforming the United Mexican States, to carry out and maintain before the Mexican Institute of Industrial Property, the recordings of any franchise, sub-franchise, license and/or sub-license agreements entered into by Planet Fitness Mexico, S. de R.L. de C.V. with Fitness Para Todos, S. de R.L. de C.V., as well as to cancel said recordings at any time, being authorized to sign, file and obtain all kinds of documentation, as well as to carry out any proceedings of administrative nature that may be necessary according to the applicable laws for such purposes.

The undersigned, hereby represents that his/her authority to confer this power of attorney is contained in public deed number _____ dated _____, granted before Mr. _____, holder of the Notary Public No. _____ of _____ (a copy of such instrument is attached hereto).

FRANCHISEE / FRANQUICIATARIO
FITNESS PARA TODOS, S. DE R.L. DE C.V.

By / Por: _____
Name/ Nombre: [*]
Title / Cargo: Attorney-in-fact/Apoderado
Date / Fecha: [*] [*], [*] / [*] de [*] de [*]
Place / Lugar: [*]

WINESS / TESTIGO

WITNESS / TESTIGO

Name / Nombre:
Address / Domicilio:

Name / Nombre:
Address / Domicilio:

APPENDIX G
TO FRANCHISE AGREEMENT

AREA DEVELOPMENT AGREEMENT ADDENDUM

Area Development Agreement

Area Developer: Fitness Para Todos, S. de R.L. de C.V.

Effective Date of Area Development Agreement: August 5, 2021

ADA-Specific Provisions: In reference to the Area Development Agreement entered into by and between Fitness Para Todos, S. de R.L. de C.V. ("Area Developer") and Planet Fitness Mexico, S. de R.L. de C.V. ("Franchisor," "we," or "us") effective as of the Effective Date set forth above, as amended by the Addendum to Area Development Agreement also dated as of the Effective Date set forth above (the "Addendum to Area Development Agreement"), and as further amended (as amended, the "ADA"), pursuant to Article 19.26 of the Franchise Agreement, the provisions set forth below shall control:

1. Franchise Agreement Amended. The Franchise Agreement is amended and supplemented by this Addendum. Any conflict between this Addendum and the Franchise Agreement and any appendices, schedules, exhibits, or attachments or related agreements thereto, shall be governed and controlled by the terms of this Addendum. Capitalized terms used in this Addendum but not defined in it will have the meaning given such terms in the Franchise Agreement, except as modified by this Addendum. The undersigned Franchisee is referred to in the Addendum as "you" or "your".
2. Article 1.4: Definition of Affiliate, Limited Partners and Limited Partnership Entity. Notwithstanding anything in Article 1.4 of the Franchise Agreement to the contrary, the definition of "Affiliate" when used in connection with you includes only the business entities described on Appendix D, Item 5 to the Franchise Agreement (collectively, the "Planet Fitness Business Group"). The term "Affiliate" also includes the lower case version of the word, i.e. "affiliate", if so used in the Franchise Agreement in reference to you. This definition is intended to apply to the Franchise Agreement and its related documents, including any renewals, releases, extensions, relocation agreements, and other ancillary documents signed by you. For purposes of clarity, the term "Affiliate" does not include (i) any limited partner or similar passive equity owner (collectively, the "Limited Partners") of any limited partnership entity, or other entity with limited liability, within your Planet Fitness Business Group, and any successor entities or other limited partnership entities, or other entities with limited liability, as applicable, acquiring direct or indirect interests in you (each, a "Limited Partnership Entity" and collectively, the "Limited Partnership Entities"), (ii) any fund entity comprised solely of passive investors (with no access to Confidential Information beyond that contemplated by Section 5(B) hereof) formed in the future which has ownership in Planet Fitmex, LLC (collectively, the "Fund Entities"), (iii) Argonne Capital Group, LLC ("Argonne") or (iv) any business entities, business groups, or limited partners associated with Argonne but not included in your Planet Fitness Business Group.
3. Article 1.4: Definition of Owner. Notwithstanding anything in the Franchise Agreement to the contrary, the following provisions will apply to your Owners:
 - a. Michael Klump, Karl Jaeger, Bill Weimar, Ben Nemo, Patrick Anderson and Mitchell Brister are collectively deemed to be "Keystone Individuals." In the event that (i) any of the above-named Keystone Individuals cease to be employed by you in their roles, or (ii) any additional senior level employees of yours that have the title of Senior Vice President, Principal, Managing Director, or President, or similar title of seniority, become actively involved in the day-to-day operations of the BUSINESS, such departing individual's replacement and/or such additional employee shall be deemed to be a Keystone Individual.
 - b. For so long as a Transfer has not occurred (after giving effect to Section 8 of this Addendum), the only individuals who are deemed to be "Owners" as defined in Article 1.4 of the Franchise Agreement and as set forth on Item 4 of Appendix D, are the Keystone Individuals, Carlos Ibarra and Alfonso Gomez Benet. You represent and warrant to us that Appendix D to the Franchise Agreement accurately describes the ownership and other information on it. You will update such aggregate ownership and other information on Appendix D promptly upon

the occurrence of any changes or from time to time upon our request. Article 2.2 of the Franchise Agreement is deleted in its entirety.

c. "Owner" (whether referring to a direct or indirect owner) in the Franchise Agreement shall not include any Limited Partners unless the Limited Partner is an individual described in Section 3.b above.

d. Your Limited Partners will remain confidential and you will not be required to disclose the identity of any Limited Partners to us on Appendix D to the Franchise Agreement or otherwise, except that you will disclose to us on Item 4 of Appendix D the ownership percentage in your Limited Partnership Entity in the aggregate held by your Owners.

e. You will have an Affiliate sign Appendix C to the Franchise Agreement (Assumption of Joint Obligation Agreement) (the "Affiliate Guarantor") as follows: If you are Fitness Para Todos, S. de R.L. de C.V., we will require your Affiliate Guarantor to be Fitness Para Todos Holdings, S. de R.L. de C.V. If you are a Controlled Affiliate as defined in the ADA (and you are not Fitness Para Todos, S. de R.L. de C.V.), we will require your Affiliate Guarantor to be either Fitness Para Todos, S. de R.L. de C.V. or Fitness Para Todos Holdings, S. de R.L. de C.V., at your option. Subject to Section 8.c of this Addendum, no other Affiliate will be required to sign Appendix C.

f. You will have no requirement to disclose to us or our affiliates the names or any information regarding any existing, prospective and replacement Limited Partners of you or your Affiliates, unless such Limited Partner becomes actively involved in the day-to-day operations of the BUSINESS or has been given Confidential Information other than customary information and results related to the BUSINESS, in each case in the ordinary course of business, provided, that in no event shall you disclose or otherwise permit such Limited Partner to obtain, or have access to, any portion of the Planet Fitness operations manual or any other Confidential Information except as expressly provided in Section 8(b) of the Addendum to Area Development Agreement or Section 4 hereof.

4. Responsible Owner and Approved Operator. Notwithstanding anything to the contrary in the Franchise Agreement:

a. We approve Bill Weimar as your Responsible Owner and Alfonso Gomez Benet as your Approved Operator.

b. If you notify us of the change, you may change your Responsible Owner to any of the following Owners: Michael Klump or Karl Jaeger. Any other change in your Responsible Owner will require our prior written consent, which will not be unreasonably withheld if the change is to a successor in title or position to Bill Weimar or any of such foregoing named individuals. Any change to your Approved Operator will require our prior written consent.

5. Non-Disclosures. Notwithstanding anything to the contrary in Article 8.2 or any other provision of the Franchise Agreement, the Franchisee, its Affiliates and the Keystone Individuals each agree, and agree to cause their respective employees and affiliates not to disclose any Confidential Information (as such term is defined in Appendix B of the Franchise Agreement) regarding the Franchisor or the Planet Fitness® business (such information, the "Restricted Information") to any person or entity other than to its employees or Affiliates who have a need to know such information in connection with the Franchisee's or its Affiliates' operation of the Planet Fitness® Business. In the event that Franchisee, one of Franchisee's Affiliates, or any of the Keystone Individuals is required to disclose Restricted Information pursuant to law or regulation, such party shall first provide Franchisor with at least thirty (30) days prior notice (or such shorter period as necessary under the circumstance to comply with the law or regulation) and the opportunity to review and comment on any proposed disclosure prior to delivery. Notwithstanding the foregoing (A) the Restricted Parties may disclose customary information (including, where applicable, Restricted Information) to its debt financing sources in connection with the monitoring of the financing or compliance with the financing terms thereafter, provided that such debt financing sources execute a confidentiality agreement in favor of the Franchisee or its Affiliate and Franchisor, containing confidentiality terms at least as favorable to Franchisor as those set forth in this Section 5 and (B) the Restricted Parties may disclose customary information and results relating to the Planet Fitness® Business (including, where applicable, Restricted Information) to its existing, prospective and replacement investors, including any of its partners, members or related investment funds, in each case in the ordinary course of business, provided, that in no event shall the Restricted Parties disclose any portion of the Planet Fitness operations manual or any other Restricted Information to such investors except as expressly provided in subclause (B) above. Notwithstanding anything to the contrary herein or in the ADA or Franchise Agreement, any breach of this

Section 5 which results from the disclosure of Restricted Information to any non-affiliate third party associated with Argonne, shall be deemed a breach of the ADA and Franchise Agreement.

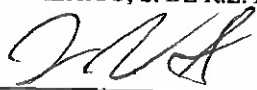
6. Felony or Material Offense Defaults. Article 15.2(6)(c) of the Franchise Agreement is amended to allow you to cure any default under this article by any Owner by removing the offending Owner from day-to-day management and operations but the Owner will not be required to relinquish or dispose of such Owner's equity interest in you or your Affiliates.
7. Bad Conduct Defaults. Article 15.2(6)(d) of the Franchise Agreement is amended to allow you to cure any default under this article by termination or resignation from employment of the offending employee.
8. Transfer by Franchisee. Notwithstanding anything to the contrary in the Franchise Agreement, with respect to any Transfer or assignment provisions, none of the following will (i) constitute a Transfer or assignment, breach or default under the Franchise Agreement, (ii) require our approval, the payment of transfer fees, or the satisfaction of other Transfer conditions, or (iii) trigger our right of first refusal under Article 13.8 of the Franchise Agreement:
 - a. The Limited Partners may change (including by the admission of additional Limited Partners), and such Limited Partners' respective ownership interests may be sold, assigned, transferred, pledged or otherwise disposed of, as long as in each case Michael Klump, Karl Jaeger, and/or Bill Weimar, collectively or individually, have sole control or retain majority ownership of the Limited Partnership Entity or the general partner, manager or parent of the Limited Partnership Entity in your Planet Fitness Business Group that directly or indirectly owns you.
 - b. Your direct or indirect owners of you, Fitness Para Todos Holdings, S. de R.L. De C. V., Planet Fitmex Sub, LLC, Planet Fitmex, LLC, or the Fund Entities, may change, whether as a result of a merger, consolidation, conversion, reorganization, change in ownership, removal, restructure, assignment, transfer, redemption or other transaction or transactions, as long as in each case (a) Michael Klump, Karl Jaeger, and/or Bill Weimar, collectively or individually, have sole control or retain majority ownership of the Limited Partnership Entities or successor entities to the Limited Partnership Entities or the general partner, manager or parent of the Limited Partnership Entities in your Planet Fitness Business Group that directly or indirectly owns you, (b) if such change involves an individual Owner listed in Section 3(b) who will no longer be an Owner, (i) you reimburse us for any reasonable external (i.e., not in-house) legal and administrative costs we incurred in connection with such change and (ii) you and such Owner execute a general release, in form satisfactory to us and an affirmation that you and such Owner remain bound by any applicable confidentiality and non-compete restrictions for the time period specified therein, after giving effect to the Addendum to Area Development Agreement or this Addendum, provided however, that if despite your commercially reasonable efforts to obtain such Owner's signature to such general release and affirmation you are unable to do so, you may indemnify us for claims, losses or damages suffered or incurred by us for such Owner's failure to do so in lieu of providing such release and affirmation, and (c) any new owners are (i) passive investors with no access to Confidential Information beyond that contemplated by Section 5(B) hereof or (ii) rollover investors whose ownership results from your approved acquisition of their PLANET FITNESS businesses.
 - c. You or one or more of your Affiliates, Limited Partnership Entities or Fund Entities may be merged or combined or liquidated into one or more other Affiliates, Limited Partnership Entities or Fund Entities in your Planet Fitness Business Group, so long as, (i) Michael Klump, Karl Jaeger, and/or Bill Weimar, collectively or individually, have sole control or retain majority ownership of the successor entity or the general partner, manager or parent or the successor entity, (ii) if the successor entity is a successor to you, such successor entity assumes by law or contract any liabilities or obligations under the Franchise Agreement, and (iii) if the successor is to your Affiliate Guarantor, such successor entity executes a replacement Assumption of Joint Obligation Agreement.
 - d. Ownership interests in your Planet Fitness Business Group may be transferred among the Fund Entities or from one or more Fund Entities to a new or existing entity that is or would be following transfer a Limited Partnership Entity, so long as Michael Klump, Karl Jaeger, and/or Bill Weimar, collectively or individually, have sole control or retain majority ownership of any such transferee or the general partner, manager or parent of such transferee.

- e. A lender, whether as lender or agent for a group of lenders, may obtain a pledge of the equity interests and/or a lien on the assets of you or your affiliates, including an assignment of the Franchise Agreement, provided that we have given you written consent to such pledge or lien as provided in the Franchise Agreement.
9. Article 13.5. Article 13.5 of the Franchise Agreement are deleted in their entirety from the Franchise Agreement.
10. Confidentiality and Non-Competition Provisions. Notwithstanding anything to the contrary in the Franchise Agreement:
- a. Any Keystone Individual subject to the non-competition provisions set forth in Section 6 of the Addendum to Area Development Agreement shall not be subject to the non-competition provisions set forth in the Franchise Agreement or in Appendix B to the Franchise Agreement (Personal Covenants Regarding Confidentiality and Non-Competition) even if the Keystone Individual has signed Appendix B. Notwithstanding the foregoing, any breach by any of the Keystone Individuals of such non-competition provisions in Section 6 of the Addendum to Area Development Agreement shall be deemed a breach of the Franchise Agreement.
- b. Subject to Section 10.a above, only Owners may be required to sign Appendix B to the Franchise Agreement (Personal Covenants Regarding Confidentiality and Non-Competition), if we so request. All successor Owners (as described in Section 3.b above) shall sign Appendix B within thirty (30) days of becoming an Owner, if we so request.
- c. Any non-competition or non-solicitation provisions of the Franchise Agreement and Appendix B shall not apply to immediate family members if, and for so long as, such family members are not actively involved in the day-to-day operations of the BUSINESS and have not received Confidential Information related to us or the Planet Fitness® franchise system, and Appendix B will be deemed amended to provide for the foregoing family member exclusion.
- d. The non-competition obligations and non-solicitation restriction on an Owner (other than a Keystone Individual) under the Franchise Agreement and Appendix B will expire two (2) years after such individual no longer (a) if applicable, is employed by, or has a consulting agreement with, you or any of your Affiliates, and (b) owns an ownership interest in you or your Affiliate, except solely as a passive investor in the Limited Partnership Entity.
11. Section 19.26. The second sentence of Section 19.26 is modified to replace the existing sentence with the following one: "The ADA entered into with us contains certain negotiated provisions which are intended to apply to, and modify, new franchise agreements between the parties entered into as of the same date as the ADA and future franchise agreements entered into between the parties."
12. No Further Amendment. No further amendment or modification of the Franchise Agreement shall be binding unless executed in writing by the parties or their authorized successors or assigns. No course of conduct or course of performance under this or any other agreement between the parties will be deemed to modify this Addendum. No waiver by any party of any provisions of this Addendum shall be deemed to be or shall constitute a waiver of any other provision hereof (whether or not similar), nor shall such waiver constitute a continuing waiver unless otherwise expressly provided. Except as expressly set forth in this Addendum, the Franchise Agreement remains in full force and effect.
13. Renewal Franchise Agreements. If you acquire any successor franchise under Article 14 of the Franchise Agreement, we agree to amend any renewal Franchise Agreement executed in connection with the successor franchise with an Addendum to Franchise Agreement which will include all the renewal provisions specified above and which will further include the same provisions as this Addendum.
14. Entire Agreement. This Addendum, and the agreements, documents and instruments referred to herein, constitute the entire agreement between the parties with respect to the subject matter hereof, superseding and cancelling any and all prior and contemporaneous agreements, understandings, representations, inducements and statements, oral or written, of the parties in connection with the subject matter hereof.

15. Headings. The section headings are inserted as a matter of convenience and in no way define, limit or describe the scope of such section or affect the interpretation of this Addendum.
16. Counterparts. This Addendum may be signed in counterparts and each counterpart with a hand-written signature, whether an original or an electronic data text (including facsimile, electronic data interchange and electronic mail) is considered an original and all counterparts constitute one and the same instrument.
17. Miscellaneous. If any provision of this Addendum is found to be unenforceable, the remaining provisions will continue to be in full force and effect. This Addendum shall be binding upon and shall inure to the benefit of the parties, their successors and permitted assigns.

IN WITNESS WHEREOF, the parties hereto have executed and delivered this Addendum as of the Effective Date of the Franchise Agreement.

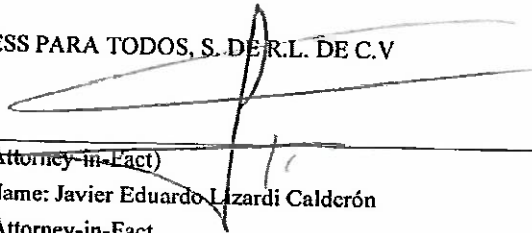
PLANET FITNESS MEXICO, S. DE R.L. DE C.V.

By: 

Print Name: Justin Vartanian

Title: General Counsel

FITNESS PARA TODOS, S. DE R.L. DE C.V.

By: 

(Attorney-in-Fact)

Print Name: Javier Eduardo Lizardi Calderón

Title: Attorney-in-Fact

Dated: April 24, 2023

**ACKNOWLEDGMENT ADDENDUM TO
THE PLANET FITNESS® FRANCHISE AGREEMENT**

As you know, you and we are entering into a Franchise Agreement for the operation of a **PLANET FITNESS** franchise. The purpose of this Acknowledgment Addendum is to determine whether any statements or promises were made to you that we have not authorized or that may be untrue, inaccurate or misleading, and to be certain that you understand the limitations on claims that may be made by you by reason of the offer and sale of the franchise and operation of your business. Please review each of the following questions carefully and provide honest responses to each question.

Acknowledgments and Representations*.

1. Did you receive a copy of our Disclosure Document (and all exhibits and attachments) at least thirty (30) business days prior to signing the Franchise Agreement or payment of any consideration? Check one: ☒ Yes. ☐ No.
2. Have you studied and reviewed carefully our Disclosure Document and Franchise Agreement? Check one: ☒ Yes. ☐ No.
3. Is the name, address and phone number of any broker and each of our employees or representatives who was involved in offering you this franchise listed on the Disclosure Document receipt you signed (or on any updated receipt we provided to you)? Check one: ☒ Yes. ☐ No.
4. Do you understand that the Franchise Agreement contains the entire agreement between you and us concerning the franchise, meaning that any prior oral or written statements not included in the Franchise Agreement or our Disclosure Document will not be binding? Check one: ☒ Yes. ☐ No.
5. Do you understand that the success or failure of your business will depend in large part on your skills and experience, your business acumen, your location, the local market for products, interest rates, the economy, inflation, the number of employees you hire and their compensation, competition and other economic and business factors? Check one: ☒ Yes. ☐ No.
6. Do you understand that the franchise granted is for the right to operate a single **PLANET FITNESS** fitness facility at the authorized location only and includes no exclusive area or protected territory, and that we and our Affiliates have the right to issue franchises or operate competing businesses for or at locations, as we determine, near your authorized location? Check one: ☒ Yes. ☐ No.
7. Do you understand that you will be bound by the non-compete covenants (both in-term and post-term) listed in Article 16 and that an injunction is an appropriate remedy to protect the interests of the **PLANET FITNESS** system if you violate the covenant(s)? Further, do you understand that the term "you" for purposes of the non-compete covenants is defined broadly in Article 16, such that any actions in violation of the covenants by those holding any interest in the franchisee entity may result in an injunction, default and termination of the Franchise Agreement? Check one: ☒ Yes. ☐ No.
8. Do you understand that any changes to the current economic and financial situation could have a negative impact on the fitness industry, the **PLANET FITNESS** franchise system and your business? Do you also understand that the economic situation may worsen? Check one: ☒ Yes. ☐ No.

If you answered "No" to questions 1-8, please explain (attached additional sheets if necessary): _____

9. Was any oral, written or visual claim or representation made to you that contradicted the disclosures in the Disclosure Document? Check one: ☐ Yes. ☒ No.
10. Was any oral, written or visual claim or representation made to you that stated, suggested, predicted or projected your sales, income or profit levels? Check one: ☐ Yes. ☒ No.

11. Except as stated in our Disclosure Document, did any employee or other person speaking on our behalf make any statement or promise regarding the costs involved in operating a franchise that is not contained in the Disclosure Document or that is contrary to or different from the information in the Disclosure Document? Check one: ☒ Yes. ☐ No.

If you answered "Yes" to any of questions 9-11, please explain in detail the claim, representation or statement (attached additional sheets if necessary):

12. You further acknowledge that we have advised you to seek franchise counsel to review and evaluate this Agreement. ☒ Yes. ☐ No.

YOU UNDERSTAND THAT YOUR ANSWERS ARE IMPORTANT TO US AND THAT WE WILL RELY ON THEM. BY SIGNING THIS ADDENDUM, YOU ARE REPRESENTING THAT YOU HAVE CONSIDERED EACH QUESTION CAREFULLY AND RESPONDED TRUTHFULLY TO THE ABOVE QUESTIONS. IF MORE SPACE IS NEEDED FOR ANY ANSWER, CONTINUE ON A SEPARATE SHEET AND ATTACH.

NOTE: IF THE RECIPIENT IS AN INVESTMENT PROMOTION CORPORATION OF VARIABLE CAPITAL, CORPORATION OF VARIABLE CAPITAL OR LIMITED LIABILITY COMPANY OF VARIABLE CAPITAL OR OTHER ENTITY, SUCH ENTITY IS "YOU" FOR PURPOSES OF THIS ADDENDUM, AND THE RESPONSIBLE OWNER OF SUCH ENTITY MUST EXECUTE THIS ACKNOWLEDGMENT.

Signed: _____



Print Name: Alfonso Manuel Gomez Benet, Approved Operator

Date: April 24, 2023



PLANET FITNESS MEXICO

Av, Insurgentes Sur 1787 Piso 4
Col. Guadalupe Inn, Deleg. Alvaro Obregón,
Ciudad de México, México
RFC: PFM201217182
Régimen Fiscal: 601 - General de Ley Personas Morales

Este documento es una representación impresa de un CFDI

FACTURA	
ADA0398A 4446	
Fecha/Hora Certificación	
2023-04-25T20	20:38:42
Fecha de Emisión	
25/Abr/2023	

RECEPTOR		Folio Fiscal	
FITNESS PARA TODOS		C68C1D68-6BED-4623-82EF-9DEB566A0BE0	
Calzada de los Leones 170-Piso 1		No. Certificado Digital	
Los Alpes, Álvaro Obregón		00001000000507195632	
Ciudad de México, C.P.: 01010		No. Serie Certificado SAT	
Ciudad de México, México		00001000000505142236	
RFC: FTO210226USA			
Uso CFDI: G03 - Gastos en general			
Régimen Fiscal: 601 - General de Ley Personas Morales			

Cantidad	Unidad	Clave Unidad SAT	Clave Prod/Servicio	Descripción	Valor unitario	Impuestos	Importe
1	SERV	E48 - Unidad de servicio	80141704 - Operaciones de franquicias	Initial Franchise Fee - Ciudad de México(Encuentro Oceanía), CMX#4446-Initial Franchise Fee	\$20,000.00	\$3,200.00	\$20,000.00

Importel con letra: veintitres mil doscientos Dólares 00/100 USD.		IMPORTE TOTALES	
Moneda: USD - Dolar americano		Subtotal	
Tipo de Cambio: 20.56700		\$20,000.00	
Forma de Pago: 99 - Por definir		I.V.A	
Método de Pago: PPD - Pago en parcialidades o diferido		\$3,200.00	
Lugar de Expedición C.P.: 01020		Total	
Tipo de Relación		\$23,200.00	
04 - Sustitución de los CFDI previos			
04E3F92E69-C987-40E7-99F2-557D084A9D0F			

Observaciones

DATOS BANCARIOS:
BENEFICIARIO: PLANET FITNESS MEXICO, S DE RL DE C.V.
BANCO: BANCO MONEX SA
CLABE: 112962000033016945
SWIFT: MONXMMXXX
MONEDA: USD

Cadena Original del Complemento de Certificación Digital del SAT

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Sello Digital Del CFDI

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Sello Digital SAT

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